

N.A.F. # _____

OFFENSE # SE 21004417

CAPIAS _____

T.B.A. 4/27/21

DEMAND REC'D. _____

DEMAND ANSW'D. APR 15 2021

STATE OF FLORIDA

v.

ARREST DATE

3/9/21
Bond

512021CF001143CFAXES



DAVIS, MATTHEW
DOB: 01/05/1988 SEX: M RACE: W
BURGLARY-UNOCCUPIED DWELLING UNARMED : C3B
SPEEDY: 08/31/2021 Section 2 - CF

EXPIRATION
SPEEDY TRIAL _____

PID #

DOB

PHYS. DESC.

WIV: Kistine Tuttle

CLOSED

DEFENSE ATTORNEY _____

INVESTIGATION 3/22/21 SAI: MX

RE-INVESTIGATION _____

INFO (✓) DIRECT INFO () NO INFO () 4/1/21

AMENDED INFO _____

NOLLE PROSSE _____ STATUS OF DEFENDANT _____

ARRAIGNED _____

PLEA _____

PRE-TRIAL 6-28-21 8/4/21 8/21/21 9/21/21 10-29-21

RESET 11-17-21 12/1/21 1-18-22 3-1-22 8:30 4/12/22 8:30

RESET 5-17-22 8:30 07-05-22 8:30 8-16-22 8:30 9-27-22 8:30

PREVIOUS RECORD: YES () NO () 3/14/23 8:30 4/18/23 8:30 5/2/23 8:30

CHANGE OF PLEA 5/2/23

SET FOR TRIAL Jury () Non-Jury ()

RESET _____

TRIAL _____ VERDICT: _____ SAT: _____

SENTENCE AG TJS 8550 a 8100810

Rest pd up front 104 IC

V.O.P. SENTENCE _____

APPEAL _____ STATE APPEAL _____

OPINION _____

MANDATE _____

COLLATERAL APPEAL _____

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY

2021CF001143CFAXES-2

STATE OF FLORIDA

v.

MATTHEW AARON DAVIS

ADDITIONAL WITNESS LIST AND
ACKNOWLEDGMENT OF ADDITIONAL TANGIBLE EVIDENCE

Pursuant to Rule 3.220, Fla. R. Crim. P., the following constitutes a list of additional tangible evidence and additional witnesses which may be relevant to the offense charged or to any defense of the person charged with respect thereto:

EVIDENCE:

SUPPLEMENT REPORT# 21007010

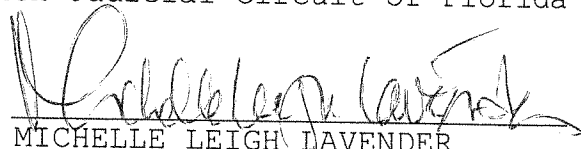
WITNESSES:

DEP. J VELEZ - PCSO

I HEREBY CERTIFY that a copy of the above has been furnished to REGIONAL COUNSEL OFFICE, Attorney for the Defendant, at Office of Regional Counsel, 7330 Little Rd, Ste 102, New Port Richey, FL 34654, by U.S. Mail or personal service, this 11th day of February, 2022.

BRUCE BARTLETT, State Attorney
Sixth Judicial Circuit of Florida

By



MICHELLE LEIGH LAVENDER
Assistant State Attorney
Bar No. 474606

ML/jb

ASE SUPPLEMENTAL REPORT
NOT SUPERVISOR APPROVED

Printed: 02/04/2022 13:55

OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Investigator: *VELEZ, J. (5954)*

Date / Time: *02/04/2022 13:31:39, Friday*

Supervisor: *(0)*

Supervisor Review Date / Time: *NOT REVIEWED*

Contact:

Reference: *Known To Known Identification Supplement*

Date: 02/04/22

Case #: 21-07010

Comparison Request(s) By: M.Lavender

Examiner(s): J.Velez #5954

Verifier(s): M.Talamo #5383

Stat Data: N/A

Supplemented by: J.Velez #5954

ICR: 1.0 hrs

Subject(s) Compared (IDENTIFIED) - Name, Sex, Race, DOB and Reference #'s if applicable:

Davis, Matthew Aaron, W/M, 01/05/88

Submitted By: L.Wright-Love

Item Compared: Original of Florida Pawnbroker Transaction Form (6948 Gall Blvd Zephyrills, FL 33542). Control #14024594, Dated 11/22/20.

Result: Identification

Friction Ridge Skin Area: Right Thumb (Finger #1)

Subject: Davis, Matthew

Note(s): N/A

RECEIVED
STATE ATTORNEY
2022 FEB -7 AM 11:47
(1)

THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY

2021CF001143CFAXES-2

STATE OF FLORIDA

v.

MATTHEW AARON DAVIS

ADDITIONAL LIST OF WITNESSES

The following constitutes an additional list of the names and addresses of witnesses known to the State Attorney to have information which may be relevant to the offense charged or to any defense of the person charged with respect thereto:

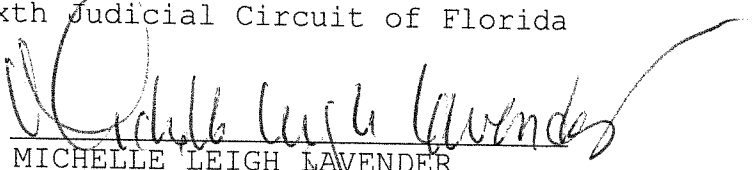
DEP. JORDAN TROWELL PCSO

I HEREBY CERTIFY that a copy of the above has been furnished to REGIONAL COUNSEL OFFICE, Attorney for the Defendant, at Office of Regional Counsel, 7330 Little Rd, Ste 102, New Port Richey, FL 34654, by U.S. Mail or personal service, this 25th day of

January, 2022.

BRUCE BARTLETT, State Attorney
Sixth Judicial Circuit of Florida

By


MICHELLE LEIGH LAVENDER
Assistant State Attorney
Bar No. 474606

INCIDENT/INVESTIGATION

Internal Copy

I N C I D E N T D A T A	Agency Name Pasco Sheriff's Office		Case# 21-004417							
	ORI FL0510000									
	Location of Incident 7512 Chenkin Rd, Zephyrhills FL 33540-		Premise Type Home Of Victim-single	Zone/Tract N5	Date / Time Reported 02/05/2021 08:26 Fri					
					Last Known Secure 10/10/2020 00:00 Sat					
	#1	Crime Incident(s) Burglary Dwelling, Unoccupied, Unarmed, No Forced Entry - 810.02.3B NO FORCED	(Com) F	Weapon / Tools NOT APPLICABLE	Activity					
	#2	Crime Incident Possession Of Stolen Property Grand 812.014.2C1 POSS	(Com) F	Weapon / Tools	Activity					
	#3	Crime Incident	()	Weapon / Tools	Activity					
MO	Object Of Target/Lawn Equipment, Point of Entry/Sliding Glass Door, Method Of Entry/Unlocked Window/Door, Object Of Target/Camera/Video Equipment, Object Of Target/Household Items, Object Of Target/Jewelry, Object Of Target/Tools/Small Machinery, Offense Type/Burglary									
V I C T I M	# of Victims	Type: INDIVIDUAL/ NOT LAW		Injury: None						
	V1	Victim/Business Name (Last, First, Middle) TUTTLE, KASTINE MARIE (WM)		Victim of Crime # 1,2	DOB 09/01/1957 Age 63					
	Home Address 7512 CHENKIN RD, Zephyrhills, FL 33540-		Home Phone 219-545-2522							
	Employer Name/Address HOME INSTEAD (CAREGIVER)		Business Phone 813-395-8413		Mobile Phone 219-545-2522					
O T H E R I N V O L V E D	VYR	Make	Model	Style	Color					
	Lic/Lis		VIN							
	CODES: V- Victim (Denote V2, V3) O = Owner (if other than victim) R = Reporting Person (if other than victim)									
	Type: INDIVIDUAL/ NOT LAW ENFORCEMENT Injury:									
I N V O L V E D	Code	Name (Last, First, Middle) HARILSON, WILLIAM EDWARD JR (Wp)		Victim of Crime # 07/03/1959 Age 61	DOB 07/03/1959 Age 61					
	Home Address 8037 Hobart Dr Zephyrhills, FL 33540		Home Phone 813-713-1193							
	Employer Name/Address Consult Realty (AGENT)		Business Phone		Mobile Phone					
	Type: INDIVIDUAL/ NOT LAW ENFORCEMENT Injury:									
P R O P E R T Y	Code	Name (Last, First, Middle) CHEEK, ASHELI NICOLE (Wp)		Victim of Crime # 08/30/2001 Age 19	DOB 08/30/2001 Age 19					
	Home Address 20 Jerry Hardesty Rd Ekron, KY 40117		Home Phone 219-406-3240							
	Employer Name/Address		Business Phone		Mobile Phone					
	Type: INDIVIDUAL/ NOT LAW ENFORCEMENT Injury:									
L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found ("OJ" = Recovered for Other Jurisdiction)										
P R O P E R T Y	VI #	Code	Status	Frm/To	Value	OJ	QTY	Property Description	Make/Model	Serial Number
	1	99	S		\$40.00		1	PAINTING SUPPLIES		
	1	55	S		\$40.00		1	SOLDERING IRON		
		99	S,R		\$50.00		1	BAYONET		
		42	R		\$50.00		1	14KT GOLD TWEETY BIRD CHARM		
		42	S,R		\$150.00		1	14KT GOLD ROPE CHAIN		
		42	R		\$150.00		1	14KT GOLD ROPE CHAIN		
		99	R		\$50.00		1	BAYONET		
		42	S,R		\$50.00		1	14KT GOLD TWEETY BIRD CHARM		
	1	87	S,R		\$100.00		1	BLOWER	PORTLAND/3 In 1	369951923
	1	87	R		\$100.00		1	BLOWER	PORTLAND/3 In 1	369951923
	1	42	S		\$250.00		1	SILVER NECKLACE W SUN PENDANT		
	1	55	S		\$1,000.00		1	LEATHER TOOLS		
	Officer/ID#		WRIGHT, A. J. (PAT2, SO15) (6503) (Am)				Outstanding Stolen Val [Total Stolen]: \$3,575.00 [\$4,391.00]. Tot Rec Val: \$816.00			
Invest ID#		WRIGHT-LOVE, L. L. (PAT2, PCU2) (3775)				Supervisor ROSENBLOOM, M. S. (PAT2, SQ15)				
Status	Complainant Signature				Case Status Cleared By Arrest		03/09/2021		Case Disposition: Cleared By Arrest	
				03/09/2021		03/09/2021		Page 1		

Incident Report Additional Property List

Pasco Sheriff's Office

OCA: 21-004417

Property List (Continued)

Page 2

Status Codes L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found

VI #	Code	Status Frm/To	Value	OJ	QTY	Property Description	Make/Model	Serial Number
1	55	S	\$20.00		0	DRILL	BLACK & DECKER	
1	41	S	\$350.00		1	SALT AND PEPPER SHAKERS	HALLMARK	
15	1	41	S,R		1	OPERA GLASSES		
1	41	R	\$300.00		1	OPERA GLASSES		
1	42	S	\$100.00		1	GOLD RING		
1	61	S	\$20.00		20	SILVER DOLLARS		
1	61	S	\$5.00		1	BAG OF NUFFALO NICKELS		
20	1	13	S,R		1	MOP BUCKET		
1	13	R	\$1.00		1	MOP BUCKET		
1	87	S,R	\$165.00		1	WEED EATER	BLACK & DECKER	150399
1	87	R	\$165.00		1	WEED EATER	BLACK & DECKER	150399
1	13	S	\$50.00		4	GLASS CABINET DOORS		
25	1	55	S		1	ROUTER	CRAFSTMEN	
1	31	S	\$400.00		1	CANON CAMERA	CANON	
1	99	S	\$1,200.00		3	SEWING MACHINE	SINGER	

INCIDENT/INVESTIGATION REPORT

Pasco Sheriff's Office

Case # 21-004417

Status Codes L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found						
D R U G S	UCR	Status	Quantity	Type Measure	Suspected Type	Up to 3 types of activity

Assisting Officers
VENDITTI, F. (5236)

Suspect Hate / Bias Motivated: *None*

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 21-004417

Pasco Sheriff's Office

NARRATIVE

Incident Report Suspect List

Pasco Sheriff's Office

OCA: 21-004417

1	Name (Last, First, Middle) DAVIS, MATTHEW AARON <i>Defendant</i>						Also Known As DAVIS, WILLIAM AARON				Home Address 6819 23RD STREET ZEPHYRHILLS, FL 33540 813-895-6318			
	Business Address Pasco County Public Works (Inactive Status)													
	DOB 01/05/1988	Age 32	Race W	Sex M	Eth N	Hgt 507	Wgt 150	Hair BRO	Eye BRO	Skin MED	Driver's License / State.			
Scars, Marks, Tattoos, or other distinguishing features TATT BACK / TRIBAL; TATT NECK / TRIBAL; TATT CHES / A WOMANS LIFE IS LOVE AND A MANS LOVE IS LIFE; TATT RIGH LEG / FROG; TATT ABDO / DEMON; TATT RIGH ARM / FISH, CROSS, BREAST CANCER, PAIN;														
Reported Suspect Detail		Suspect Age		Race	Sex	Eth	Height		Weight		SSN			
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel Mode of Travel			
VehYr/Make/Model				Drs	Style		Color		Lic/St		VIN			

Notes

Physical Char

*Hair Length, Short
Hair Facial, Slight Beard
Build, THIN*

2	Name (Last, First, Middle) HILLS, CHRISTINA RENEE <i>Defendant</i>						Also Known As BAILEY, CHRISTINA				Home Address 6819 23RD STREET ZEPHYRHILLS, FL 33540 813-469-7899			
	Business Address GOLDEN CORAL, UNEMPLOYED													
	DOB 02/05/1988	Age 32	Race W	Sex F	Eth N	Hgt 507	Wgt 120	Hair OTH	Eye BLU	Skin FAR	Driver's License / State.			
Scars, Marks, Tattoos, or other distinguishing features TATT RIGH FOOT / MOUSE; TATT LEFT FOOT / MOUSE; TATT LEFT CALF / BUTTERFLY; TATT RIGH LEG / HEART, FLOWERS; TATT LEFT ARM / BUTTERFLIES; TATT RIGH ABDOMEN / STARS														
Reported Suspect Detail		Suspect Age		Race	Sex	Eth	Height		Weight		SSN			
Weapon, Type		Feature		Make		Model		Color		Caliber	Dir of Travel Mode of Travel			
VehYr/Make/Model				Drs	Style		Color		Lic/St		VIN			

Notes

Physical Char

*Build, SMALL
Hair Length, Long
Conversation, Polite*

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-004417

1 Property Description PAINTING SUPPLIES		Make		Model		Caliber	
Color Brown	Serial No.	Value \$40.00	Qty 1.000	Unit	Jurisdiction Locally		
Status Stolen	Date 10/10/2020	NIC #	State #	Local #	OAN		
Name (Last, First, Middle) Tuttle, Kastine Marie			DOB 09/01/1957	Age 63	Race W	Sex F	

Notes

2 Property Description SOLDERING IRON		Make		Model		Caliber	
Color	Serial No.	Value \$40.00	Qty 1.000	Unit	Jurisdiction Locally		
Status Stolen	Date 10/10/2020	NIC #	State #	Local #	OAN		
Name (Last, First, Middle) Tuttle, Kastine Marie			DOB 09/01/1957	Age 63	Race W	Sex F	

Notes

3 Property Description BLOWER		Make PORTLAND		Model 3 IN 1		Caliber	
Color Green/Black	Serial No. 369951923	Value \$100.00	Qty 1.000	Unit	Jurisdiction Locally		
Status Recovered	Date 02/11/2021	NIC #	State #	Local #	OAN		
Name (Last, First, Middle) Tuttle, Kastine Marie			DOB 09/01/1957	Age 63	Race W	Sex F	

Notes

4 Property Description SILVER NECKLACE W SUN PENDANT		Make		Model		Caliber	
Color Silver Or	Serial No.	Value \$250.00	Qty 1.000	Unit	Jurisdiction Locally		
Status Stolen	Date 10/10/2020	NIC #	State #	Local #	OAN		
Name (Last, First, Middle) Tuttle, Kastine Marie			DOB 09/01/1957	Age 63	Race W	Sex F	

Notes

Incident Report Related Property List

Sheriff's Office

OCA: 21-004417

Property Description LEATHER TOOLS			Make		Model		Caliber	
Color Other	Serial No.		Value \$1,000.00		Qty 1.000		Unit	Jurisdiction Locally
Status Stolen	Date 10/10/2020	NIC #		State #		Local #		OAN
Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63	Race W	Sex F

Notes

6 Property Description DRILL			Make BLACK & DECKER		Model		Caliber	
Color Red/Black	Serial No.		Value \$20.00		Qty 0.000		Unit	Jurisdiction Locally
Status Stolen	Date 10/10/2020	NIC #		State #		Local #		OAN
Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63	Race W	Sex F

Notes

7 Property Description SALT AND PEPPER SHAKERS			Make HALLMARK		Model		Caliber	
Color Silver Or	Serial No.		Value \$350.00		Qty 1.000		Unit	Jurisdiction Locally
Status Stolen	Date 10/10/2020	NIC #		State #		Local #		OAN
Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63	Race W	Sex F

Notes

2 inches in height.

8 Property Description OPERA GLASSES			Make		Model		Caliber	
Color Gold	Serial No.		Value \$300.00		Qty 1.000		Unit	Jurisdiction Locally
Status Sr	Date 10/10/2020	NIC #		State #		Local #		OAN
Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63	Race W	Sex F

Notes

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-004417

9	Property Description GOLD RING				Make		Model		Caliber	
	Color Gold		Serial No.		Value \$100.00		Qty 1.000		Unit	
	Status Stolen		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

10	Property Description SILVER DOLLARS				Make		Model		Caliber	
	Color Silver Or		Serial No.		Value \$20.00		Qty 20.000		Unit	
	Status Stolen		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

11	Property Description BAG OF NUFFALO NICKELS				Make		Model		Caliber	
	Color Gray		Serial No.		Value \$5.00		Qty 1.000		Unit	
	Status Stolen		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

12	Property Description MOP BUCKET				Make		Model		Caliber	
	Color Yellow		Serial No.		Value \$1.00		Qty 1.000		Unit	
	Status Sr		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-004417

13	Property Description WEED EATER				Make BLACK & DECKER		Model		Caliber	
	Color Black/Red		Serial No. 150399		Value \$165.00		Qty 1.000		Unit	
	Status Recovered		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

14	Property Description GLASS CABINET DOORS				Make		Model		Caliber	
	Color Other		Serial No.		Value \$50.00		Qty 4.000		Unit	
	Status Stolen		Date 10/10/2020		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

15	Property Description ROUTER				Make CRAFTSMEN		Model		Caliber	
	Color Gray/Black		Serial No.		Value \$100.00		Qty 1.000		Unit	
	Status Stolen		Date 10/10/2020		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

16	Property Description CANON CAMERA				Make CANON		Model		Caliber	
	Color Black		Serial No.		Value \$400.00		Qty 1.000		Unit	
	Status Stolen		Date 10/10/2020		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-004417

17	Property Description SEWING MACHINE				Make SINGER		Model		Caliber	
	Color	Serial No.		Value \$1,200.00		Qty 3.000		Unit	Jurisdiction Locally	
	Status Stolen	Date 10/10/2020	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63	Race W	Sex F	

Notes

\$400 ea [02/16/2021 11:46, HC2924, 3263, PSO]

18	Property Description BAYONET				Make		Model		Caliber	
	Color	Serial No.		Value \$50.00		Qty 1.000		Unit	Jurisdiction Locally	
	Status Recovered	Date 02/24/2021	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex	

Notes

19	Property Description 14KT GOLD TWEETY BIRD CHARM				Make		Model		Caliber	
	Color Gold/Gold	Serial No.		Value \$50.00		Qty 1.000		Unit	Jurisdiction Locally	
	Status Recovered	Date 02/24/2021	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex	

Notes

20	Property Description 14KT GOLD ROPE CHAIN				Make		Model		Caliber	
	Color Gold/Gold	Serial No.		Value \$150.00		Qty 1.000		Unit	Jurisdiction Locally	
	Status Recovered	Date 02/24/2021	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex	

Notes

REPORTING OFFICER NARRATIVE

Pasco Sheriff's Office

OCA 21-004417
Date / Time Reported Fri 02/05/2021 08:26

Victim TUTTLE, KASTINE MARIE	Offense BURGLARY DWELLING, UNOCCUPIED,	
---------------------------------	---	--

RELATED CASES: NONE
STAT DATA: NONE
BWC ACTIVATED: YES
SUPPORT DOCUMENTS: NONE

RECONSTRUCTION: At an unknown date and time between 1100 hours on October 23rd, 2020 and 0930 hours on February 9th, 2021, Christina Hills gained access to the victim's residence by utilizing an unlocked sliding glass door. While inside, Christina removed numerous household items, totaling approximately \$4,460, without the victim's permission. After a request by the victim, a weed eater, blower, mop bucket, and opera glasses were returned to the victim by Matthew Davis, who is the father of Christina's children. Matthew Davis did not have permission from the victim to have these items or be inside the residence.

CRIME SCENE: A single family residence located at 7512 Chenkin Road, Zephyrhills, Florida, 33540.

INTERVIEW: Kastine Tuttle(Victim)

I made contact with Kastine Tuttle who advised the following: Kastine advised in August 2020 while renovating her residence to list for sale, she hired Matthew Davis (Suspect) and Christina Hills (Suspect) to work on bathroom tile and other various home projects. Kastine advised Mathew and Christina also assisted her with packing her belongings away in the garage. Kastine advised he allowed Christina and Matthew stay at her residence in September of 2020 for approximately 4 days and again from October 11th-18th while she was handling family affairs out of state. On October 23rd, 2020 at approximately 1100 hours, Kastine left her residence with about half of her household items and her home posted for sale by William Harilson (Involved Other) with Consult Realty. Kastine advised William and real estate employees with potential buyers were the only people permitted inside her residence while she was in Kentucky. On February 2nd, 2021 at approximately 0930 hours, Kastine said she returned to her residence and discovered many rooms her residence were rearranged and numerous items were missing, some of which were inside a safe stored in the master bedroom closet. Kastine advised she did not observe any signs of forced entry.

Kastine advised the following items were missing from inside the unlocked, Sentry 1170 safe: Hallmark Antique salt and pepper shakers (\$300), Opera Glasses (\$300.00), Gold Ring with stud (\$100.00), Jar with silver dollars (\$20.00, Buffalo Nickels (\$5.00).Kastine said she last observed the items inside the safe on October 10th, 2020. Kastine advised she was in possession of the only two keys for the safe while she was in Kentucky.

Kastine advised the following items were missing from inside the residence: Black and Decker weed eater with charger (\$125.00) and rechargeable battery (\$40.00), Portland Blower (\$100.00), 4 cabinet doors with glass inserts for entertainment center, Silver necklace chain with Sun pendant (\$250.00), Leather working tools (\$1,000.00), Black Decker drill (\$20.00), Canon digital camera (\$400.00), 3 Singer sewing machines (\$1,200), and numerous paint brushes (\$400.00).

Kastine advised on February 2nd, 2021 at 1930 hours, after speaking with Matthew at her residence about her missing items, Matthew returned to her residence and provided her with her stolen Opera glasses. Kastine said Matthew told her he would work on retrieving Kastine's additional items and indicated Christina may have been involved but did not indicate where he located Kastine's items. Kastine would later advise on February 8th, 2021 around 1500 hours, Matthew returned the blower, mop bucket, and weed eater. Kastine advised she had numerous messages from Christina indicating she was inside Kastine's residence while she was away. Kastine advised she received correspondence from William around November 25th, 2020, where he allowed Christina inside the residence and Kastine allowed her to be inside to wash the interior walls and nothing further. Kastine advised on

REPORTING OFFICER NARRATIVE*Pasco Sheriff's Office*

OCA

21-004417

Victim

TUTTLE, KASTINE MARIE

Offense

BURGLARY DWELLING, UNOCCUPIED,

Date / Time Reported

Fri 02/05/2021 08:26

December 26th, 2020, Matthew messaged her on her cell phone with a photograph of a handwritten notecard that matched Kastine's personal bank card information. Kastine advised the card information on the card was for her current cards and proceeded to cancel the relevant cards. Kastine said she believes Christina copied the information down when Christina stayed with her at her residence and Christina did not have permission to use the card information.

INTERVIEW: William Harilson (Witness)

I made contact with William Harilson, who advised the following in a non-custodial interview: William advised Kastine's residence was listed for sale sometime near the end of the October 2020 and he was the acting agent. William advised there was an "E-key" system where potential buyers and their agents would be able to book a showing through an online portal which provided the code to open the lockbox containing the keys on the front door. William said there was at least 15 showings booked through his realty company while Kastine's residence was for sale. William said the showings are not necessarily in company of a realtor however, an access code for the lockbox is obtained through a licensed realtor. William advised on or around November 18th, 2020, he observed Christina with her two children in the pool at Kastine's residence with the front door open. William said he confronted Christina about them being on the property and they could not be there while it was for sale. William advised Christina admitted to him she used the sliding glass door to access the inside of Kastine's residence. William said on November 25th, 2020, he received permission from Kastine to allow Christina inside to clean the interior walls. William said he observed items moved around inside the residence and it appeared someone was sleeping in one of the bedrooms due to the bed blankets being disturbed. William advised he would be able to research a website to view names of individuals that attended a showing at Kastine's residence.

INVESTIGATION: On 2/5/2021 at 0923 hours, I responded to 7512 Chenkin Road in reference to a Grand Theft later reclassified to a Residential Burglary. Upon arrival, I made contact with Kastine Tuttle, who provided the above listed interview.

Deputy F. Venditti conducted an interview with Asheli Cheek (Involved Other), who was present at Kastine's residence when Kastine and Matthew discussed her missing items. Deputy F. Venditti also conducted a neighborhood check (See Deputy Venditti's supplement).

I conducted a perimeter check of the residence and did not observe any signs of forced entry. I observed the master bedroom and empty closet. Kastine advised the safe and items in the closet have since been moved since she noticed the safe opened. I observed the white, Sentry 1170 safe with no signs of forced entry. The safe appeared to be opened with a key only. I observed various documents and a couple small plastic bags of jewelry that Kastine advised were not in the safe previously. I observed the garage which contained an abundance of furniture and household items but did not observe any of the missing items. I took photographs of my observations and uploaded them to Evidence.com with case number. Due to Kastine advising multiple people have since moved the safe from the closet, I did not process for latent fingerprints.

At 1227 hours, I responded to Consult Realty located at 5343 6th street, Zephyrhills, FL and made contact with William Harilson (Involved Other), who advised the above listed interview.

On February 11th, 2021 at 0909 hours, I responded Kastine's residence after receiving phone messages from her advising she had additional information and items to report stolen. I observed the Portland Blower (Serial number 369951923), Black and Decker 20V weed eater (Serial number 150399), and yellow mop bucket Matthew returned to Kastine. I took photographs of the items and relevant messages from Kastine's cell phone and uploaded them to Evidence.com with case number.

REPORTING OFFICER NARRATIVE

Pasco Sheriff's Office

OCA

21-004417

Victim

TUTTLE, KASTINE MARIE

Offense

BURGLARY DWELLING, UNOCCUPIED,

Date / Time Reported

Fri 02/05/2021 08:26

I request this case be forwarded to Property Crimes for further review.

A wants and warrants check on all parties met with negative results.

ICR: 4 hours x \$26.00= \$104.00

CASE SUPPLEMENTAL REPORT

Printed: 03/22/2021 08:40

Pasco Sheriff's Office

OCA: 21004417

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Case Status: *CLEARED BY ARREST*Case Mng Status: *CLEARED WITH ARREST*

Occurred: 10/10/2020

Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*Investigator: *VENDITTI, F. (5236)*

Date / Time: 02/06/2021 08:43:12, Saturday

Supervisor: *DOUGHERTY, T. J. (2269)*

Supervisor Review Date / Time: 02/06/2021 18:16:01, Saturday

Contact:

Reference: *Supplement Completed*

RELATED CASE: None

STAT DATA: Add the following person to the name section:

Asheli Nicole Cheek

BWC ACTIVATED: Yes

SUPPORT DOCUMENTS: None

On 02/05/2021, at 0913 hours I was dispatched to the residence located at 387512 Chenkin Road, Zephyrhills, Florida, 33541 as a back-up deputy for Deputy A. Wright who was investigating a Grand Theft.

At 0923 hours I arrived at location, upon my arrival Deputy A. Wright made contact with caller, Kastine Tuttle and conducted his interview. I made contact and spoke with Kastine's granddaughter, Asheli Cheek who provided me with the following statement; on Tuesday (02/02/2021), her grandmother had sent Matt a message asking him to come over, that she wanted to speak with him. Matt had been helping her grandmother with the small repairs to the house. At approximately noon Matt arrived. Asheli stated that her grandmother told Matt that she had some stuff missing. Asheli stated that Matt looked shocked. Matt stated that he had noticed a mop bucket at his ex-girlfriend, Christine's house and that she had a room that had some stuff he had never seen. He will try to recover what he can and left. Asheli stated that Matt came back to the house at approximately 2130 hours, and brought back one of her grandmother's missing things. Asheli stated that Matt was scared and was saying that he got caught by Christine and they got into a fight. Asheli stated that Matt was saying that Christine is going to have him beat up and that she knows people. Asheli stated that Matt said that he has to run and did not want to put his kids and him in danger so he has to hide out. Asheli stated that her grandmother asked Matt that if she calls the police will he admit to bringing her back her item. Asheli stated that Matt told her, "Mrs. Cas I can't do that, I don't want to be involved." Asheli stated that Matt said to give him till Friday (02/05/2021). Asheli stated that Matt told her grandmother that he was going back to Christine's house at 0400 hours to get his paperwork, but did not say where he was going after that. Asheli stated that Matt left at approximately 2145 hours and she has not seen him since. Asheli did not provide any further information.

I conducted a neighborhood check and responded to the following location:

7528 Chenkin Road, Zephyrhills, FL - spoke with Duncan App (321-332-2142) who stated that he was aware that his neighbor, "Kas" had hired a male to help her with her house. Duncan stated that while Kas out of town he did not see anything suspicious.

A wants and warrants check was met with negative results.

This concluded my involvement in this case.

No further action.

FV

02/05/2021

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RELATED CASE: 21-7710/False Verification of Ownership 21-7711/False Verification of Ownership

STAT DATA: N/A

CASE STATUS: Active

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (2) Probable Cause Affidavits

ICR: 3 x\$26 = \$78

On Tuesday, 02/16/21, I received the related report in reference to Pasco County case number 21-4417/Burglary/Grand Theft.

On Friday, 02/19/21, at 1329 hours, I spoke with Kastine Tuttle, victim, via the telephone number provided, 219-545-2522.

I provided my information to Kastine and I told her I had noticed transactions which were completed by Matthew Davis and Christina Hills and the property they sold/pawned was consistent with the description of the stolen items.

I asked Kastine what day she left her Florida home to go to Kentucky. Kastine stated she left Florida on 10/18/20 to go to Kentucky.

I provided the information to Kastine concerning the items that were pawned/sold by Matthew and Christina to include the following:

1. 11/22/20, 1436 hours Matthew Davis completed a transaction to the business of Pawn Max selling 14KT 18" rope 6.9g necklace and 14KT 1.9 g Tweety Bird pendant
2. 10/29/20 1457 hours, Matthew Davis completed a transaction to the business of Crown Pawn selling a ladies 14KT gold ring band size 6 2.3 stone clear round shape
3. 10/26/20 at 1531 hours, Matthew Davis completed a transaction to the business of Crown Pawn selling a ladies 10KT yellow gold ring band size 7 1.7 and also a 10KT yellow gold ring band size 7 1.4 w/red/pink marquise shape stone .01 clear round stone.
4. 02/14/21, at 1258 hours, Christina Hills completed a transaction to the business of Pawn Max selling a knife gray bayonet knife w/frog

These items were pawned after the date Kastine left to go to Kentucky. NOTE: During this time Matthew stated he

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"borrowed" items from Kastine because he did not think she would mind.

Kastine stated the following, not verbatim: There are several items missing from within her home to include a Crown Royal bag with collectables, additional sewing machines, and a knife. Kastine stated she is currently in Kentucky, however, she would be returning to Florida possibly on Monday, 02/22/21, to clean and paint her Florida home to place it on the market.

Kastine said Christina and Matthew would have access to her home during the time she went to Kentucky and they would have known that she would not be returning to Florida for awhile.

Kastine stated some of the items were given to her when he father passed away and she would like to have them returned. Kastine said she was making attempts to be nice to Matthew with the hope that he would return some of her items.

I asked Kastine how she had been introduced to Matthew Davis and Christina Hills.

Kastine said she hired Matthew and Christina from the Next Door App. Kastine stated she originally hired Matt, however, when he arrived at her home he brought his girlfriend Christina. Kastine said she hired both of them to complete work to her home and pack items so she could move.

Kastine said Matthew and Christina worked on the home for about (3) months and during that time they all became friends. Kastine stated in the beginning they were both good workers and they were doing the work she asked them to do.

Kastine said after knowing the couple for awhile there were times when Matt and Christina would argue and fight and Christina would spend time in her home away from Matt. Kastine said she allowed Christina to spend a night or two on her couch.

Kastine said there was a day when Matt sent her a text message and told her he had her debit card pin numbers and her driver's license.

Kastine said she did not know how he would have her information because she keeps this information inside her purse and there was no way anyone could get that information with the exception of Christina when Christina was in her home. Kastine repeated herself and she said Christina would have had access to her purse when she was staying in her home.

Kastine said she asked Matt how he came to have her information and he told her the information came from Christina.

Kastine said she did not give Christina permission to have the information for her debit card and she did not have permission to have her drivers license.

Kastine said when she left to go to Kentucky for a short period of time she returned and noticed multiple items missing from her home. Kastine said it had to be Matthew and Christina.

Kastine said she made contact with Matt and told her items were missing and she told Matt she was going to call the

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Occurred: 10/10/2020

Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

police.

Kastine said a short time later Matt came to her home with (1) pair of antique opera glasses. Kastine said Matt told her he was "walking on egg shells" around Christina since he got out of jail and he did not know what to do.

Kastine said she told Matthew she wanted her property back and she was calling the police to make a report. Kastine said she wanted Matthew to stay with her when the police arrived, however, Matthew did not want to stay around and wait for the police and he left at that time.

Kastine said she spoke to "Chrissy" and Chrissy told her that she had some of her items. These items included a weed eater, blower, mop bucket, battery charger and charger. Kastine said she wanted Chrissy to return her items and she would give her (1) week. (Kastine stated she was trying to get her items back prior to calling the Sheriff's Office)

Kastine said there was no time that she gave Christina or Matt permission to take any items from her home. Kastine said she paid Christina and Matthew after each job and she told them when she sold her home she would give them a "bonus." Kastine said at no time did she owe Christina any money and she did not give them items from her home as payment.

Kastine said Matt returned the mop bucket one pair of opera glasses and a blower. (The weed eater was not returned at this time.)

Kastine stated there were no jewelry items mentioned or returned to her at this time.

On Friday, 02/19/21, at 1352 hours, I spoke with Matthew Davis via telephone. I provided information pertaining to my conversation with Kastine and I asked Matthew what he thought about the situation and all of the items missing from within Kastine's home.

Matthew stated the following, not verbatim: Chrissy asked him to pawn items belonging to Kastine because she did not have an ID. Matthew said Chrissy told him Kastine gave her the items as payment for some of the jobs she was doing. Matthew said he took jewelry items that belonged to Kastine to sell them.

Matthew said when Kastine went to Kentucky he borrowed her weed wacker, lawn mower and blower. Matthew said he did not think Kastine would mind that he borrowed the items and he planned to get them back to the home prior to her return from Kentucky.

I asked Matthew if he was paid by Kastine for the jobs that were completed. Matthew said he was paid when he did each job.

I asked Matthew if he thought it was odd that Kastine would give Christina jewelry as payment.

Matthew said it was odd. Matthew said he and Christina have not been getting along and they weren't really together.

I asked Matthew if he and Christina were living in the same home. Matthew said they were living in the same home.

Matthew said a couple of weeks ago Kastine sent him a text message and she wanted her things. Matthew said Kastine

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Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

also expressed there were multiple items missing from her home and she suspected that he and Christina had taken the items.

Matthew said he was "walking on egg shells" due to domestic issues and he was sleeping on the couch.

I asked Matthew if Christina was at home at this time. Matthew said yes.

I told Matthew I would like to speak with Christina concerning the stolen items and I wanted to speak with her concerning the location of the remaining items.

At 1407 hours, I made an attempt to contact Christina via the telephone number provided, 813-469-7899, with negative results. There was no option to provide a voice message.

On Tuesday, 02/23/21, at approximately 1330 hours, I made contact with the business of Crown Pawn via telephone. I spoke with the business owner and I provided information concerning the items that were sold by Matthew, (ladies 14KT gold ring band size 6 2.3 stone clear round shape, and ladies 10KT yellow gold ring band size 7 1.7 and also a 10KT yellow gold ring band size 7 1.4 w/red/pink marquise shape stone .01 clear round stone.)

The business owner stated the items were no longer in his store and they had been sold and/or sent to be melted.

At approximately 1345 hours, I responded to Pawn Max in reference to the transaction completed by Christina to include the knife gray bayonet knife w/frog. I also responded to the business in reference to the transaction completed by Matthew to include the 14KT 18" rope 6.9g necklace and 14KT 1.9 g Tweety Bird pendant.

Upon arrival in the store I spoke with Allison Macho. I provided information to Allison concerning Christina Hills and the transaction in reference to the stole knife/bayonet. I also provided information to Allison concerning the 14KT necklace 5g 18" 6.9 gram necklace and the Tweety bird charm.

I asked Allison if she could provide the Florida Pawnbroker transaction forms concerning the transactions. I also asked Allison if she had photographs of the items.

Allison stated the following, not verbatim: The chain necklace item is at a separate store storage unit and she would have an employee go to the storage sight and bring the necklace and the paperwork to this location. The Tweety bird charm was sold the day following the transaction and it is no longer available. Allison said the bayonet is currently at this location and she could provide photographs of the item.

I made contact with Kastine via telephone. I provided information to Kastine concerning the gold chain necklace, Tweety bird charm and the bayonet. I provided photographs of the items to Kastine and I asked her if she recognized any of the items.

Kastine stated the items belong to her. Kastine said the knife/bayonet was her father's and neither Matthew or Christina had permission to have any of the items and they did not have any permission to sell the items.

Kastine stated she would go to the Pawn Max and she would purchase her items from the business on tomorrow's date, Wednesday, 02/24/21.

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Occurred: 10/10/2020

Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

I told Kastine I would be completing the necessary paperwork concerning the transactions and also for the arrest of Matthew Davis and Christina Hills for the offense of False Verification of Ownership. I told Kastine I would call her with any updated information regarding the cases and if/when arrests were made.

At this time probable cause exists for the arrest of Matthew David and Christina Hills.

This case will remain active pending contact with Matthew Davis and Christina Hills.

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Case Status: *CLEARED BY ARREST* Case Mng Status: *CLEARED WITH ARREST* Occurred: *10/10/2020*
Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

Investigator: *WRIGHT-LOVE, L. L. (3775)* Date / Time: *03/05/2021 14:34:32, Friday*
Supervisor: *AREY, Z. A. (1000)* Supervisor Review Date / Time: *03/08/2021 08:33:17, Monday*
Contact: Reference: *Other*

RELATED CASE: 21-7011/False Verification of Ownership 21-7010/False Verification of Ownership

STAT DATA: Add as stolen : a Bayonet valued at \$50.00
14KT gold Tweety Bird Charm valued at \$50.00
18" 14KT gold rope chain valued at \$150.00

CASE STATUS: Active

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (2) Probable Cause Affidavits

ICR: 2 x \$26 = \$52

On Friday, 03/05/21, at 1436 hours, I completed (2) Probable Cause Affidavits for the arrest of Christina Hills and Matthew Davis.

I provided information to patrol deputies and members of the S.T.A.R. team that Probable Cause exists for their arrest.

At this time this case will be active pending contact with Christina and Matthew to be placed under arrest for this incident.

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Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

Investigator: *WRIGHT-LOVE, L. L. (3775)* Date / Time: *03/09/2021 13:12:50, Tuesday*
Supervisor: *AREY, Z. A. (1000)* Supervisor Review Date / Time: *03/15/2021 10:30:26, Monday*
Contact: Reference: *Other*

RELATED CASE: 21-7010/False Verification of Ownership

STAT DATA: change suspect Matthew Aaron Davis to arrested

CASE STATUS: Cleared with arrest

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (1) Probable Cause Affidavit

ICR: 2 \$26 = \$52

LIVE INVEST: Monday, 03/22/21 at 1330 hours.

On Tuesday, 03/09/21, at approximately 1100 hours, I responded to the address which is located at 6819 23rd Street, Zephyrhills. I responded to the address in an attempt to speak with Matthew Aaron Davis and Christine Renee Hills. I responded to the address with Detective Maximino Lebron.

Upon arrival at the home we walked to the south side entrance/exit to the mobile home. Upon walking up the wooden stairs to the home I heard (2) separate voices coming from within the home. I also heard (1) dog barking.

I knocked on the door and there was no answer. I knocked additional times and a brief time later a female's voice stated, "hold on."

A few moments later Christine opened the door to the home and she was talking to the dog as she was exiting the home and navigating on crutches.

I asked Christine if she was okay and she stated the following, not verbatim: She had been hit by a small truck (4) days ago. Christine stated it occurred at approximately 10:30 pm and she did not know who hit her and the person never stopped. Christine stated she called Matthew to come help her and pick her up at that time.

Christine said she was taken to the hospital in Tampa and they told her she had a fractured wrist, and broken tibia. Christine pulled on the leg of her pajamas to reveal multiple lacerations, road rash and swelling on her right leg.

Christine said they would not cast her broken bones and they told her they did not do that any longer. Christine said the hospital told her she would need to go to a doctor's office and they would cast her broken bones.

Christine stated she plans to go to a doctor in a couple of days to get it taken care of.

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At this time I asked her if Matthew was in the home.

Christine stated he was in the back of the home.

I asked her if she had talked to him concerning my conversation with him approximately (2) weeks ago.

Christine said they talked about the call but did not talk about anything specific.

I asked Christine if she would go and get Matthew.

As Christine entered into the home Detective Lebron walked toward the north side of the mobile home to watch potential exits of the home.

A few moments later Christine exited the home alone.

I asked Christine where Matthew was at this time.

Christine stated Matthew was going to come outside.

A brief time later Matthew exited the home.

I introduced myself to him and I asked him if he remembered my conversation with him a couple of weeks ago.

Matthew said he did remember the conversation.

I provided information pertaining to this investigation and I told Matthew and Christine there were items identified by the victim that were sold by both of them. I told Matthew our previous conversation that we had discussed the fact that the jewelry he had pawned was also identified by the victim, Kastine Tuttle, to belong to her.

Matthew did not say anything at this time. Christine began to become nervous as I watched her hands as she was smoking a cigarette and she began to stutter when she spoke.

I also provided information to Christine that Matthew previously told me that he pawned/sold the jewelry items to the pawn shop because Christine told him she did not have identification.

Christine stated she did give the items to him because she did not have identification. Christine said she recently was able to get a new ID card.

I repeated myself and I told Christine that Kastine identified the jewelry items and also the bayonet to belong to her. I told Christine she had sold the bayonet to Pawn Max and recently.

I looked toward Matthew and I asked him if he rembered my conversation with him when we were talking about the items he had returned to Kastine, victim. These items included a mop bucket, weed eater, and opera glasses.

Matthew paused and looked toward Christine.

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Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

Christine stated Kastine knew they had a side job for someone else and Kastine would have known they did not own a lawn mower or any equipment. Christine said Kastine allowed them to use her lawn equipment.

I told Christine Kastine did not allow them to take her items when she was out of the state and she did not give them permission to be in her home.

I told Matthew per my conversation with him, he was in trouble.

Matthew stated, "so, I'm going to jail." Matthew turned to the side at this time and placed his hands to the rear of his back.

Christine asked for a business card at this time and stated she would like to be able to speak with me at a later time.

NOTE: Due to the fact that Christina had been hit by a car and she was on crutches and visibly injured, she was not arrested for case #21-4417/Burglary or case #21-4417/False Verification of Ownership.

Matthew was placed under arrest at this time and he was escorted to my unmarked agency vehicle. Matthew was cooperative during this time and he only stated, "she go me good."

I read Matthew Miranda by card and I asked him if he wanted to talk to me.

Matthew stated, "she really go me." Matthew said they had been arguing for some time and not getting along. Matthew said Christine's boyfriend lives down the road.

Matthew said he shares (3) children with Christine and they are currently staying at Christine's mother's home. Matthew said at one time Christine told him he was going to pay dearly.

Matthew said Christine knows that his sons are his world and she took them away from him.

Matthew said he believed Christine wanted him to be in trouble and now she will take his income tax money. Matthew said Christine will likely take his truck while he is locked up.

I provided the original Probable Cause Affidavit to the transport driver. The COVID questions/paperwork and the property paperwork was completed by me prior to Matthew's transport.

A State Attorney's Live Invest is scheduled, Monday, 03/22/21, at 1330 hours.

Case Number: 21-4417Arrest: XOffense Type: Burglary / Residence

Non-Arrest Referral: _____

Arrest/Referral Date: _____

Invest Date/Time: 3-22-21 1330

Document(s) Submitted:

- ☒ Report(s)
☒ Supplemental Report(s)
☒ P.C. Affidavit(s)
☐ Written Statement(s)
☐ Property Receipt(s)
☐ Vehicle Impound Sheet(s)
☐ LAP Form
☒ Other: Ops Cad

Document(s) Required:

- ☐ Report(s)
☐ Supplemental Report(s)
☐ P.C. Affidavit(s)
☐ Written Statement(s)
☐ Property Receipt(s)
☐ Vehicle Impound Sheet(s)
☐ LAP Form
☐ Other: _____

Comment(s):

Hills - 21 CF 1328Davis - 21 CF 1143

RECEIVED

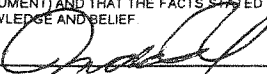
MAR 25 2021

State Attorney's Office
(26)Det. L. Love (ARO)
Requestor's Name (Print)3775
CJIS#[Signature]
Signature3-22-21
Date RequestedArey
Reviewing Supervisor's Name (Print)1000
CJIS#[Signature]
Signature03 22 21
Date Reviewed

PASCO COUNTY COMPLAINT AFFIDAVIT

☒ PSO FLO 510000
☐ DC PD FLO 510100☒ PR PD FLO 510200
☐ FLO 510300☐ PR PD FLO 510400
☐ FHP FLO 279000

ADMINISTRATIVE	ORIS NUMBER	FELONY MISD.		CO. ORD.	SHIFT	CID	SECTOR	SEC	TWP.	RNG	AGENCY REPORT NUMBER	21-004417						
	ARREST	CHECK ALL THAT APPLY		1. FELONY	2. TRAFFIC FELONY	3. MISD	4. MISD. TRAFFIC	5. ORDINANCE	6. OTHER	7. V.O.P.	8. PROBABLE CAUSE	9. CIVIL INF.						
	NOTICE TO APPEAR	CHECK ONLY ONE		MANDATORY APPEARANCE	JUVENILE	REQUEST FOR	CHECK ONLY ONE	CAPIAS	SUMMONS	JUV. PICK-UP	REVIEWED BY ASSISTANT STATE ATTORNEY							
DEFENDANT	LOCATION OF OFFENSE (BUSINESS NAME, ADDRESS)											DATE						
	7512 CHENKIN RD, ZEPHYRHILLS, FL 33540																	
	TIME OF ARREST																	
CO-DEF	JAIL NUMBER	SPN NUMBER	FDLE NUMBER	DOC NUMBER	FBI NUMBER	184453AC0		Domestic Related		Y ☐ N ☒								
	NAME (LAST, FIRST, MIDDLE)																	
	HILLS, CHRISTINA RENEE																	
CHARGE	ALIAS																	
	BAILEY, CHRISTINA																	
	Convicted Sexual Predator / Offender											Y ☐ N ☒						
JUVENILE	AGE	W - WHITE	H - HISPANIC	1 - AMERICAN INDIAN	O - ORIENTAL / ASIAN	CODE	SEX	DATE OF BIRTH	AGE	HEIGHT	WEIGHT	EYE COLOR	HAIR COLOR	COMPLEXION	BUILD			
	W	F	2	02/05/1988	33	5'07"	120	BLUE	OTHER	FAR	SMALL							
	SOARS, MARKS, TATTOOS, ETC.																	
NOTICE	TATT RIGHT FOOT / MOUSE; TATT LEFT FOOT / MOUSE; TATT LEFT CALF / BUTTERFLY; TATT RIGH LEG /											INDICATION OF: ALCOHOL INFLUENCE		Y ☐ N ☒				
	TATT LEFT CALF / BUTTERFLY; TATT RIGH LEG /											DRUG INFLUENCE		Y ☐ N ☒				
	PHYSICAL ADDRESS (STREET & APT #)											(CITY)	(STATE)	ZIP	PHONE	RESIDENCE TYPE	CODE	
PROBABLE CAUSE STATEMENT	6819 23RD ST, ZEPHYRHILLS, FL 33542											(813) 469-7899	1. CITY	3. FLORIDA	2. COUNTY	4. OUT OF STATE	2	
	MAILING ADDRESS (STREET & APT #)											(CITY)	(STATE)	ZIP	PHONE	ADDRESS SOURCE		
	BUSINESS ADDRESS (NAME & STREET)											(CITY)	(STATE)	ZIP	PHONE	OCCUPATION		
ADMINISTRATIVE	GOLDEN CORAL											LANDSCAPER						
	DRIVER'S LICENSE STATE / NUMBER											SOCIAL SECURITY NUMBER	INS NUMBER	PLACE OF BIRTH	CITIZENSHIP			
	FL											GAINESVILLE, FL, US	US					
ADMINISTRATIVE	CO-DEFENDANT NAME (LAST, FIRST, MIDDLE)											RACE	SEX	DATE OF BIRTH	AGE	1. ARRESTED	3. FELONY	CODE
	DAVIS, MATTHEW AARON											W	M	01/05/1988	33	2. AT LARGE	4. MISDEMEANOR	
	CO-DEFENDANT NAME (LAST, FIRST, MIDDLE)											RACE	SEX	DATE OF BIRTH	AGE	1. ARRESTED	3. FELONY	CODE
ADMINISTRATIVE	PARENT											NAME OF PARENT OR CUSTODIAN (LAST, FIRST, MIDDLE)		RESIDENTIAL PHONE				
	LEGAL CUSTODIAN													BUSINESS PHONE				
	ADDRESS (STREET, APT NUMBER)																	
ADMINISTRATIVE	NOTIFIED BY (NAME)											DATE	TIME	JUVENILE DISPOSITION		CODE		
	RELEASED TO (NAME)											RELATIONSHIP	DATE	TIME	1. HANDLED / PROCESSED WITHIN DEPT. AND RELEASED		2. TURNED OVER TO HRS / CYF	
														3. INCARCERATED (COUNTY JAIL)				
ADMINISTRATIVE	CHARGE DESCRIPTION											F.S. ☒ CIVIL INF. ☐ ORD. ☐	STATUTE VIOLATION NUMBER	NCIC #	COURT CASE #			
	BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO											810.02.3B	NO FORCED	2299				
	ACTIVITY											CODE	AMOUNT	TYPE	B. BARBITURATE	H. HALLUCINOGEN	P. PARAPHERNALIA / U. UNKNOWN	CODE
ADMINISTRATIVE	CHARGE DESCRIPTION											F.S. ☐ CIVIL INF. ☐ ORD. ☐	STATUTE VIOLATION NUMBER	NCIC #	COURT CASE #			
	ACTIVITY											CODE	AMOUNT	TYPE	B. BARBITURATE	H. HALLUCINOGEN	P. PARAPHERNALIA / U. UNKNOWN	CODE
ADMINISTRATIVE	REQUEST FOR INVESTIGATIVE COSTS RECOVERY											THE UNDERSIGNED CERTIFIED AND SWEARS THAT HE / SHE HAS JUST AND REASONABLE GROUNDS TO BELIEVE AND DOES BELIEVE THAT THE ABOVE-NAMED DEFENDANT COMMITTED THE FOLLOWING VIOLATION OF LAW:						
	FSS 938.27(1)											ON THE 22 DAY OF November, 2020 AT 12:00 A.M. ☒ P.M. ☐						
	CJIS # 3775																	
ADMINISTRATIVE	# of Investigative hrs. 4 x \$26 = \$104											(SPECIFICALLY INCLUDE FACTS CONSTITUTING CAUSE FOR ARREST.)						
	The Defendant/Christina Hills and the Co-Defendant/Matthew Davis, entered into the victim's home and removed multiple items without the victim's knowledge or consent. The Defendant and the Co-Defendant sold stolen items to the business known as Pawn Max which is located at 6948 Gall Boulevard, Zephyrhills, (PSO case #21-7011/False Verification of Ownership and PSO case #7010/False Verification of Ownership.) The victim identified the sold items to belong to her. The victim hired the Defendant and Co-Defendant to complete work at her home to make it ready to sell when she was present in the home. During the time when the victim left the Florida home and went to Kentucky the Defendant and Co-Defendant entered the home and removed the victim's											*** Continued ***						
ADMINISTRATIVE	P.C. EXISTS FOR CHARGE(S)											JUDGE'S SIGNATURE	DATE					
	I AGREE TO APPEAR AT THE TIME AND PLACE DESIGNATED WHEN I AM NOTIFIED TO ANSWER THE OFFENSE CHARGED OR TO PAY THE FINE SUBSCRIBED. I UNDERSTAND THAT SHOULD I WILLFULLY FAIL TO APPEAR BEFORE THE COURT AS REQUIRED ONCE I AM NOTIFIED, THAT I MAY BE HELD IN CONTEMPT OF COURT AND A WARRANT FOR MY ARREST SHALL BE ISSUED. IF CITED FOR A CIVIL INFRACTION, I AGREE TO APPEAR BEFORE THE COUNTY COURT OR COMPLY WITH THE REQUIREMENTS FOR PAYING THE FINE AND MEETING ANY OTHER SPECIFIED CONDITIONS AS INDICATED ON THE BACK SIDE OF THIS AFFIDAVIT.																	
	SIGNATURE OF DEFENDANT / JUVENILE AND PARENT OR CUSTODIAN											DATE						
ADMINISTRATIVE	MIRANDA WARNING											HOLD FOR FIRST APPEARANCE		DO NOT BOND OUT - REASON:				
	X																	
	UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING DOCUMENT AND THAT THE FACTS STATED IN IT ARE TRUE, TO THE BEST OF MY KNOWLEDGE AND BELIEF.																	
ADMINISTRATIVE	WRIGHT-LOVE, L. L.											3775						
	NAME (PRINTED)											CJIS #						
ADMINISTRATIVE	RIGHT THUMB											DATE	VICTIM NOTIFIED	BOND CHARGE #	BOND CHARGE #			
												YES ☐ NO ☐						
ADMINISTRATIVE	BOND TYPE											3. SURETY	5. CERT.					
	1. ROR											4. BAIL / BOND	6. OTHER					
	2. CASH																	
ADMINISTRATIVE	RETURNABLE COURT DATE											RETURNABLE COURT TIME						
ADMINISTRATIVE	RELEASE DATE											RELEASE TIME						
ADMINISTRATIVE	RELEASING OFFICER											PAGE		PAGE				
												1 OF		2				

DEFENDANT										AGENCY REPORT NO.	
HILLS, CHRISTINA RENEE										21-004417	
CHARGE DESCRIPTION				☐ F.S. ☐ CIVIL ☐ ORD		STATUTE VIOLATION NUMBER		NCIC #		COURT CASE #	
ACTIVITY N. N/A P. POSSESS				S. SELL B. BUY T. TRAFFIC		R. SMUGGLE D. DELIVER E. USE		K. DISPENSE/ DISTRIBUTE		M. MANUFACTURE PRODUCE / CULTIVATE	
CHARGE DESCRIPTION				☐ F.S. ☐ CIVIL ☐ ORD		STATUTE VIOLATION NUMBER		NCIC #		COURT CASE #	
ACTIVITY N. N/A P. POSSESS				S. SELL B. BUY T. TRAFFIC		R. SMUGGLE D. DELIVER E. USE		K. DISPENSE/ DISTRIBUTE		M. MANUFACTURE PRODUCE / CULTIVATE	
Painting supplies, valued at \$40.00, Soldering iron valued at \$40.00, Portland leaf blower valued at \$100.00, Black and Decker drill, valued at \$20.00, Hallmark salt and pepper shakers, valued at \$350.00, opera glasses valued at \$300.00, a 14KT gold ring valued at \$100.00, (20) silver dollars, silver necklace w/sun pendant valued at \$250.00, 14KT gold necklace w/Tweety Bird charm valued at \$250.00, leather tools valued at \$1,000.00, a mop bucket with no value, Black and Decker weed eater, valued at \$165.00, a Cannon Camera valued at \$400.00, (3) sewing machines with a total value of \$1,200.00 and a Craftsman router valued at \$100.00 for a total value of \$4,635.00. The Co-Defendant had a conversation with the victim and he stated he would try to get some of the items returned. A short time later the Co-Defendant returned with the mop bucket, Black and Decker weed eater, opera glasses and Portland Blower. The victim stated the Defendant and Co-Defendant did not have permission to enter her home and take the items and they did not have permission to sell any of her property.											
* * * End * * *											
UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING (DOCUMENT) AND THAT THE FACTS STATED IN IT ARE TRUE, TO THE BEST OF MY KNOWLEDGE AND BELIEF.											
X 											
WRIGHT-LOVE, L. L. 3775											
NAME (PRINTED) C.JIS #											

CLERK OF COURT

Individual's Charge Report

	Name: HILLS, CHRISTINA RENEE (W/F)
	Booking #: 248037
	DOB: 02/05/1988
	Arrest Date: 03/21/2021
	Arrest Time: 00:00:00
	Booking Date: 03/21/2021
	Booking Time: 22:59:00
	Release Date:
Release Time:	
Race: W	
Sex: F	
Gang:	

MugShots

Name	Booking No	Booking Date	Booking Time
HILLS, CHRISTINA RENEE (W/F)	248037	03/21/2021	22:59:00

Home Address	City	State	Zip
6819 23RD ST ZEPHYRHILLS	ZEPHYRHILLS	FL	33542

Status	Facility	Pod	Unit
ACTIVE	CENTRAL BOOKING	A200	A204B

City of Birth	Place of Birth	Current Age	Race	Sex	Hair	Eyes	Height	Weight	Dob
GAINSVILLE	FL	33	W	F	OTH	BLU	507	120	02/05/1988

Arrest Agency	Arrest Date	Arrest Age
PASCO SHERIFFS OFFICE	03/21/2021	33

Booking Notes
[03/22/2021 00:53, VPERALES, 4839, PSO] RT leg compression sock approved per medical. [03/22/2021 00:40, VPERALES, 4839, PSO] PSO wheelchair approved per medical. BBBT per medical for chronic. The Arrest (PKey: 522341) was transferred to 248037 by RF5975 on 03/21/2021 23:02:11.

Arrests & Charges

Arrest Type	Arrest Report#	Arrest Date	Agency	OBTS	Charge No		
ON-VIEW ARREST	21010259	2021/03/21	PSO	5102149432	522341		
Arrest Notes:	On the above listed date and time, while at the offense location placing the defendant under arrest for an unrelated charge, during a post Miranda interview the defendant admitted there was a glass smoking pipe that had trace amounts of methamphetamine in her book bag. I retrieved the pipe from the defendant's book bag and conducted a field presumptive test on it, which yielded positive results for methamphetamine (trace amounts). Based on my investigation, coupled with the defendant admitting she was on possession of the glass pipe and it had trace amounts of meth, I charged the defendant with possession of methamphetamine and possession of paraphernalia.						
Charge Seq	Charge Description	Charge Code	Bond Amt	Court Case#	Felony/Misdemeanor	Charge Type	Disposition
1	METHAMPHETAMINE- POSSESS	893.13.6A PMETH	\$5,000	2021CF001327AES.1	FELONY	STATE	JAIL LAND O LAKES
Charge Notes:							
2	POSSESS OR USE DRUG PARAPHERNALIA	893.147.1	\$150	2021CF001327AES.2	MISDEMEANOR	STATE	JAIL LAND O LAKES
Charge Notes:							

Arrest Type	Arrest Report#	Arrest Date	Agency	OBTS	Charge No
BOOKING - ARREST NOT IN QUEUE	21004417	2021/03/21	PSO	5102149432	522342
Arrest Notes:					

Charge Seq	Charge Description	Charge Code	Bond Amt	Court Case#	Felony/Misdemeanor	Charge Type	Disposition
1	BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY	810.02.3B NO FORCED	\$10,000	2021CF001328AES.1	FELONY	STATE	JAIL LAND O LAKES
Charge Notes:							

Arrest Type	Arrest Report#	Arrest Date	Agency	OBTS	Charge No
BOOKING - ARREST NOT IN QUEUE	21007011	2021/03/21	PSO	5102149432	522343

Arrest Notes:					
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Charge Seq	Charge Description	Charge Code	Bond Amt	Court Case#	Felony/Misdemeanor	Charge Type	Disposition
1	FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS	539.001.8B8A	\$5,000	2021CF001329AES.1	FELONY	STATE	JAIL LAND O LAKES
Charge Notes:							

Go Back

INCIDENT/INVESTIGATION

Internal Copy

I N C I D E N T D A T A	Agency Name Pasco Sheriff's Office		Case# 21-004417	
	ORI FL0510000		Date / Time Reported 02/05/2021 08:26 Fri	
	Location of Incident 7512 Chenkin Rd, Zephyrhills FL 33540-		Last Known Secure 10/10/2020 00:00 Sat	
	Premise Type Home Of Victim-single		Zone/Tract N5	
M O V I C T I M	#1 Crime Incident(s) (Com) Burglary Dwelling, Unoccupied, Unarmed, No Forced Entry - 810.02.3B NO FORCED		Weapon / Tools NOT APPLICABLE	
	#2 Crime Incident (Com) Possession Of Stolen Property Grand 812.014.2C1 POSS		Weapon / Tools	
	#3 Crime Incident ()		Weapon / Tools	
			Entry	
			Exit	
			Security	
Object Of Target/Lawn Equipment, Point of Entry/Sliding Glass Door, Method Of Entry/Unlocked Window/Door, Object Of Target/Camera/Video Equipment, Object Of Target/Household Items, Object Of Target/Jewelry, Object Of Target/Tools/Small Machinery, Offense Type/Burglary				
V I C T I M	# of Victims 1		Type: INDIVIDUAL/ NOT LAW	
	Victim/Business Name (Last, First, Middle) TUTTLE, KASTINE MARIE (WN)		Injury: None	
	Victim of Crime # 1,2		DOB 09/01/1957	
	Age 63		Race W	
	Sex F		Relationship To Offender Z	
	Resident Status Resident		Military Branch/Status	
Home Address 7512 CHENKIN RD, Zephyrhills, FL 33540-		Home Phone 219-545-2522		
Employer Name/Address HOME INSTEAD (CAREGIVER)		Business Phone 813-395-8413		
Mobile Phone 219-545-2522				
VYR		Make		
Model		Style		
Color		Lic/Lis		
VIN				
O T H E R I N V O L V E D	CODES: V- Victim (Denote V2, V3) O = Owner (if other than victim) R = Reporting Person (if other than victim)			
	Type: INDIVIDUAL/ NOT LAW ENFORCEMENT			
	Code IO		Name (Last, First, Middle) HARILSON, WILLIAM EDWARD JR (WY)	
	Victim of Crime #		DOB 07/03/1959	
	Age 61		Race W	
	Sex M		Relationship To Offender	
Resident Status Resident		Military Branch/Status		
Home Address 8037 Hobart Dr Zephyrhills, FL 33540		Home Phone 813-713-1193		
Employer Name/Address Consult Realty (AGENT)		Business Phone		
Mobile Phone				
Type: INDIVIDUAL/ NOT LAW ENFORCEMENT				
Code IO		Name (Last, First, Middle) CHEEK, ASHELI NICOLE (WY)		
Victim of Crime #		DOB 08/30/2001		
Age 19		Race W		
Sex F		Relationship To Offender		
Resident Status Non-Resident		Military Branch/Status		
Home Address 20 Jerry Hardesty Rd Ekron, KY 40117		Home Phone 219-406-3240		
Employer Name/Address		Business Phone		
Mobile Phone				
P R O P E R T Y	L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found			
	("OJ" = Recovered for Other Jurisdiction)			
	VI #	Code	Status	Frm/To
	Value	OJ	QTY	Property Description
	Make/Model	Serial Number		
	1	87	S,R	\$100.00
	1	87	R	\$100.00
	1	42	S	\$250.00
	1	99	S	\$40.00
	1	55	S	\$40.00
	1	99	S	\$50.00
	1	42	S	\$50.00
	1	42	S	\$150.00
	1	55	S	\$1,000.00
	1	55	S	\$20.00
	1	41	S	\$350.00
1	41	S,R	\$300.00	
Officer/ID# WRIGHT, A. J. (PAT2, SO15) (6503) (410)				
Invest ID# WRIGHT-LOVE, L. L. (PAT2, PCU2) (3775)				
Supervisor ROSENBLOOM, M. S. (PAT2, SQ15)				
Case Status Pending/active				
Case Disposition:				
Page 1				

Incident Report Additional Property List

Pasco Sheriff's Office

OCA: 21-004417

Property List (Continued)

Page 2

Status Codes L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found

	VI #	Code	Status Fm/To	Value	OJ	QTY	Property Description	Make/Model	Serial Number
15	1	41	R	\$300.00		1	OPERA GLASSES		
	1	42	S	\$100.00		1	GOLD RING		
	1	61	S	\$20.00		20	SILVER DOLLARS		
	1	61	S	\$5.00		1	BAG OF NUFFALO NICKELS		
	1	13	S,R	\$1.00		1	MOP BUCKET		
20	1	13	R	\$1.00		1	MOP BUCKET		
	1	87	S,R	\$165.00		1	WEED EATER	BLACK & DECKER	150399
	1	87	R	\$165.00		1	WEED EATER	BLACK & DECKER	150399
	1	13	S	\$50.00		4	GLASS CABINET DOORS		
	1	55	S	\$100.00		1	ROUTER	CRAFTSMEN	
	1	31	S	\$400.00		1	CANON CAMERA	CANON	
	1	99	S	\$1,200.00		3	SEWING MACHINE	SINGER	

INCIDENT/INVESTIGATION REPORT

Pasco Sheriff's Office

Case # 21-004417

Status Codes L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found						
D R U G S	UCR	Status	Quantity	Type Measure	Suspected Type	Up to 3 types of activity

Assisting Officers
VENDITTI, F. (5236)

Suspect Hate / Bias Motivated: *None*

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 21-004417

Pasco Sheriff's Office

NARRATIVE

Incident Report Suspect List

Pasco Sheriff's Office

OCA: 21-004417

1	Name (Last, First, Middle) DAVIS, MATTHEW AARON					Also Known As					Home Address 6819 23RD STREET ZEPHYRHILLS, FL 33540 813-895-6318				
	Business Address														
	DOB 01/05/1988	Age 33	Race W	Sex M	Eth N	Hgt 507	Wgt 150	Hair BRO	Eye BRO	Skin MED	Driver's License / State. FL				
Scars, Marks, Tattoos, or other distinguishing features TATT BACK / TRIBAL; TATT NECK / TRIBAL; TATT CHES / A WOMANS LIFE IS LOVE AND A MANS LOVE IS LIFE; TATT RIGH LEG / FROG; TATT ABDO / DEMON; TATT RIGH ARM / FISH, CROSS, BREAST CANCER, PAIN;															
Reported Suspect Detail		Suspect Age		Race		Sex		Eth		Height		Weight		SSN	
Weapon, Type		Feature		Make		Model		Color		Caliber		Dir of Travel		Mode of Travel	
VehYr/Make/Model				Drs		Style		Color		Lic/St		VIN			

Notes

Physical Char

**Hair Length, Short
Hair Facial, Slight Beard
Build, THIN**

2	Name (Last, First, Middle) HILLS, CHRISTINA RENEE					Also Known As BAILEY, CHRISTINA					Home Address 6819 23RD STREET ZEPHYRHILLS, FL 33540 813-469-7899				
	Business Address GOLDEN CORAL, UNEMPLOYED														
	DOB 02/05/1988	Age 32	Race W	Sex F	Eth N	Hgt 507	Wgt 120	Hair OTH	Eye BLU	Skin FAR	Driver's License / State. FL				
Scars, Marks, Tattoos, or other distinguishing features TATT RIGH FOOT / MOUSE; TATT LEFT FOOT / MOUSE; TATT LEFT CALF / BUTTERFLY; TATT RIGH LEG / HEART, FLOWERS; TATT LEFT ARM / BUTTERFLIES; TATT RIGH ABDOMEN / STARS															
Reported Suspect Detail		Suspect Age		Race		Sex		Eth		Height		Weight		SSN	
Weapon, Type		Feature		Make		Model		Color		Caliber		Dir of Travel		Mode of Travel	
VehYr/Make/Model				Drs		Style		Color		Lic/St		VIN			

Notes

Physical Char

**Build, SMALL
Hair Length, Long
Conversation, Polite**

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-004417

1	Property Description PAINTING SUPPLIES			Make		Model		Caliber	
Color Brown		Serial No.		Value \$40.00		Qty 1.000		Unit	
Status Stolen		Date 10/10/2020		NIC #		State #		Local #	
Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	

Notes

2	Property Description SOLDERING IRON			Make		Model		Caliber	
Color		Serial No.		Value \$40.00		Qty 1.000		Unit	
Status Stolen		Date 10/10/2020		NIC #		State #		Local #	
Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	

Notes

3	Property Description BLOWER			Make PORTLAND		Model 3 IN 1		Caliber	
Color Green/Black		Serial No. 369951923		Value \$100.00		Qty 1.000		Unit	
Status Recovered		Date 02/11/2021		NIC #		State #		Local #	
Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	

Notes

4	Property Description SILVER NECKLACE W SUN PENDANT			Make		Model		Caliber	
Color Silver Or		Serial No.		Value \$250.00		Qty 1.000		Unit	
Status Stolen		Date 10/10/2020		NIC #		State #		Local #	
Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	

Notes

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-004417

5	Property Description LEATHER TOOLS				Make		Model		Caliber	
	Color Other	Serial No.		Value \$1,000.00		Qty 1.000		Unit	Jurisdiction Locally	
	Status Stolen	Date 10/10/2020	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63		Race W	Sex F
	Notes									

6	Property Description DRILL				Make BLACK & DECKER		Model		Caliber	
	Color Red/Black	Serial No.		Value \$20.00		Qty 0.000		Unit	Jurisdiction Locally	
	Status Stolen	Date 10/10/2020	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63		Race W	Sex F
	Notes									

7	Property Description SALT AND PEPPER SHAKERS				Make HALLMARK		Model		Caliber	
	Color Silver Or	Serial No.		Value \$350.00		Qty 1.000		Unit	Jurisdiction Locally	
	Status Stolen	Date 10/10/2020	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63		Race W	Sex F
	Notes									

2 inches in height.

8	Property Description OPERA GLASSES				Make		Model		Caliber	
	Color Gold	Serial No.		Value \$300.00		Qty 1.000		Unit	Jurisdiction Locally	
	Status Sr	Date 10/10/2020	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63		Race W	Sex F
	Notes									

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-004417

9	Property Description GOLD RING				Make		Model		Caliber	
	Color Gold		Serial No.		Value \$100.00		Qty 1.000		Unit	
	Status Stolen		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

10	Property Description SILVER DOLLARS				Make		Model		Caliber	
	Color Silver Or		Serial No.		Value \$20.00		Qty 20.000		Unit	
	Status Stolen		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

11	Property Description BAG OF NUFFALO NICKELS				Make		Model		Caliber	
	Color Gray		Serial No.		Value \$5.00		Qty 1.000		Unit	
	Status Stolen		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

12	Property Description MOP BUCKET				Make		Model		Caliber	
	Color Yellow		Serial No.		Value \$1.00		Qty 1.000		Unit	
	Status Sr		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally		OAN							

Notes

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-004417

13	Property Description WEED EATER				Make BLACK & DECKER		Model		Caliber	
	Color Black/Red		Serial No. 150399		Value \$165.00		Qty 1.000		Unit	
	Status Recovered		Date 02/11/2021		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally									

Notes

14	Property Description GLASS CABINET DOORS				Make		Model		Caliber	
	Color Other		Serial No.		Value \$50.00		Qty 4.000		Unit	
	Status Stolen		Date 10/10/2020		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally									

Notes

15	Property Description ROUTER				Make CRAFSTMEN		Model		Caliber	
	Color Gray/Black		Serial No.		Value \$100.00		Qty 1.000		Unit	
	Status Stolen		Date 10/10/2020		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally									

Notes

16	Property Description CANON CAMERA				Make CANON		Model		Caliber	
	Color Black		Serial No.		Value \$400.00		Qty 1.000		Unit	
	Status Stolen		Date 10/10/2020		NIC #		State #		Local #	
	Name (Last, First, Middle) Tuttle, Kastine Marie		DOB 09/01/1957		Age 63		Race W		Sex F	
	Jurisdiction Locally									

Notes

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-004417

17	Property Description SEWING MACHINE				Make SINGER		Model		Caliber	
	Color	Serial No.		Value \$1, 200.00		Qty 3.000		Unit	Jurisdiction Locally	
	Status Stolen	Date 10/10/2020	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) Tuttle, Kastine Marie				DOB 09/01/1957		Age 63	Race W	Sex F	

Notes

\$400 ea [02/16/2021 11:46, HC2924, 3263, PSO]

18	Property Description BAYONET				Make		Model		Caliber	
	Color	Serial No.		Value \$50.00		Qty 1.000		Unit	Jurisdiction Locally	
	Status Stolen	Date 11/22/2020	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex	

Notes

bayonet

19	Property Description 14KT GOLD TWEETY BIRD CHARM				Make		Model		Caliber	
	Color Gold/Gold	Serial No.		Value \$50.00		Qty 1.000		Unit	Jurisdiction Locally	
	Status Stolen	Date 11/22/2020	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex	

Notes

14KT goldTweety Bird charm

20	Property Description 14KT GOLD ROPE CHAIN				Make		Model		Caliber	
	Color Gold/Gold	Serial No.		Value \$150.00		Qty 1.000		Unit	Jurisdiction Locally	
	Status Stolen	Date 11/22/2020	NIC #		State #		Local #		OAN	
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex	

Notes

14KT gold rope chain

REPORTING OFFICER NARRATIVE*Pasco Sheriff's Office*

OCA

21-004417

Victim

TUTTLE, KASTINE MARIE

Offense

BURGLARY DWELLING, UNOCCUPIED,

Date / Time Reported

Fri 02/05/2021 08:26

RELATED CASES: NONE
STAT DATA: NONE
BWC ACTIVATED: YES
SUPPORT DOCUMENTS: NONE

RECONSTRUCTION: At an unknown date and time between 1100 hours on October 23rd, 2020 and 0930 hours on February 9th, 2021, Christina Hills gained access to the victim's residence by utilizing an unlocked sliding glass door. While inside, Christina removed numerous household items, totaling approximately \$4,460, without the victim's permission. After a request by the victim, a weed eater, blower, mop bucket, and opera glasses were returned to the victim by Matthew Davis, who is the father of Christina's children. Matthew Davis did not have permission from the victim to have these items or be inside the residence.

CRIME SCENE: A single family residence located at 7512 Chenkin Road, Zephyrhills, Florida, 33540.

INTERVIEW: Kastine Tuttle(Victim)

I made contact with Kastine Tuttle who advised the following: Kastine advised in August 2020 while renovating her residence to list for sale, she hired Matthew Davis (Suspect) and Christina Hills (Suspect) to work on bathroom tile and other various home projects. Kastine advised Mathew and Christina also assisted her with packing her belongings away in the garage. Kastine advised he allowed Christina and Matthew stay at her residence in September of 2020 for approximately 4 days and again from October 11th-18th while she was handling family affairs out of state. On October 23rd, 2020 at approximately 1100 hours, Kastine left her residence with about half of her household items and her home posted for sale by William Harilson (Involved Other) with Consult Realty. Kastine advised William and real estate employees with potential buyers were the only people permitted inside her residence while she was in Kentucky. On February 2nd, 2021 at approximately 0930 hours, Kastine said she returned to her residence and discovered many rooms her residence were rearranged and numerous items were missing, some of which were inside a safe stored in the master bedroom closet. Kastine advised she did not observe any signs of forced entry.

Kastine advised the following items were missing from inside the unlocked, Sentry 1170 safe: Hallmark Antique salt and pepper shakers (\$300), Opera Glasses (\$300.00), Gold Ring with stud (\$100.00), Jar with silver dollars (\$20.00), Buffalo Nickels (\$5.00).Kastine said she last observed the items inside the safe on October 10th, 2020. Kastine advised she was in possession of the only two keys for the safe while she was in Kentucky.

Kastine advised the following items were missing from inside the residence: Black and Decker weed eater with charger (\$125.00) and rechargeable battery (\$40.00), Portland Blower (\$100.00), 4 cabinet doors with glass inserts for entertainment center, Silver necklace chain with Sun pendant (\$250.00), Leather working tools (\$1,000.00), Black Decker drill (\$20.00), Canon digital camera (\$400.00), 3 Singer sewing machines (\$1,200), and numerous paint brushes (\$400.00).

Kastine advised on February 2nd, 2021 at 1930 hours, after speaking with Matthew at her residence about her missing items, Matthew returned to her residence and provided her with her stolen Opera glasses. Kastine said Matthew told her he would work on retrieving Kastine's additional items and indicated Christina may have been involved but did not indicate where he located Kastine's items. Kastine would later advise on February 8th, 2021 around 1500 hours, Matthew returned the blower, mop bucket, and weed eater. Kastine advised she had numerous messages from Christina indicating she was inside Kastine's residence while she was away. Kastine advised she received correspondence from William around November 25th, 2020, where he allowed Christina inside the residence and Kastine allowed her to be inside to wash the interior walls and nothing further. Kastine advised on

REPORTING OFFICER NARRATIVE

Pasco Sheriff's Office

OCA
21-004417
Date / Time Reported
Fri 02/05/2021 08:26

Victim	Offense	Date / Time Reported
TUTTLE, KASTINE MARIE	BURGLARY DWELLING, UNOCCUPIED,	Fri 02/05/2021 08:26

December 26th, 2020, Matthew messaged her on her cell phone with a photograph of a handwritten notecard that matched Kastine's personal bank card information. Kastine advised the card information on the card was for her current cards and proceeded to cancel the relevant cards. Kastine said she believes Christina copied the information down when Christina stayed with her at her residence and Christina did not have permission to use the card information.

INTERVIEW: William Harilson (Witness)

I made contact with William Harilson, who advised the following in a non-custodial interview: William advised Kastine's residence was listed for sale sometime near the end of the October 2020 and he was the acting agent. William advised there was an "E-key" system where potential buyers and their agents would be able to book a showing through an online portal which provided the code to open the lockbox containing the keys on the front door. William said there was at least 15 showings booked through his realty company while Kastine's residence was for sale. William said the showings are not necessarily in company of a realtor however, an access code for the lockbox is obtained through a licensed realtor. William advised on or around November 18th, 2020, he observed Christina with her two children in the pool at Kastine's residence with the front door open. William said he confronted Christina about them being on the property and they could not be there while it was for sale. William advised Christina admitted to him she used the sliding glass door to access the inside of Kastine's residence. William said on November 25th, 2020, he received permission from Kastine to allow Christina inside to clean the interior walls. William said he observed items moved around inside the residence and it appeared someone was sleeping in one of the bedrooms due to the bed blankets being disturbed. William advised he would be able to research a website to view names of individuals that attended a showing at Kastine's residence.

INVESTIGATION: On 2/5/2021 at 0923 hours, I responded to 7512 Chenkin Road in reference to a Grand Theft later reclassified to a Residential Burglary. Upon arrival, I made contact with Kastine Tuttle, who provided the above listed interview.

Deputy F. Venditti conducted an interview with Asheli Cheek (Involved Other), who was present at Kastine's residence when Kastine and Matthew discussed her missing items. Deputy F. Venditti also conducted a neighborhood check (See Deputy Venditti's supplement).

I conducted a perimeter check of the residence and did not observe any signs of forced entry. I observed the master bedroom and empty closet. Kastine advised the safe and items in the closet have since been moved since she noticed the safe opened. I observed the white, Sentry 1170 safe with no signs of forced entry. The safe appeared to be opened with a key only. I observed various documents and a couple small plastic bags of jewelry that Kastine advised were not in the safe previously. I observed the garage which contained an abundance of furniture and household items but did not observe any of the missing items. I took photographs of my observations and uploaded them to Evidence.com with case number. Due to Kastine advising multiple people have since moved the safe from the closet, I did not process for latent fingerprints.

At 1227 hours, I responded to Consult Realty located at 5343 6th street, Zephyrhills, FL and made contact with William Harilson (Involved Other), who advised the above listed interview.

On February 11th, 2021 at 0909 hours, I responded Kastine's residence after receiving phone messages from her advising she had additional information and items to report stolen. I observed the Portland Blower (Serial number 369951923), Black and Decker 20V weed eater (Serial number 150399), and yellow mop bucket Matthew returned to Kastine. I took photographs of the items and relevant messages from Kastine's cell phone and uploaded them to Evidence.com with case number.

REPORTING OFFICER NARRATIVE

Pasco Sheriff's Office

OCA

21-004417

Victim

TUTTLE, KASTINE MARIE

Offense

BURGLARY DWELLING, UNOCCUPIED,

Date / Time Reported

Fri 02/05/2021 08:26

I request this case be forwarded to Property Crimes for further review.

A wants and warrants check on all parties met

ICR: 4 hours x \$26.00= \$104.00

CASE SUPPLEMENTAL REPORT

Printed: 03/09/2021 13:33

Pasco Sheriff's Office

OCA: 21004417

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *PENDING/ACTIVE* Case Mng Status: *PENDING / ACTIVE* Occurred: *10/10/2020*
Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

Investigator: *VENDITTI, F. (5236)* Date / Time: *02/06/2021 08:43:12, Saturday*
Supervisor: *DOUGHERTY, T. J. (2269)* Supervisor Review Date / Time: *02/06/2021 18:16:01, Saturday*
Contact: Reference: *Supplement Completed*

RELATED CASE: None
STAT DATA: Add the following person to the name section:
Asheli Nicole Cheek
BWC ACTIVATED: Yes
SUPPORT DOCUMENTS: None

On 02/05/2021, at 0913 hours I was dispatched to the residence located at 387512 Chenkin Road, Zephyrhills, Florida, 33541 as a back-up deputy for Deputy A. Wright who was investigating a Grand Theft.

At 0923 hours I arrived at location, upon my arrival Deputy A. Wright made contact with caller, Kastine Tuttle and conducted his interview. I made contact and spoke with Kastine's granddaughter, Asheli Cheek who provided me with the following statement; on Tuesday (02/02/2021), her grandmother had sent Matt a message asking him to come over, that she wanted to speak with him. Matt had been helping her grandmother with the small repairs to the house. At approximately noon Matt arrived. Asheli stated that her grandmother told Matt that she had some stuff missing. Asheli stated that Matt looked shocked. Matt stated that he had noticed a mop bucket at his ex-girlfriend, Christine's house and that she had a room that had some stuff he had never seen. He will try to recover what he can and left. Asheli stated that Matt came back to the house at approximately 2130 hours, and brought back one of her grandmother's missing things. Asheli stated that Matt was scared and was saying that he got caught by Christine and they got into a fight. Asheli stated that Matt was saying that Christine is going to have him beat up and that she knows people. Asheli stated that Matt said that he has to run and did not want to put his kids and him in danger so he has to hide out. Asheli stated that her grandmother asked Matt that if she calls the police will he admit to bringing her back her item. Asheli stated that Matt told her, "Mrs. Cas I can't do that, I don't want to be involved." Asheli stated that Matt said to give him till Friday (02/05/2021). Asheli stated that Matt told her grandmother that he was going back to Christine's house at 0400 hours to get his paperwork, but did not say where he was going after that. Asheli stated that Matt left at approximately 2145 hours and she has not seen him since. Asheli did not provide any further information.

I conducted a neighborhood check and responded to the following location:
7528 Chenkin Road, Zephyrhills, FL - spoke with Duncan App (321-332-2142) who stated that he was aware that his neighbor, "Kas" had hired a male to help her with her house. Duncan stated that while Kas out of town he did not see anything suspicious.

A wants and warrants check was met with negative results.

This concluded my involvement in this case.

No further action.
FV
02/05/2021

CASE SUPPLEMENTAL REPORT

Printed: 03/09/2021 13:33

Pasco Sheriff's Office

OCA: **21004417**

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Case Status: *PENDING/ACTIVE*

Case Mng Status: *PENDING / ACTIVE*

Occurred: *10/10/2020*

Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

CASE SUPPLEMENTAL REPORT

Printed: 03/09/2021 13:33

Pasco Sheriff's Office

OCA: 21004417

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Case Status: *PENDING/ACTIVE* Case Mng Status: *PENDING / ACTIVE* Occurred: *10/10/2020*
Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

Investigator: *WRIGHT-LOVE, L. L. (3775)* (ARC) Date / Time: *02/24/2021 15:17:42, Wednesday*
Supervisor: *AREY, Z. A. (1000)* Supervisor Review Date / Time: *02/25/2021 07:55:09, Thursday*
Contact: Reference: *Other*

RELATED CASE: 21-7710/False Verification of Ownership 21-7711/False Verification of Ownership

STAT DATA: N/A

CASE STATUS: Active

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (2) Probable Cause Affidavits

ICR: 3 x\$26 = \$78

On Tuesday, 02/16/21, I received the related report in reference to Pasco County case number 21-4417/Burglary/Grand Theft.

On Friday, 02/19/21, at 1329 hours, I spoke with Kastine Tuttle, victim, via the telephone number provided, 219-545-2522.

I provided my information to Kastine and I told her I had noticed transactions which were completed by Matthew Davis and Christina Hills and the property they sold/pawned was consistent with the description of the stolen items.

I asked Kastine what day she left her Florida home to go to Kentucky. Kastine stated she left Florida on 10/18/20 to go to Kentucky.

I provided the information to Kastine concerning the items that were pawned/sold by Matthew and Christina to include the following:

1. 11/22/20, 1436 hours Matthew Davis completed a transaction to the business of Pawn Max selling 14KT 18" rope 6.9g necklace and 14KT 1.9 g Tweety Bird pendant
2. 10/29/20 1457 hours, Matthew Davis completed a transaction to the business of Crown Pawn selling a ladies 14KT gold ring band size 6 2.3 stone clear round shape
3. 10/26/20 at 1531 hours, Matthew Davis completed a transaction to the business of Crown Pawn selling a ladies 10KT yellow gold ring band size 7 1.7 and also a 10KT yellow gold ring band size 7 1.4 w/red/pink marquise shape stone .01 clear round stone.
4. 02/14/21, at 1258 hours, Christina Hills completed a transaction to the business of Pawn Max selling a knife gray bayonet knife w/frog

These items were pawned after the date Kastine left to go to Kentucky. NOTE: During this time Matthew stated he

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Case Status: *PENDING/ACTIVE*

Case Mng Status: *PENDING / ACTIVE*

Occurred: *10/10/2020*

Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

"borrowed" items from Kastine because he did not think she would mind.

Kastine stated the following, not verbatim: There are several items missing from within her home to include a Crown Royal bag with collectables, additional sewing machines, and a knife. Kastine stated she is currently in Kentucky, however, she would be returning to Florida possibly on Monday, 02/22/21, to clean and paint her Florida home to place it on the market.

Kastine said Christina and Matthew would have access to her home during the time she went to Kentucky and they would have known that she would not be returning to Florida for awhile.

Kastine stated some of the items were given to her when he father passed away and she would like to have them returned. Kastine said she was making attempts to be nice to Matthew with the hope that he would return some of her items.

I asked Kastine how she had been introduced to Matthew Davis and Christina Hills.

Kastine said she hired Matthew and Christina from the Next Door App. Kastine stated she originally hired Matt, however, when he arrived at her home he brought his girlfriend Christina. Kastine said she hired both of them to complete work to her home and pack items so she could move.

Kastine said Matthew and Christina worked on the home for about (3) months and during that time they all became friends. Kastine stated in the beginning they were both good workers and they were doing the work she asked them to do.

Kastine said after knowing the couple for awhile there were times when Matt and Christina would argue and fight and Christina would spend time in her home away from Matt. Kastine said she allowed Christina to spend a night or two on her couch.

Kastine said there was a day when Matt sent her a text message and told her he had her debit card pin numbers and her driver's license.

Kastine said she did not know how he would have her information because she keeps this information inside her purse and there was no way anyone could get that information with the exception of Christina when Christina was in her home. Kastine repeated herself and she said Christina would have had access to her purse when she was staying in her home.

Kastine said she asked Matt how he came to have her information and he told her the information came from Christina.

Kastine said she did not give Christina permission to have the information for her debit card and she did not have permission to have her drivers license.

Kastine said when she left to go to Kentucky for a short period of time she returned and noticed multiple items missing from her home. Kastine said it had to be Matthew and Christina.

Kastine said she made contact with Matt and told her items were missing and she told Matt she was going to call the

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Case Status: *PENDING/ACTIVE*

Case Mng Status: *PENDING / ACTIVE*

Occurred: 10/10/2020

Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

police.

Kastine said a short time later Matt came to her home with (1) pair of antique opera glasses. Kastine said Matt told her he was "walking on egg shells" around Christina since he got out of jail and he did not know what to do.

Kastine said she told Matthew she wanted her property back and she was calling the police to make a report. Kastine said she wanted Matthew to stay with her when the police arrived, however, Matthew did not want to stay around and wait for the police and he left at that time.

Kastine said she spoke to "Chrissy" and Chrissy told her that she had some of her items. These items included a weed eater, blower, mop bucket, battery charger and charger. Kastine said she wanted Chrissy to return her items and she would give her (1) week. (Kastine stated she was trying to get her items back prior to calling the Sheriff's Office)

Kastine said there was no time that she gave Christina or Matt permission to take any items from her home. Kastine said she paid Christina and Matthew after each job and she told them when she sold her home she would give them a "bonus." Kastine said at no time did she owe Christina any money and she did not give them items from her home as payment.

Kastine said Matt returned the mop bucket one pair of opera glasses and a blower. (The weed eater was not returned at this time.)

Kastine stated there were no jewelry items mentioned or returned to her at this time.

On Friday, 02/19/21, at 1352 hours, I spoke with Matthew Davis via telephone. I provided information pertaining to my conversation with Kastine and I asked Matthew what he thought about the situation and all of the items missing from within Kastine's home.

Matthew stated the following, not verbatim: Chrissy asked him to pawn items belonging to Kastine because she did not have an ID. Matthew said Chrissy told him Kastine gave her the items as payment for some of the jobs she was doing. Matthew said he took jewelry items that belonged to Kastine to sell them.

Matthew said when Kastine went to Kentucky he borrowed her weed wacker, lawn mower and blower. Matthew said he did not think Kastine would mind that he borrowed the items and he planned to get them back to the home prior to her return from Kentucky.

I asked Matthew if he was paid by Kastine for the jobs that were completed. Matthew said he was paid when he did each job.

I asked Matthew if he thought it was odd that Kastine would give Christina jewelry as payment.

Matthew said it was odd. Matthew said he and Christina have not been getting along and they weren't really together.

I asked Matthew if he and Christina were living in the same home. Matthew said they were living in the same home.

Matthew said a couple of weeks ago Kastine sent him a text message and she wanted her things. Matthew said Kastine

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Printed: 03/09/2021 13:33

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Case Status: *PENDING/ACTIVE*

Case Mng Status: *PENDING / ACTIVE*

Occurred: *10/10/2020*

Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

also expressed there were multiple items missing from her home and she suspected that he and Christina had taken the items.

Matthew said he was "walking on egg shells" due to domestic issues and he was sleeping on the couch.

I asked Matthew if Christina was at home at this time. Matthew said yes.

I told Matthew I would like to speak with Christina concerning the stolen items and I wanted to speak with her concerning the location of the remaining items.

At 1407 hours, I made an attempt to contact Christina via the telephone number provided, 813-469-7899, with negative results. There was no option to provide a voice message.

On Tuesday, 02/23/21, at approximately 1330 hours, I made contact with the business of Crown Pawn via telephone. I spoke with the business owner and I provided information concerning the items that were sold by Matthew, (ladies 14KT gold ring band size 6 2.3 stone clear round shape, and ladies 10KT yellow gold ring band size 7 1.7 and also a 10KT yellow gold ring band size 7 1.4 w/red/pink marquise shape stone .01 clear round stone.)

The business owner stated the items were no longer in his store and they had been sold and/or sent to be melted.

At approximately 1345 hours, I responded to Pawn Max in reference to the transaction completed by Christina to include the knife gray bayonet knife w/frog. I also responded to the business in reference to the transaction completed by Matthew to include the 14KT 18" rope 6.9g necklace and 14KT 1.9 g Tweety Bird pendant.

Upon arrival in the store I spoke with Allison Macho. I provided information to Allison concerning Christina Hills and the transaction in reference to the stole knife/bayonet. I also provided information to Allison concerning the 14KT necklace 5g 18" 6.9 gram necklace and the Tweety bird charm.

I asked Allison if she could provide the Florida Pawnbroker transaction forms concerning the transactions. I also asked Allison if she had photographs of the items.

Allison stated the following, not verbatim: The chain necklace item is at a separate store storage unit and she would have an employee go to the storage sight and bring the necklace and the paperwork to this location. The Tweety bird charm was sold the day following the transaction and it is no longer available. Allison said the bayonet is currently at this location and she could provide photographs of the item.

I made contact with Kastine via telephone. I provided information to Kastine concerning the gold chain necklace, Tweety bird charm and the bayonet. I provided photographs of the items to Kastine and I asked her if she recognized any of the items.

Kastine stated the items belong to her. Kastine said the knife/bayonet was her father's and neither Matthew or Christina had permission to have any of the items and they did not have any permission to sell the items.

Kastine stated she would go to the Pawn Max and she would purchase her items from the business on tomorrow's date, Wednesday, 02/24/21.

CASE SUPPLEMENTAL REPORT

Printed: 03/09/2021 13:33

Pasco Sheriff's Office

OCA: **21004417**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *PENDING/ACTIVE*

Case Mng Status: *PENDING / ACTIVE*

Occurred: *10/10/2020*

Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

I told Kastine I would be completing the necessary paperwork concerning the transactions and also for the arrest of Matthew Davis and Christina Hills for the offense of False Verification of Ownership. I told Kastine I would call her with any updated information regarding the cases and if/when arrests were made.

At this time probable cause exists for the arrest of Matthew David and Christina Hills.

This case will remain active pending contact with Matthew Davis and Christina Hills.

CASE SUPPLEMENTAL REPORT

Printed: 03/09/2021 13:33

Pasco Sheriff's Office

OCA: 21004417

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *PENDING/ACTIVE* Case Mng Status: *PENDING / ACTIVE* Occurred: *10/10/2020*
Offense: *BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO FORCED ENTRY*

Investigator: *WRIGHT-LOVE, L. L. (3775)* Date / Time: *03/05/2021 14:34:32, Friday*
Supervisor: *AREY, Z. A. (1000)* Supervisor Review Date / Time: *03/08/2021 08:33:17, Monday*
Contact: Reference: *Other*

RELATED CASE: 21-7011/False Verification of Ownership 21-7010/False Verification of Ownership

STAT DATA: Add as stolen : a Bayonet valued at \$50.00
14KT gold Tweety Bird Charm valued at \$50.00
18" 14KT gold rope chain valued at \$150.00

CASE STATUS: Active

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (2) Probable Cause Affidavits

ICR: 2 x \$26 = \$52

On Friday, 03/05/21, at 1436 hours, I completed (2) Probable Cause Affidavits for the arrest of Christina Hills and Matthew Davis.

I provided information to patrol deputies and members of the S.T.A.R. team that Probable Cause exists for their arrest.

At this time this case will be active pending contact with Christina and Matthew to be placed under arrest for this incident.

ISE SUPPLEMENTAL REPORT
NOT SUPERVISOR APPROVED

Printed: 03/09/2021 13:33

OCA: **21004417**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Investigator: *WRIGHT-LOVE, L. L. (3775)*

Date / Time: *03/09/2021 13:12:50, Tuesday*

Supervisor: *(0)*

Supervisor Review Date / Time: *NOT REVIEWED*

Contact:

Reference: *Other*

RELATED CASE: 21-7010/False Verification of Ownership

STAT DATA: change suspect Matthew Aaron Davis to arrested

CASE STATUS: Cleared with arrest

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (1) Probable Cause Affidavit

ICR: 2 \$26 = \$52

LIVE INVEST: Monday, 03/22/21 at 1330 hours.

On Tuesday, 03/09/21, at approximately 1100 hours, I responded to the address which is located at 6819 23rd Street, Zephyrhills. I responded to the address in an attempt to speak with Matthew Aaron Davis and Christine Renee Hills. I responded to the address with Detective Maximino Lebron. (J/10)

Upon arrival at the home we walked to the south side entrance/exit to the mobile home. Upon walking up the wooden stairs to the home I heard (2) separate voices coming from within the home. I also heard (1) dog barking.

I knocked on the door and there was no answer. I knocked additional times and a brief time later a female's voice stated, "hold on."

A few moments later Christine opened the door to the home and she was talking to the dog as she was exiting the home and navigating on crutches.

I asked Christine if she was okay and she stated the following, not verbatim: She had been hit by a small truck (4) days ago. Christine stated it occurred at approximately 10:30 pm and she did not know who hit her and the person never stopped. Christine stated she called Matthew to come help her and pick her up at that time.

Christine said she was taken to the hospital in Tampa and they told her she had a fractured wrist, and broken tibia. Christine pulled on the leg of her pajamas to reveal multiple lacerations, road rash and swelling on her right leg.

Christine said they would not cast her broken bones and they told her they did not do that any longer. Christine said the

ASE SUPPLEMENTAL REPORT
NOT SUPERVISOR APPROVED

Printed: 03/09/2021 13:33

OCA: **21004417**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Investigator: *WRIGHT-LOVE, L. L. (3775)*

Date / Time: *03/09/2021 13:12:50, Tuesday*

Supervisor: *(0)*

Supervisor Review Date / Time: *NOT REVIEWED*

Contact:

Reference: *Other*

hospital told her she would need to go to a doctor's office and they would cast her broken bones.

Christine stated she plans to go to a doctor in a couple of days to get it taken care of.

At this time I asked her if Matthew was in the home.

Christine stated he was in the back of the home.

I asked her if she had talked to him concerning my conversation with him approximately (2) weeks ago.

Christine said they talked about the call but did not talk about anything specific.

I asked Christine if she would go and get Matthew.

As Christine entered into the home Detective Lebron walked toward the north side of the mobile home to watch potential exits of the home.

A few moments later Christine exited the home alone.

I asked Christine where Matthew was at this time.

Christine stated Matthew was going to come outside.

A brief time later Matthew exited the home.

I introduced myself to him and I asked him if he remembered my conversation with him a couple of weeks ago.

Matthew said he did remember the conversation.

I provided information pertaining to this investigation and I told Matthew and Christine there were items identified by the victim that were sold by both of them. I told Matthew our previous conversation that we had discussed the fact that the jewelry he had pawned was also identified by the victim, Kastine Tuttle, to belong to her.

Matthew did not say anything at this time. Christine began to become nervous as I watched her hands as she was smoking a cigarette and she began to stutter when she spoke.

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Investigator: *WRIGHT-LOVE, L. L. (3775)*

Date / Time: *03/09/2021 13:12:50, Tuesday*

Supervisor: *(0)*

Supervisor Review Date / Time: *NOT REVIEWED*

Contact:

Reference: *Other*

I also provided information to Christine that Matthew previously told me that he pawned/sold the jewelry items to the pawn shop because Christine told him she did not have identification.

Christine stated she did give the items to him because she did not have identification. Christine said she recently was able to get a new ID card.

I repeated myself and I told Christine that Kastine identified the jewelry items and also the bayonet to belong to her. I told Christine she had sold the bayonet to Pawn Max and recently.

I looked toward Matthew and I asked him if he remembered my conversation with him when we were talking about the items he had returned to Kastine, victim. These items included a mop bucket, weed eater, and opera glasses.

Matthew paused and looked toward Christine.

Christine stated Kastine knew they had a side job for someone else and Kastine would have known they did not own a lawn mower or any equipment. Christine said Kastine allowed them to use her lawn equipment.

I told Christine Kastine did not allow them to take her items when she was out of the state and she did not give them permission to be in her home.

I told Matthew per my conversation with him, he was in trouble.

Matthew stated, "so, I'm going to jail." Matthew turned to the side at this time and placed his hands to the rear of his back.

Christine asked for a business card at this time and stated she would like to be able to speak with me at a later time.

NOTE: Due to the fact that Christina had been hit by a car and she was on crutches and visibly injured, she was not arrested for case #21-4417/Burglary or case #21-4417/False Verification of Ownership.

Matthew was placed under arrest at this time and he was escorted to my unmarked agency vehicle. Matthew was cooperative during this time and he only stated, "she go me good."

I read Matthew Miranda by card and I asked him if he wanted to talk to me.

CASE SUPPLEMENTAL REPORT

Printed: 03/09/2021 13:33

*NOT SUPERVISOR APPROVED*OCA: **21004417**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Investigator: *WRIGHT-LOVE, L. L. (3775)*Date / Time: *03/09/2021 13:12:50, Tuesday*Supervisor: *(0)*Supervisor Review Date / Time: *NOT REVIEWED*

Contact:

Reference: *Other*

Matthew stated, "she really go me." Matthew said they had been arguing for some time and not getting along. Matthew said Christine's boyfriend lives down the road.

Matthew said he shares (3) children with Christine and they are currently staying at Christine's mother's home. Matthew said at one time Christine told him he was going to pay dearly.

Matthew said Christine knows that his sons are his world and she took them away from him.

Matthew said he believed Christine wanted him to be in trouble and now she will take his income tax money. Matthew said Christine will likely take his truck while he is locked up.

I provided the original Probable Cause Affidavit to the transport driver. The COVID questions/paperwork and the property paperwork was completed by me prior to Matthew's transport.

A State Attorney's Live Invest is scheduled, Monday, 03/22/21, at 1330 hours.

Transaction Report

Jurisdiction: PascoFL

Type: Pawn

Date: 10/29/2020 2:57 PM

Customer Information

No customer picture taken

Photo Taken On: N/A

Conducted By: DM (8936)

Suffix:

Last Name: davis

First Name: matthew

Mid. Name: a

Alias:

Gender: Male

Birth Date: 01/05/1988

Birth Place:

Height: 5' 8"

Weightlbs: 170

Build:

Eye Color: Blue

Hair Color: Brown

Facial Hair:

Features:

Race: White

Residence

Street Address 1: 6819 23rd st

State: FL

Cell Phone:

Street Address 2:

Zip/Postal Code: 33542

Work Phone:

City: zeph

Home Phone: 8138356318

Identification

No customer ID picture taken

Class: Driver (Photo)

Number:

Issuer: Florida

Fingerprint

No finger print was scanned

Finger Type: N/A

Scanned On: N/A

Please, wait...

Signature

No signature taken

Vehicle

Veh. Make:

Veh. Lic.:

Veh. Model:

Veh. Lic. St.:

Veh. Color:

Employer

Name: unemployed

State:

Address:

Zip/Postal Code:

City:

Phone:

Store

Name: CROWN JEWELRY &
PAWN

Phone: 813-788-2520

Source Trans. Id: 33923885

Address: 5355 GALL BLVD.

Zip/Postal Code: 33542

Receipt: 4978

City / State: ZEPHYRHILLS, FL

License:

Ticket: 035008 ✕

Ownership Declaration:

Transaction Items

Item ID: 74773312

Class: Jewelry

SubClass: Ring

Serial:

Manufacturer:

Model:

Color:

Weight:

Markings:

Gender:

Size / Year:

Condition:

Quantity: 1.0000

Price: \$50.00

PropertyValue,: \$0.00

Veh. Title #:

Veh. Reg. St.:

Modified:

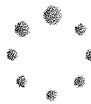
no item photo available

Item Description: Ladies' 14K Yellow Gold Ring Band, Size: 6, Weight: 2.3, stone 1: .20 Clear Round shape, stone 2 (10x): .01 Clear Round shape,

Comments:

Change History

Event Date	User Name	Event	Comment
10/29/2020	RPDSS Dealer Reporting Site	Created	



Please, wait...

Transaction Report

Jurisdiction: PascoFL

Type: Pawn

Date: 10/26/2020 3:31 PM

Customer Information

No customer picture taken

Suffix:

Height: 5' 8"

Photo Taken On: N/A

Last Name: davis

Weightlbs: 170

Conducted By: DM (8936)

First Name: matthew

Build:

Mid. Name: a

Eye Color: Blue

Alias:

Hair Color: Brown

Gender: Male

Facial Hair:

Birth Date: 01/05/1988

Features:

Birth Place:

Race: White

Residence

Street Address 1: 6819 23rd st

Street Address 2:

City: zeph

State: FL

Zip/Postal Code: 33542

Home Phone: 8138356318

Cell Phone:

Work Phone:

Identification

No customer ID picture taken

Fingerprint

No finger print was scanned

Signature

No signature taken

Class: Driver (Photo)

Finger Type: N/A

Number:

Scanned On: N/A

Issuer:

Please, wait...

Vehicle

Veh. Make:

Veh. Model:

Veh. Color:

Veh. Lic.:

Veh. Lic. St.:

Employer

Name: unemployed

Address:

City:

State:

Zip/Postal Code:

Phone:

Store

Name: CROWN JEWELRY &
PAWN

Address: 5355 GALL BLVD.
Zip/Postal Code: 33542

City / State: ZEPHYRHILLS, FL

Phone: 813-788-2520

Receipt: 4968

License:

Ticket: 034998 X

Source Trans. Id: 33896027

Ownership Declaration:

Transaction Items

Item ID: 74717250

Gender:

No item photo available

Class: Jewelry

Size / Year:

SubClass: Ring

Condition:

Serial:

Quantity: 1.0000

Manufacturer:

Price: \$20.00

Model:

PropertyValue,: \$0.00

Color:

Veh. Title #:

Weight:

Veh. Reg. St.:

Markings:

Modified:

Item Description: Ladies' 10K Yellow Gold Ring Band, Size: 7, Weight: 1.7, 5x .01ct. Clear Round shape stone

Item ID: 74717251

Gender:

No item photo available

Class: Jewelry

Size / Year:

SubClass: Ring

Condition:

Serial:

Quantity: 1.0000

Manufacturer:

Price: \$20.00

Model:

PropertyValue,: \$0.00

Color:

Veh. Title #:

Weight:

Veh. Reg. St.:

Markings:

Modified:

Item Description: Ladies' 10K Yellow Gold Ring Band, Size: 7, Weight: 1.4, stone 1: .10 Red/Pink Marquise shape, stone 2 (12x): .01 Clear Round shape

Please, wait...

Comments:

Change History

Event Date	User Name	Event	Comment
10/26/2020	RPDSS Dealer Reporting Site	Created	

Case Number: 21-7010Arrest: XOffense Type: Falsification of Ownership

Non-Arrest Referral: _____

Arrest/Referral Date: 3-9-21Invest Date/Time: 3-22-21 1330

Document(s) Submitted:

- ☒ Report(s)
☒ Supplemental Report(s)
☒ P.C. Affidavit(s)
☐ Written Statement(s)
☐ Property Receipt(s)
☐ Vehicle Impound Sheet(s)
☐ LAP Form
☒ Other: ICR Doc photo
photos pawnshop
Forensics request

Document(s) Required:

- ☐ Report(s)
☐ Supplemental Report(s)
☐ P.C. Affidavit(s)
☐ Written Statement(s)
☐ Property Receipt(s)
☐ Vehicle Impound Sheet(s)
☐ LAP Form
☐ Other: _____

Comment(s): Davis -

RECEIVED

MAR 11 2021

State Attorney's Office
(26)Det. L. L. Lave

Requestor's Name (Print)

3775

CJIS#

[Signature]

Signature

3-9-21

Date Requested

Arey

Reviewing Supervisor's Name (Print)

1000

CJIS#

[Signature]

Signature

031021

Date Reviewed

CALCULATION SHEET

To: The Honorable Bernard J. McCabe, State Attorney Sixth Judicial Circuit

Attention: _____

From: Detective Linda Love CJS #: 3775 Telephone: (352) 518-5022

Defendant: Matthew Davis Court Case: _____

PSO Report #: 21-7010 Date of Report: 03/09/2021

The following are the actual expenses incurred by the Pasco Sheriff's Office in conducting the investigation of the above captioned defendant. We request the court include these investigative costs and/or salaries in the judgement against the defendant, or as a condition of the defendant's probation or community control.

Name	CJIS #	Date(s) of Investigation	Number of Hours	X	Hourly Pay Rate	=	Cost
Detective Linda Love	3775	02/16/21	1	x	\$26	=	26.00
Detective Linda Love	3775	02/19/21	2	x	\$26	=	52.00
Detective Linda Love	3775	02/23/21	2	x	\$26	=	52.00
Detective Linda Love	3775	03/09/21	2	x	\$26	=	52.00
				x		=	0.00
				x		=	0.00
				x		=	0.00
				x		=	0.00
				x		=	0.00
				x		=	0.00
				x		=	0.00
				x		=	0.00
				x		=	0.00
				x		=	0.00
							0.00

TOTAL SALARIES THIS PAGE: 182.00

Detective Linda Love	3775		3-9-21
NAME	CJIS #	SIGNATURE	DATE
Arey	1000		07/02/
NAME	CJIS #	SIGNATURE	DATE

INCIDENT/INVESTIGATION

Internal Copy

I N C I D E N T D A T A	Agency Name Pasco Sheriff's Office		Case# 21-007010					
	ORI FL0510000		Date / Time Reported 02/24/2021 10:39 Wed					
	Location of Incident 6948 Gall Blvd, Zephyrhills Incorpor FL 33542-		Premise Type All Other	Zone/Tract N5				
	At Found 02/19/2021 00:00 Fri		Last Known Secure 11/22/2020 14:36 Sun					
M O V I C T I M	#1	Crime Incident(s) False Verification Of Ownership Lt 300 Dols - 539.001.8B8A	(Com) F	Weapon / Tools NOT APPLICABLE	Activity			
	#2	Crime Incident	()	Entry	Exit			
				Security				
	#3	Crime Incident	()	Entry	Exit			
				Security				
	MO							
V I C T I M	# of Victims	Type: INDIVIDUAL/ NOT LAW		Injury: None	Domestic: N			
	V1	Victim/Business Name (Last, First, Middle) TUTTLE, KASTINE MARIE (WN)		Victim of Crime # 1,	DOB 09/01/1957			
	Home Address 7512 CHENKIN RD, Zephyrhills, FL 33540-		Home Phone 219-545-2522					
	Employer Name/Address HOME INSTEAD (CAREGIVER)		Business Phone 813-395-8413		Mobile Phone 219-545-2522			
	VYR	Make	Model	Style	Color			
	Lic/Lis	VIN						
O T H E R S I N V O L V E D	CODES: V- Victim (Denote V2, V3) O = Owner (if other than victim) R = Reporting Person (if other than victim)							
	Type: INDIVIDUAL/ NOT LAW ENFORCEMENT		Injury:					
	Code	Name (Last, First, Middle) VANBLARGEN, ALICIA (W)	Victim of Crime #	DOB Age	Race W			
	Home Address 6948 Gall Boulevard Zephyrhills, FL 33542		Home Phone					
	Employer Name/Address PAWN MAX, 6948 Gall Boulevard (SALES)		Business Phone 813-395-8843		Mobile Phone			
	Type:	Injury:						
P R O P E R T Y	Code	Name (Last, First, Middle)	Victim of Crime #	DOB Age	Race W			
	Home Address		Home Phone					
	Employer Name/Address		Business Phone		Mobile Phone			
	L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found ("OJ" = Recovered for Other Jurisdiction)							
	VI #	Code	Status Frm/Tc	Value	OJ			
	QTY	Property Description	Make/Model	Serial Number				
42	R		\$50.00		1	JEWELRY/PRECIOUS METALS		
42	INFO		\$50.00		1	JEWELRY/PRECIOUS METALS		
99	6		\$0.00		0	FLORIDA PAWNBROKER TRANSACTION FORM #140		
Officer/ID# WRIGHT-LOVE, L. L. (PAT2, PCU2) (3775) (ALC)								
Invest ID# WRIGHT-LOVE, L. L. (PAT2, PCU2) (3775)								
Supervisor AREY, Z. A. (PAT2, PCU2) (1000)								
Status	Complainant Signature		Case Status Pending/active		Case Disposition:		Page 1	

INCIDENT/INVESTIGATION REPORT

Pasco Sheriff's Office

Case # 21-007010

Status Codes L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found

D R U G S	UCR	Status	Quantity	Type Measure	Suspected Type	Up to 3 types of activity

Assisting Officers

Suspect Hate / Bias Motivated: *None*

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 21-007010

Pasco Sheriff's Office

NARRATIVE

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-007010

1	Property Description JEWELRY/PRECIOUS METALS			Make		Model		Caliber	
	Color	Serial No.	Value \$50.00		Qty 1.000	Unit	Jurisdiction Locally		
	Status Recovered	Date 02/23/2021	NIC #	State #		Local #		OAN	
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex

Notes

14KT 18" rope chain

2	Property Description JEWELRY/PRECIOUS METALS			Make		Model		Caliber	
	Color	Serial No.	Value \$50.00		Qty 1.000	Unit	Jurisdiction Locally		
	Status Information Only	Date 02/23/2021	NIC #	State #		Local #		OAN	
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex

Notes

Tweety Bird Charm

3	Property Description FLORIDA PAWNBROKER TRANSACTION FORM #140			Make		Model		Caliber	
	Color	Serial No.	Value \$0.00		Qty 0.000	Unit	Jurisdiction Locally		
	Status Evidence/seized	Date 11/22/2020	NIC #	State #		Local #		OAN	
	Name (Last, First, Middle) Pawn Max, Pawn Max				DOB		Age 0	Race	Sex

Notes

;;

REPORTING OFFICER NARRATIVE*Pasco Sheriff's Office*

OCA

21-007010

Victim

TUTTLE, KASTINE MARIE

Offense

FALSE VERIFICATION OF OWNERSHIP LT

Date / Time Reported

Wed 02/24/2021 10:39

RELATED CASES: 21-4417/Burglary/Grand Theft 21-7011/False Verification of Ownership

STAT DATA: N/A

CASE STATUS: Active

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (1) Probable Cause Affidavit

ICR: 4 x \$26 = \$104

On Tuesday, 02/16/21, I received the related report in reference to Pasco County case number 21-4417/Burglary/Grand Theft.

On Friday, 02/19/21, at 1329 hours, I spoke with Kastine Tuttle, victim, via the telephone number provided, 219-545-2522.

I provided my information to Kastine and I told her I had noticed transactions which were completed by Matthew Davis and Christina Hills and the property they sold/pawned was consistent with the description of the stolen items.

I provided the information to Kastine concerning the items that were pawned/sold by Matthew and Christina to include the following:

1. 11/22/20, 1436 hours Matthew Davis completed a transaction to the business of Pawn Max selling 14KT 18" rope 6.9g necklace and 14KT 1.9 g Tweety Bird pendant
2. 10/29/20 1457 hours, Matthew Davis completed a transaction to the business of Crown Pawn selling a ladies 14KT gold ring band size 6 2.3 stone clear round shape
3. 10/26/20 at 1531 hours, Matthew Davis completed a transaction to the business of Crown Pawn selling a ladies 10KT yellow gold ring band size 7 1.7 and also a 10KT yellow gold ring band size 7 1.4 w/red/pink marquise shape stone .01 clear round stone.
4. 02/14/21, at 1258 hours, Christina Hills completed a transaction to the business of Pawn Max selling a knife gray bayonet knife w/frog

Kastine stated the following, not verbatim: There are several items missing from within her home to include a Crown Royal bag with collectables, additional sewing machines, and a knife. Kastine stated she is currently in Kentucky, however, she would be returning to Florida possibly on Monday, 02/22/21, to clean and paint her Florida home to place it on the market.

Kastine said she hired Matthew and Christina from the Next Door App. Kastine stated she originally hired Matt, however, when he arrived at her home he brought his girlfriend Christina. Kastine said she hired both of them to complete work to her home and pack items so she could move.

Kastine said Matthew and Christina worked on the home for about (3) months and during that time they all became friends. Kastine said there were times when Matt and Christina would argue and fight and Christina would spend time at her home away from Matt.

Kastine said there was a day when Matt sent her a text message and told her he had her debit card pin numbers and

REPORTING OFFICER NARRATIVE*Pasco Sheriff's Office*

OCA

21-007010

Victim

TUTTLE, KASTINE MARIE

Offense

FALSE VERIFICATION OF OWNERSHIP LT

Date / Time Reported

Wed 02/24/2021 10:39

her driver's license. Kastine said she keeps this information inside her purse and there was no way anyone could get that information with the exception of Christina. Kastine said Christina would have had access to her purse when she was staying in her home.

Kastine said she asked Matt how he came to have her information and he told her the information came from Christina.

Kastine said she did not give Christina permission to have the information for her debit card and she did not have permission to have her drivers license.

Kastine said she left to go to Kentucky for a short period of time and when she returned she noticed multiple items missing from her home to include the items reported in the related Burglary case.

Kastine said she made contact with Matt and told her items were missing and she told Matt she was going to call the police.

Kastine said a short time later Matt came to her home with (1) pair of antique opera glasses. Kastine said Matt told her he was "walking on egg shells" around Christina since he got out of jail and he did not know what to do.

Kastine said she told Matthew she wanted her property back and she was calling the police to make a report. Kastine said Matthew did not want to stay around and wait for the police and he left.

Kastine said she spoke to "Chrissy" and Chrissy told her that she had some of her items. These items included a weed eater, blower, mop bucket, battery charger and charger.

Kastine said there was no time that she gave Christine or Matt permission to take any items from her home at any time. Kastine said she paid Christina and Matthew after each job and she told them when she sold her home she would give them a "bonus." Kastine said at no time did she owe Christina any money and she did not give them items from her home as payment.

Kastine said Matt returned the mop bucket one pair of opera glasses and a blower. (The weed eater was not returned at this time.)

Kastine stated there were no jewelry items mentioned or returned to her at this time.

I asked Christina if there was any further items missing from within her home that she had noticed after the initial report.

On Friday, 02/19/21, at 1352 hours, I spoke with Matthew Davis via telephone. I provided information pertaining to my conversation with Kastine and I asked Matthew what he thought about the situation and all of the items missing from within Kastine's home. I asked Matthew if he had sold any of the jewelry items belonging to Kastine.

Matthew stated the following, not verbatim: Chrissy asked him to pawn items belonging to Kastine because she did not have an ID. Matthew said Chrissy told him Kastine gave her the items as payment for some of the jobs she was doing. Matthew said he took jewelry items that belonged to Kastine to sell them.

Matthew said when Kastine went to Kentucky he borrowed her weed wacker, lawn mower and blower. Matthew said he did not think Kastine would mind that he borrowed the items and he planned to get them back to the home prior to her return from Kentucky.

REPORTING OFFICER NARRATIVE*Pasco Sheriff's Office*

OCA

21-007010

Victim

TUTTLE, KASTINE MARIE

Offense

FALSE VERIFICATION OF OWNERSHIP LT

Date / Time Reported

Wed 02/24/2021 10:39

I asked Matthew if he was paid by Kastine for the jobs that were completed. Matthew said he was paid when he did each job.

I asked Matthew if he thought it was odd that Kastine would give Christina jewelry as payment.

Matthew said it was odd. Matthew said he and Christina have not been getting along and they weren't really together.

I asked Matthew if he and Christina were living in the same home. Matthew said they were living in the same home.

Matthew said a couple of weeks ago Kastine sent him a text message and she wanted her things. Matthew said Kastine also expressed there were multiple items missing from her home and she suspected they had taken the items.

Matthew said he was "walking on egg shells" due to domestic issues and he was sleeping on the couch.

I asked Matthew if Christina was at home at this time. Matthew said yes.

I told Matthew I would like to speak with Christina concerning the stolen items and I wanted to speak with her concerning the location of the remaining items.

At 1407 hours, I made an attempt to contact Christina via the telephone number provided, 813-469-7899, with negative results. There was no option to provide a voice message.

On Tuesday, 02/23/21, at approximately 1330 hours, I made contact with the business of Crown Pawn via telephone. I spoke with the business owner and I provided information concerning the items that were sold by Matthew, (ladies 14KT gold ring band size 6 2.3 stone clear round shape, and ladies 10KT yellow gold ring band size 7 1.7 and also a 10KT yellow gold ring band size 7 1.4 w/red/pink marquise shape stone .01 clear round stone.)

The business owner stated the items were no longer in his store and they had been sold and/or sent to be melted.

At approximately 1345 hours, I responded to Pawn Max in reference to the transaction completed by Christina to include the knife gray bayonet knife w/frog. I also responded to the business in reference to the transaction completed by Matthew to include the 14KT 18" rope 6.9g necklace and 14KT 1.9 g Tweety Bird pendant.

I was provided the documentation concerning Christina Hills and I completed the pertinent forms associated with the related case, (PSO case #21-7011/False Verification of Ownership)

Upon arrival in the store I spoke with Allison Macho. I provided information to Allison concerning the 14KT necklace 5g 18" 6.9 gram necklace and the Tweety bird charm that was sold by Matthew Davis.

I asked Allison if she could provide the Florida Pawnbroker transaction forms concerning the transactions. I also asked Allison if she had photographs of the items.

Allison stated the following, not verbatim: The chain necklace item is at a separate store storage unit and she would have an employee go to the storage sight and bring the necklace and the paperwork to this location. The Tweety bird charm was sold the day following the transaction. Allison provided the photographs of the items at this time.

I made contact with Kastine via telephone. I provided information to Kastine concerning the gold chain necklace, Tweety bird charm and the bayonet. I provided photographs of the items to Kastine and I asked her if she recognized any of the items.

REPORTING OFFICER NARRATIVE

Pasco Sheriff's Office

OCA

21-007010

Victim

TUTTLE, KASTINE MARIE

Offense

FALSE VERIFICATION OF OWNERSHIP LT

Date / Time Reported

Wed 02/24/2021 10:39

Kastine stated the items belong to her.

I provided information to Kastine regarding the procedure to obtain her property. Kastine had previously stated she would only be in Florida for a couple of days and she would be returning to Kentucky.

Kastine stated she would go to the Pawn Max and she would purchase her items from the business on tomorrow's date, Wednesday, 02/24/21.

I told Kastine I would be completing the necessary paperwork concerning the transactions of the jewelry items and I also told Kastine I would complete the arrest paperwork concerning Matthew and Christina for the offense of False Verification of Ownership. I told Kastine I would call her with any updated information regarding the cases and if/when arrests were made.

On Wednesday, 02/24/21, at approximately 1401 hours, I received a text message from Kastine. Kastine stated she was at Pawn Max at this time and she would like to buy her property from the business.

I called Pawn Max and I spoke with Allison. I provided an additional case number, (PSO case #21-7010/False Verification of Ownership), concerning the stolen 14KT gold chain. I told Allison that I would respond to the business and I would sign the second release for this item to be returned to the owner.

This case will remain active pending the receipt of the paperwork from Pawn Max concerning the transaction completed by Matthew Davis.

CASE SUPPLEMENTAL REPORT

Printed: 03/09/2021 13:34

Pasco Sheriff's Office

OCA: 21007010

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *PENDING/ACTIVE* Case Mng Status: *PENDING / ACTIVE* Occurred: *11/22/2020*
Offense: *FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS*

Investigator: *WRIGHT-LOVE, L. L. (3775)* Date / Time: *02/25/2021 08:48:46, Thursday*
Supervisor: *AREY, Z. A. (1000)* Supervisor Review Date / Time: *03/02/2021 10:32:42, Tuesday*
Contact: Reference: *Other*

RELATED CASE: 21-7011/False Verification of Ownership 21-4417/Burglary/Grand Theft

STAT DATA: Add as other person: Alicia VanBlargen employed at the Pawn Max 6948 Gall Boulevard Zephyrhills 813-395-8843

CASE STATUS: Active

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (1) Probable Cause Affidavit

ICR: 2 x \$26 = \$52

On Wednesday, 02/24/21, at 1700 hours, I responded to Pawn Max, which is located at 6948 Gall Boulevard, Zephyrhills. Upon arrival I spoke with Alicia VanBlargen.

Alicia provided Florida Pawnbroker Transaction form #14024594 concerning the transaction completed on 11/22/20, at 1436 hours, by Matthew Aaron Davis for the following items:

1. 6.9G necklace 14KYG 5F 18" rope Matthew received \$80.00 for the item
2. 1.9G pendant 14KYG 1.9G Tweety Bird

The initials on the bottom left corner of the form are AZM. This is Allison Macho. Allison was the associate who completed the transaction with Matthew concerning the items. Allison was not present at this time.

During my prior conversation with Alicia, she stated the Tweety Bird charm had been sold shortly after it was sold by Matthew and it was no longer available. The 18" rope chain was currently at the business location.

Earlier this date Kastine, victim, responded to the Pawn Max to identify her items and purchase the items from the business. During that time Kastine stated she did not want to purchase the necklace, she only wanted to have her Tweety Bird Charm and the bayonet from the related case, (PSO case #7011/False Verification of Ownership)

The 18" rope chain will be retained by the Pawn Max and placed for sale at this time.

I completed a request to the Forensics unit to compare the thumb print located on the bottom right corner of the Florida Pawnbroker Transaction form to be compared to the thumb print belonging to Matthew Davis, OBTS #5102147740.

Probable cause exists for the arrest of Matthew at this time.

CASE SUPPLEMENTAL REPORT

Printed: 03/09/2021 13:34

Pasco Sheriff's Office

OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *PENDING/ACTIVE*

Case Mng Status: *PENDING / ACTIVE*

Occurred: *11/22/2020*

Offense: *FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS*

This case will remain active pending contact with Matthew Davis.

USE SUPPLEMENTAL REPORT
NOT SUPERVISOR APPROVED

Printed: 03/09/2021 13:34

OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Investigator: *WRIGHT-LOVE, L. L. (3775)*

Date / Time: *03/09/2021 12:39:46, Tuesday*

Supervisor: *(0)*

Supervisor Review Date / Time: *NOT REVIEWED*

Contact:

Reference: *Other*

RELATED CASE: 21-4417/Burglary/Residence

STAT DATA: Change suspect Matthew Aaron Davis to arrested

CASE STATUS: Cleared with arrest

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (1) Probable Cause Affidavit

ICR: 2 x \$26 = \$52

LIVE INVEST: Monday, 03/22/21 at 1330 hours.

On Tuesday, 03/09/21, at approximately 1100 hours, I responded to the address which is located at 6819 23rd Street, Zephyrhills. I responded to the address in an attempt to speak with Matthew Aaron Davis and Christine Renee Hills. I responded to the address with Detective Maximino Lebron.

Upon arrival at the home we walked to the south side entrance/exit to the mobile home. Upon walking up the wooden stairs to the home I heard (2) separate voices coming from within the home. I also heard (1) dog barking.

I knocked on the door and there was no answer. I knocked additional times and a brief time later a female's voice stated, "hold on."

A few moments later Christine opened the door to the home and she was talking to the dog as she was exiting the home and navigating on crutches.

I asked Christine if she was okay and she stated the following, not verbatim: She had been hit by a small truck (4) days ago. Christine stated it occurred at approximately 10:30 pm and she did not know who hit her and the person never stopped. Christine stated she called Matthew to come help her and pick her up at that time.

Christine said she was taken to the hospital in Tampa and they told her she had a fractured wrist, and broken tibia. Christine pulled on the leg of her pajamas to reveal multiple lacerations, road rash and swelling on her right leg.

Christine said they would not cast her broken bones and they told her they did not do that any longer. Christine said the

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Investigator: *WRIGHT-LOVE, L. L. (3775)*

Date / Time: *03/09/2021 12:39:46, Tuesday*

Supervisor: *(0)*

Supervisor Review Date / Time: *NOT REVIEWED*

Contact:

Reference: *Other*

hospital told her she would need to go to a doctor's office and they would cast her broken bones.

Christine stated she plans to go to a doctor in a couple of days to get it taken care of.

At this time I asked her if Matthew was in the home.

Christine stated he was in the back of the home.

I asked her if she had talked to him concerning my conversation with him approximately (2) weeks ago.

Christine said they talked about the call but did not talk about anything specific.

I asked Christine if she would go and get Matthew.

As Christine entered into the home Detective Lebron walked toward the north side of the mobile home to watch potential exits of the home.

A few moments later Christine exited the home alone.

I asked Christine where Matthew was at this time.

Christine stated Matthew was going to come outside.

A brief time later Matthew exited the home.

I introduced myself to him and I asked him if he remembered my conversation with him a couple of weeks ago.

Matthew said he did remember the conversation.

I provided information pertaining to this investigation and I told Matthew and Christine there were items identified by the victim that were sold by both of them. I told Matthew our previous conversation that we had discussed the fact that the jewelry he had pawned was also identified by the victim, Kastine Tuttle, to belong to her.

Matthew did not say anything at this time. Christine began to become nervous as I watched her hands as she was smoking a cigarette and she began to stutter when she spoke.

USE SUPPLEMENTAL REPORT
NOT SUPERVISOR APPROVED

Printed: 03/09/2021 13:34

OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Investigator: *WRIGHT-LOVE, L. L. (3775)*

Date / Time: *03/09/2021 12:39:46, Tuesday*

Supervisor: *(0)*

Supervisor Review Date / Time: *NOT REVIEWED*

Contact:

Reference: *Other*

I also provided information to Christine that Matthew previously told me that he pawned/sold the jewelry items to the pawn shop because Christine told him she did not have identification.

Christine stated she did give the items to him because she did not have identification. Christine said she recently was able to get a new ID card.

I repeated myself and I told Christine that Kastine identified the jewelry items and also the bayonet to belong to her. I told Christine she had sold the bayonet to Pawn Max and recently.

I told Matthew per my conversation with him, he was in trouble.

Matthew stated, "so, I'm going to jail." Matthew turned to the side at this time and placed his hands to the rear of his back.

Christine asked for a business card at this time and stated she would like to be able to speak with me at a later time.

NOTE: Due to the fact that Christina had been hit by a car and she was on crutches and visibly injured, she was not arrested for case #21-4417/Burglary or case #21-4417/False Verification of Ownership.

Matthew was placed under arrest at this time and he was escorted to my unmarked agency vehicle. Matthew was cooperative during this time and he only stated, "she go me good."

I read Matthew Miranda by card and I asked him if he wanted to talk to me.

Matthew stated, "she really go me." Matthew said they had been arguing for some time and not getting along. Matthew said Christine's boyfriend lives down the road.

Matthew said he shares (3) children with Christine and they are currently staying at Christine's mother's home. Matthew said at one time Christine told him he was going to pay dearly.

Matthew said Christine knows that his sons are his world and she took them away from him.

Matthew did not add any pertinent information pertaining to this investigation or the related cases.

USE SUPPLEMENTAL REPORT

NOT SUPERVISOR APPROVED

Printed: 03/09/2021 13:34

OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Investigator: *WRIGHT-LOVE, L. L. (3775)*

Date / Time: *03/09/2021 12:39:46, Tuesday*

Supervisor: *(0)*

Supervisor Review Date / Time: *NOT REVIEWED*

Contact:

Reference: *Other*

I provided the original Probable Cause Affidavit to the transport driver. The COVID questions/paperwork and the property paperwork was completed by me prior to Matthew's transport.

A State Attorney's Live Invest is scheduled, Monday, 03/22/21, at 1330 hours.

FORENSIC SERVICES SECTION WORK ORDERS

lwright-love@pascosheriff.org

[edit profile](#)

[sign out](#)



- [Forensics](#)
- [Latent Prints](#)
- [Photo Request](#)

☐ New help request created, the Forensic Services Section has been notified.

Ticket #673: Forensics Tickets Submission

Submitted 02-25-2021 @ 09:03 AM by Linda Wright-Love

[Date]:
02-25-2021

[Offense Type]:
False Verification of Ownership

[Rank / Name / CJIS]:
Det. Wright-Love 3775

[Your Phone Number]:
813-997-7530

[Priority]:
No

[Forensic Processing Needed]:
Prints & Swab

[Description: Please list all items to be processed]:
please compare the thumb print located on the bottom right corner of Florida Pawnbroker transaction form #14024594 to the suspect's thumb print

[Involved parties: Vic/Susp, DOB, Race/Sex]:
Matthew Aaron Davis w/m d.o.b. 01/05/1988 OBTS#5102147740

[Location & date of occurrence]:
6948 Galf Boulevard Zephyrhills Pawn Max

Case Number
21007010

Category
not provided

Category
Latent Print Unit

Digital Forensics
Digital Forensics

Forensics Category
not provided

Property Evidence Category
not provided

Comments

Add comment:

If this issue has been resolved, you can close this request.

[Close Request](#)

Open help requests

- [Forensics Tickets Submission](#)
Ticket #673 — opened on 02-25-2021 @ 09:03 AM
- [Forensics Tickets Submission](#)
Ticket #671 — opened on 02-24-2021 @ 02:14 PM

Closed help requests

- [Forensics Tickets Submission](#)
Ticket #633 — closed on 02-10-2021 @ 01:37 PM
- [Forensics Tickets Submission](#)
Ticket #580 — closed on 12-18-2020 @ 11:10 AM
- [Forensics Tickets Submission](#)
Ticket #548 — closed on 12-15-2020 @ 03:14 PM
- [Forensics Tickets Submission](#)
Ticket #543 — closed on 12-08-2020 @ 09:58 AM
- [Latent Prints Submission](#)
Ticket #525 — closed on 11-18-2020 @ 01:33 PM
- [Forensics Tickets Submission](#)
Ticket #517 — closed on 11-06-2020 @ 03:45 PM
- [Latent Prints Submission](#)
Ticket #526 — closed on 11-05-2020 @ 08:18 AM
- [Forensics Tickets Submission](#)
Ticket #511 — closed on 10-30-2020 @ 10:11 AM
- [Latent Prints Submission](#)
Ticket #489 — closed on 10-19-2020 @ 01:51 PM
- [Latent Prints Submission](#)
Ticket #490 — closed on 10-12-2020 @ 05:49 PM

[Showing recent closed tickets, click to view the rest](#)

Optional Attachment:

No file chosen

[clear attachment](#)

New help request created, the Forensic Services Section has been notified.

STOLEN PROPERTY
HOLD / RELEASE ORDER

Pursuant to: ☐ F.S. 538.06 (3) Second Hand Dealer
☒ F.S. 539.01 (16)(a) Florida Pawnbroker Act

the below listed property has been misappropriated. A 90-day hold is being placed on the property pending further investigation.

If you have not been contacted by law enforcement prior to the end of the 90 days, you are required to send written notification by certified mail, to the address indicated below, prior to disposal of the property.

DATE OF HOLD: 2-23-21 CASE#: 21-7010

NAME OF PAWN SHOP: PAWN MAX

ADDRESS: 6948 GAIL Blvd Zephyrhills

MAILING ADDRESS (IF DIFFERENT): _____

DEPUTY / DETECTIVE PLACING HOLD (PRINT): DET. L. LOUE

☐ Pasco Sheriff's Office Property Crimes Unit - 8700 Citizen Drive, New Port Richey, FL 34654

☒ Pasco Sheriff's Office Property Crimes Unit - 36409 State Road 52, Dade City, FL 33525

DESCRIPTION OF PROPERTY: 14KT necklace 18" rope

14KT Twenty bird pendant (gone)

ITEM: _____

MAKE / BRAND: _____

MODEL: _____ SERIAL#: _____

DATE OF PAWN: 11-22-21 PAWN TICKET#: _____

NAME OF SUSPECT: MATTHEW DAVIS

NAME OF VICTIM: KASTINE TUTTLE

EXPIRATION DATE OF HOLD: 90 days from hold

REPRESENTATIVE SIGNATURE: _____ DATE: _____

DEPUTY / DETECTIVE SIGNATURE / CJIS: [Signature] 3775

HOLD RELEASED BY: [Signature] DATE: 2-23-21

WHITE COPY - RECORDS YELLOW COPY - CID PINK - PAWN SHOP GOLDENROD - CLAIMANT

Transaction Report

Jurisdiction: PascoFL

Type: Buy

Date: 11/22/2020 2:36 PM

Customer Information

No customer picture taken

Photo Taken On: N/A

Conducted By: n/a (10265)

Suffix:

Last Name: DAVIS

First Name: MATTHEW

Mid. Name: AARON

Alias:

Gender: Male

Birth Date: 01/05/1988

Birth Place:

Height: 5' 8"

Weightlbs: 150

Build:

Eye Color: Brown

Hair Color: Brown

Facial Hair:

Features:

Race: White

Residence

Street Address 1: 6819 23RD ST

State: FL

Cell Phone:

Street Address 2:

Zip/Postal Code: 33542

Work Phone: 0000000000

City: ZEPHERYHILLS

Home Phone: 8138956318

Identification

No customer ID picture taken

Class: Driver (Photo)

Number:

Issuer: N/A

Fingerprint

No finger print was scanned

Finger Type: N/A

Scanned On: N/A

Please, wait...

Signature

No signature taken

Vehicle

Veh. Make:

Veh. Lic.:

Veh. Model:

Veh. Lic. St.:

Veh. Color:

Employer

Name: A1 SILK FENCE

State:

Address:

Zip/Postal Code:

City:

Phone:

Store

Name: Zephyrhills Pawn
Management Inc. DBA Pawn Max

Phone: 813-395-8843

Source Trans. Id: 34130518

Address: 6948 Gall blvd
Zip/Postal Code: 33542

Receipt: 24117

City / State: Zephyrhills, FL

License:

Ticket: 14024594

Ownership Declaration:

Transaction Items

Item ID: 75177519

Gender:

No item photo available

Class: Jewelry

Size / Year:

SubClass: Necklace

Condition:

Serial: 6.9G

Quantity: 1.0000

Manufacturer: NO NAME

Price: \$80.00

Model: 14KT

PropertyValue,: \$0.00

Color:

Veh. Title #:

Weight:

Veh. Reg. St.:

Markings:

Modified:

Item Description: NO NAME 14KT NECKLACE, 14KYG, 5G, 18" ROPE 6.9G

Item ID: 75177520

Gender:

No item photo available

Class: Jewelry

Size / Year:

SubClass: Not Listed

Condition:

Serial: 1.9G

Quantity: 1.0000

Manufacturer: NO NAME

Price: \$30.00

Model: 14K

PropertyValue,: \$0.00

Color:

Veh. Title #:

Weight:

Veh. Reg. St.:

Markings:

Modified:

Item Description: NO NAME 14K PENDANT: 14KYG @ 1.9G TWEETY BIRD 1.9G

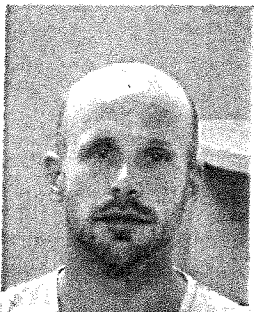
Comments:

Change History

Please, wait...

Event Date	User Name	Event	Comment
11/24/2020	RPDSS Dealer Reporting Site	Created	

Individual's Charge Report

 3060035.021	Name: DAVIS, MATTHEW AARON (W/M)
	Booking #: 244887
	DOB: 01/05/1988
	Arrest Date: 12/10/2020
	Arrest Time: 00:00:00
	Booking Date: 12/10/2020
	Booking Time: 23:00:00
	Release Date: 12/11/2020
	Release Time: 19:26:17
	Race: W
	Sex: M
	Gang:

MugShots

Name	Booking No	Booking Date	Booking Time
DAVIS, MATTHEW AARON (W/M)	244887	12/10/2020	23:00:00

Home Address	City	State	Zip
6819 23RD ST ZEPHYRHILLS	ZEPHYRHILLS	FL	33542

Status	Facility	Pod	Unit
INACTIVE	CENTRAL BOOKING		

City of Birth	Place of Birth	Current Age	Race	Sex	Hair	Eyes	Height	Weight	Dob
SYRACUSE	NY	33	W	M	BRO	HAZ	507	130	01/05/1988

Arrest Agency	Arrest Date	Arrest Age
PASCO SHERIFFS OFFICE	12/10/2020	32

Booking Notes
The Arrest (PKey: 516499) was transferred to 244887 by MA2878 on 12/10/2020 11:01:32 PM.

Arrests & Charges

Arrest Type	Arrest Report#	Arrest Date	Agency	OBTS	Charge No		
ON-VIEW ARREST	20043609	2020/12/10	PSO	5102147740	516499		
Arrest Notes:	On the above date and time, the victim and the defendant were engaged in a physical altercation inside the home in which they live as a family with their two children. The defendant took the victim 's phone and pushed her down. The victim attempted to get her phone back when the defendant bit her on the wrist leaving a bite mark. The defendant made several conflicting statements about the incident and the order in which it ocured. The victim is the defendant 's girlfriend. It was determined that the defendant was the primary aggressor. The defendant was arrested and transported to the Land O Lakes Detention Center.						
Charge Seq	Charge Description	Charge Code	Bond Amt	Court Case#	Felony/Misdemeanor	Charge Type	Disposition
1	DOMESTIC BATTERY	784.03.1A1 DOM	\$500	2020MM004755AES.1	MISDEMEANOR	STATE	BOND
Charge Notes:							

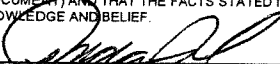
Go Back

PASCO COUNTY COMPLAINT

DAVIT

☒ PSO FLO 510000
☐ DC PD FLO 510100R PD FLO 510200
FLO 510300☐ PR PD FLO 510400
☐ FHP FLO 279000

ADMINISTRATIVE	OETS NUMBER		FELONY MISD.		CO. ORD.	SHIFT CID	SECTOR N4	SEC.	TWP.	RNG.	AGENCY REPORT NUMBER 21-007010			
	ARREST ☒ ALL THAT APPLY ☐ NOTICE TO APPEAR		1. FELONY 2. TRAFFIC FELONY		3. MISD. 4. MISD. TRAFFIC	5. ORDINANCE 6. OTHER	7. V.O.P. 8. PROBABLE CAUSE	☒ ADULT ☐ JUVENILE		AGENCY ARREST NUMBER				
DEFENDANT	LOCATION OF ARREST (INCLUDE NAME OF BUSINESS) 6819 23RD STREET ZEPHYRHILLS										LOCATION OF OFFENSE (BUSINESS NAME, ADDRESS) 6948 GALL BOULEVARD, ZEPHYRHILLS, FL 33542			
	DATE OF ARREST 03/09/2021	TIME OF ARREST 11:30	BOOKING DATE	BOOKING TIME	JAIL DATE	JAIL TIME	WEAPON SEIZED ☐ YES ☒ NO		WEAPON TYPE NOT APPLICABLE		F.P.S.S. Notified ☐ Juv. ☐ Elderly ☒ Handicap			
CO-DEF	JAIL NUMBER	SPN NUMBER	FDLE NUMBER	DOC NUMBER	FBI NUMBER	Domestic Related ☐ Y ☒ N		Convicted Sexual Predator / Offender ☐ Y ☒ N						
	NAME (LAST, FIRST, MIDDLE) DAVIS, MATTHEW AARON										ALIASES			
JUVENILE	BASE W - WHITE H - HISPANIC O - ORIENTAL / ASIAN	CODE W	SEX M	DATE OF BIRTH 01/05/1988	AGE 33	HEIGHT 5'07"	WEIGHT 150	EYE COLOR BROWN	HAIR COLOR BROWN	COMPLEXION MED	BUILD			
	SCARS, MARKS, TATTOOS, ETC.										INDICATION OF: ALCOHOL INFLUENCE ☐ Y ☒ N DRUG INFLUENCE ☐ Y ☒ N			
CHARGE	PHYSICAL ADDRESS (STREET & APT #) 6819 23RD STREET, ZEPHYRHILLS, FL 33542										PHONE (813) 895-6318		RESIDENCE TYPE 1. CITY 3. FLORIDA 2. COUNTY 4. OUT OF STATE	
	MAILING ADDRESS (STREET & APT #)										PHONE		ADDRESS SOURCE	
COST RECOVERY	BUSINESS ADDRESS (NAME & STREET)										PHONE		OCCUPATION UNEMPLOYED	
	DRIVERS LICENSE STATE / NUMBER FL										SOCIAL SECURITY NUMBER		INS NUMBER	
PROBABLE CAUSE STATEMENT	CO-DEFENDANT NAME (LAST, FIRST, MIDDLE)										RACE		SEX	
	CO-DEFENDANT NAME (LAST, FIRST, MIDDLE)										RACE		SEX	
NOTICE	PARENT ☐ OTHER ☐ NAME OF PARENT OR CUSTODIAN (LAST, FIRST, MIDDLE)										RESIDENTIAL PHONE		BUSINESS PHONE	
	ADDRESS (STREET, APT NUMBER)										DATE		TIME	
BOND / COURT INFO	CHARGE DESCRIPTION FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS										F.S. ☒ CIVIL INF. ☐ ORD. ☐		STATUTE VIOLATION NUMBER 539.001.8B8A	
	ACTIVITY S. SELL N. N/A P. POSSESS										CODE N		AMOUNT	
BOND / COURT INFO	CHARGE DESCRIPTION REQUEST FOR INVESTIGATIVE COSTS RECOVERY FSS 938.27(1)										F.S. ☐ CIVIL INF. ☐ ORD. ☐		STATUTE VIOLATION NUMBER	
	ACTIVITY S. SELL N. N/A P. POSSESS										CODE		AMOUNT	
BOND / COURT INFO	THE UNDERSIGNED CERTIFIED AND SWEARS THAT HE / SHE HAS JUST AND REASONABLE GROUNDS TO BELIEVE AND DOES BELIEVE THAT THE ABOVE-NAMED DEFENDANT COMMITTED THE FOLLOWING VIOLATION OF LAW:										ON THE		22 DAY OF	
	CJIS # 3775										November		20 AT 2:36 P.M.	
BOND / COURT INFO	# of Investigative hrs. 4 x \$26 = \$104										(SPECIFICALLY INCLUDE FACTS CONSTITUTING CAUSE FOR ARREST.)			
	The victim called the Pasco Sheriff's Office to report items were stolen from her home. The Defendant sold the victim's stolen items to the business known as Pawn Max which is located at 6948 Gall Boulevard, Zephyrhills. The Defendant sold the victim's 14KYG 18" rope chain to the business and he received \$80.00 for the item. The Defendant sold the victim's Tweety Bird 14KYG 1.9G pendant and the Defendant received \$30.00 for the item. The Defendant used his Florida drivers license for identification purposes and he placed his right thumb print on the bottom right corner of the Florida pawnbroker transaction form pledging he is the rightful owner of the property and the property has not liens or encumbrances and they are not stolen. The victim										*** Continued ***			
BOND / COURT INFO	I AGREE TO APPEAR AT THE TIME AND PLACE DESIGNATED WHEN I AM NOTIFIED TO ANSWER THE OFFENSE CHARGED OR TO PAY THE FINE SUBSCRIBED. I UNDERSTAND THAT SHOULD I WILLFULLY FAIL TO APPEAR BEFORE THE COURT AS REQUIRED ONCE I AM NOTIFIED, THAT I MAY BE HELD IN CONTEMPT OF COURT AND A WARRANT FOR MY ARREST SHALL BE ISSUED. IF CITED FOR A CIVIL INFRACTION, I AGREE TO APPEAR BEFORE THE COUNTY COURT OR COMPLY WITH THE REQUIREMENTS FOR PAYING THE FINE AND MEETING ANY OTHER SPECIFIED CONDITIONS AS INDICATED ON THE BACK SIDE OF THIS AFFIDAVIT.										P.C. EXISTS FOR CHARGE(S)		JUDGE'S SIGNATURE	
	SIGNATURE OF DEFENDANT / JUVENILE AND PARENT OR CUSTODIAN										DATE			
BOND / COURT INFO	MR/MS/MA/TA/OTHER NAME										RIGHT THUMB		DATE	
	HOLD FOR OTHER AGENCY										VICTIM NOTIFIED YES ☐ NO ☐		BOND CHARGE #	
BOND / COURT INFO	ADULT ONLY HOLD FOR FIRST APPEARANCE DO NOT BOND OUT - REASON										BOND TYPE 1. ROR 2. CASH		3. SURETY 4. BAL / BOND	
	UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING (DOCUMENT) AND THAT THE FACTS STATED IN IT ARE TRUE, TO THE BEST OF MY KNOWLEDGE AND BELIEF.										TYPE		TYPE	
BOND / COURT INFO	X										RETURNABLE COURT DATE		RETURNABLE COURT TIME	
	WRIGHT-LOVE, L. L. 3775										RELEASE DATE		RELEASE TIME	
BOND / COURT INFO	NAME (PRINTED)										RELEASING OFFICER		PAGE 1 OF 2	

DEFENDANT										AGENCY REPORT NO.			
DAVIS, MATTHEW AARON										21-007010			
CHARGE DESCRIPTION										☐ F.S. ☐ CIVIL INF.	STATUTE VIOLATION NUMBER	NCIC #	COURT CASE #
										☐ ORD.			
ACTIVITY	S. SELL	R. SMUGGLE	K. DISPENSE/	M. MANUFACTURE	Z. OTHER	CODE	AMOUNT	TYPE	B. BARBITURATE	H. HALLUCINOGEN	P. PARAPHERNALIA /	U. UNKNOWN	CODE
N. N/A	B. BUY	D. DELIVER	DISTRIBUTE	PRODUCE /	CULTIVATE			N. N/A	C. COCAINE	M. MARIJUANA	EQUIPMENT	Z. OTHER	
P. POSSESS	T. TRAFFIC	E. USE						A. AMPHETAMINE	E. HEROIN	O. OPIUM / DERIV	S. SYNTHETIC		
CHARGE DESCRIPTION										☐ F.S. ☐ CIVIL INF.	STATUTE VIOLATION NUMBER	NCIC #	COURT CASE #
										☐ ORD.			
ACTIVITY	S. SELL	R. SMUGGLE	K. DISPENSE/	M. MANUFACTURE	Z. OTHER	CODE	AMOUNT	TYPE	B. BARBITURATE	H. HALLUCINOGEN	P. PARAPHERNALIA /	U. UNKNOWN	CODE
N. N/A	B. BUY	D. DELIVER	DISTRIBUTE	PRODUCE /	CULTIVATE			N. N/A	C. COCAINE	M. MARIJUANA	EQUIPMENT	Z. OTHER	
P. POSSESS	T. TRAFFIC	E. USE						A. AMPHETAMINE	E. HEROIN	O. OPIUM / DERIV	S. SYNTHETIC		
stated she did not give the Defendant permission to take her property and she did not give the Defendant permission to sell the items. The victim responded to the business and identified the property to belong to her. Post Miranda the Defendant stated his girlfriend gave him the jewelry to sell because she did not have identification.													
* * * End * * *													
ADMINISTRATIVE	UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING (DOCUMENT) AND THAT THE FACTS STATED IN IT ARE TRUE, TO THE BEST OF MY KNOWLEDGE AND BELIEF.												
	X												
	WRIGHT-LOVE, L. L.										3775		
	NAME (PRINTED)										CJIS #		

CLERK OF COURT

LF

Pasco Sheriff's Office

SAO CASE REFERRAL COVER SHEET

Case Number: 21-7010

Arrest: X

Offense Type: Fake Verification

Non-Arrest Referral: _____

Arrest/Referral Date: 3-9-21

Invest Date/Time: _____

Document(s) Submitted:

- ☒ Report(s)
- ☒ Supplemental Report(s)
- ☐ P.C. Affidavit(s)
- ☐ Written Statement(s)
- ☐ Property Receipt(s)
- ☐ Vehicle Impound Sheet(s)
- ☐ LAP Form
- ☐ Other: _____

Document(s) Required:

- ☐ Report(s)
- ☐ Supplemental Report(s)
- ☐ P.C. Affidavit(s)
- ☐ Written Statement(s)
- ☐ Property Receipt(s)
- ☐ Vehicle Impound Sheet(s)
- ☐ LAP Form
- ☐ Other: _____

Comment(s):

Davis 21 CF 1144
Done m/f 3/30/21
To: M. Garcia

Report w/ latent results included

RECEIVED

MAR 26 2021

State Attorney's Office
(26)

DET. L. LOVE

Requestor's Name (Print)

3775

CJIS#

[Signature]

Signature

3-25-21

Date Requested

Arey

Reviewing Supervisor's Name (Print)

1000

CJIS#

[Signature]

Signature

03-25-21

Date Reviewed

INCIDENT/INVESTIGATION

Internal Copy

I N C I D E N T D A T A	Agency Name Pasco Sheriff's Office		Case# 21-007010		
	ORI FL0510000				
	Location of Incident 6948 Gall Blvd, Zephyrhills Incorpor FL 33542-				
	Premise Type All Other				
Zone/Tract N5		Date / Time Reported 02/24/2021 10:39 Wed			
Last Known Secure 11/22/2020 14:36 Sun		At Found 02/19/2021 00:00 Fri			
#1	Crime Incident(s) (Com) False Verification Of Ownership Lt 300 Dols - 539.001.8B8A		Weapon / Tools NOT APPLICABLE		
	Entry		Exit	Security	
	Activity				
	#2	Crime Incident ()		Weapon / Tools	
		Entry		Exit	Security
	#3	Crime Incident ()		Weapon / Tools	
Entry		Exit	Security		
MO					
V I C T I M	# of Victims 1		Type: INDIVIDUAL/ NOT LAW		
	Injury: None		Domestic: N		
	Victim/Business Name (Last, First, Middle) TUTTLE, KASTINE MARIE		Victim of Crime # 1,	DOB 09/01/1957	Race W
	Home Address 7512 CHENKIN RD , Zephyrhills, FL 33540-		Home Phone 219-545-2522		
	Employer Name/Address HOME INSTEAD (CAREGIVER)		Business Phone 813-395-8413	Mobile Phone 219-545-2522	
	VYR	Make	Model	Style	Color
O T H E R S I N V O L V E D	CODICES: V- Victim (Denote V2, V3) O = Owner (if other than victim) R = Reporting Person (if other than victim)		Type: INDIVIDUAL/ NOT LAW ENFORCEMENT		
	Injury:				
	Code IO	Name (Last, First, Middle) VANBLARGEN, ALICIA	Victim of Crime #	DOB 01/05/1988	Race W
	Home Address 6948 Gall Boulevard Zephyrhills, FL 33542		Home Phone		
	Employer Name/Address PAWN MAX, 6948 Gall Boulevard (SALES)		Business Phone 813-395-8843	Mobile Phone	
	Type: INDIVIDUAL/ NOT LAW ENFORCEMENT	Injury:			
Code IO	Name (Last, First, Middle) DAVIS, MATTHEW AARON	Victim of Crime #	DOB 01/05/1988	Race W	
Home Address 6819 23rd Street Zephyrhills, FL 33540		Home Phone 813-895-6318			
Employer Name/Address (UNEMPLOYED)		Business Phone	Mobile Phone 813-895-6318		
P R O P E R T Y	L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found ("OJ" = Recovered for Other Jurisdiction)				
	VI #	Code	Status Frm/To	Value	OJ
	42	INFO		\$50.00	1
	42	INFO		\$50.00	1
	99	6		\$0.00	0
	Property Description		Make/Model		Serial Number
	JEWELRY/PRECIOUS METALS				
	JEWELRY/PRECIOUS METALS				
	FLORIDA PAWNBROKER TRANSACTION FORM #140				
Officer/ID# WRIGHT-LOVE, L. L. (PAT2, PCU2) (3775)					
Invest ID# WRIGHT-LOVE, L. L. (PAT2, PCU2) (3775)					
Supervisor AREY, Z. A. (PAT2, PCU2) (1000)					
Status	Complainant Signature		Case Status Cleared By Arrest	Case Disposition: Cleared By Arrest	
		03/09/2021	03/09/2021	Page 1	

INCIDENT/INVESTIGATION REPORT

Pasco Sheriff's Office

Case # 21-007010

Status Codes L = Lost S = Stolen R = Recovered D = Damaged Z = Seized B = Burned C = Counterfeit / Forged F = Found						
D R U G S	UCR	Status	Quantity	Type Measure	Suspected Type	Up to 3 types of activity

Assisting Officers

Suspect Hate / Bias Motivated: None

INCIDENT/INVESTIGATION REPORT

Narr. (cont.) OCA: 21-007010

Pasco Sheriff's Office

NARRATIVE

Incident Report Suspect List

Pasco Sheriff's Office

OCA: 21-007010

1	Name (Last, First, Middle) <i>DAVIS, MATTHEW AARON</i>					Also Known As <i>DAVIS, WILLIAM AARON</i>					Home Address <i>6819 23RD STREET ZEPHYRHILLS, FL 33540 813-895-6318</i>				
	Business Address														
	DOB <i>01/05/1988</i>	Age <i>32</i>	Race <i>W</i>	Sex <i>M</i>	Eth <i>N</i>	Hgt <i>507</i>	Wgt <i>150</i>	Hair <i>BRO</i>	Eye <i>BRO</i>	Skin <i>MED</i>	Driver's License / State. <i>FL</i>				
Scars, Marks, Tattoos, or other distinguishing features <i>TATT BACK / TRIBAL; TATT NECK / TRIBAL; TATT CHES / A WOMANS LIFE IS LOVE AND A MANS LOVE IS LIFE; TATT RIGH LEG / FROG; TATT ABDO / DEMON; TATT RIGH ARM / FISH, CROSS, BREAST CANCER, PAIN;</i>															
Reported Suspect Detail					Suspect Age	Race	Sex	Eth	Height	Weight	SSN <i>062-74-1484</i>				
Weapon, Type		Feature		Make		Model			Color	Caliber	Dir of Travel Mode of Travel				
VehYr/Make/Model			Drs	Style		Color		Lic/St		VIN					

Notes

Physical Char

*Hair Length, Short
Hair Facial, Slight Beard
Build, THIN*

Incident Report Related Property List

Pasco Sheriff's Office

OCA: 21-007010

1	Property Description JEWELRY/PRECIOUS METALS			Make		Model		Caliber	
	Color	Serial No.		Value \$50.00		Qty 1.000		Unit	Jurisdiction Locally
	Status Information Only	Date 02/23/2021	NIC #		State #		Local #		OAN
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex

Notes

14KT 18" rope chain

2	Property Description JEWELRY/PRECIOUS METALS			Make		Model		Caliber	
	Color	Serial No.		Value \$50.00		Qty 1.000		Unit	Jurisdiction Locally
	Status Information Only	Date 02/23/2021	NIC #		State #		Local #		OAN
	Name (Last, First, Middle) * No name *				DOB		Age	Race	Sex

Notes

Tweety Bird Charm

3	Property Description FLORIDA PAWNBROKER TRANSACTION FORM #140			Make		Model		Caliber	
	Color	Serial No.		Value \$0.00		Qty 0.000		Unit	Jurisdiction Locally
	Status Evidence/seized	Date 11/22/2020	NIC #		State #		Local #		OAN
	Name (Last, First, Middle) Pawn Max, Pawn Max				DOB		Age 0	Race	Sex

Notes

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REPORTING OFFICER NARRATIVE*Pasco Sheriff's Office*

OCA 21-007010
Date / Time Reported Wed 02/24/2021 10:39

Victim TUTTLE, KASTINE MARIE	Offense FALSE VERIFICATION OF OWNERSHIP LT
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RELATED CASES: 21-4417/Burglary/Grand Theft 21-7011/False Verification of Ownership

STAT DATA: N/A

CASE STATUS: Active

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (1) Probable Cause Affidavit

ICR: 4 x \$26 = \$104

On Tuesday, 02/16/21, I received the related report in reference to Pasco County case number 21-4417/Burglary/Grand Theft.

On Friday, 02/19/21, at 1329 hours, I spoke with Kastine Tuttle, victim, via the telephone number provided, 219-545-2522.

I provided my information to Kastine and I told her I had noticed transactions which were completed by Matthew Davis and Christina Hills and the property they sold/pawned was consistent with the description of the stolen items.

I provided the information to Kastine concerning the items that were pawned/sold by Matthew and Christina to include the following:

1. 11/22/20, 1436 hours Matthew Davis completed a transaction to the business of Pawn Max selling 14KT 18" rope 6.9g necklace and 14KT 1.9 g Tweety Bird pendant
2. 10/29/20 1457 hours, Matthew Davis completed a transaction to the business of Crown Pawn selling a ladies 14KT gold ring band size 6 2.3 stone clear round shape
3. 10/26/20 at 1531 hours, Matthew Davis completed a transaction to the business of Crown Pawn selling a ladies 10KT yellow gold ring band size 7 1.7 and also a 10KT yellow gold ring band size 7 1.4 w/red/pink marquise shape stone .01 clear round stone.
4. 02/14/21, at 1258 hours, Christina Hills completed a transaction to the business of Pawn Max selling a knife gray bayonet knife w/frog

Kastine stated the following, not verbatim: There are several items missing from within her home to include a Crown Royal bag with collectables, additional sewing machines, and a knife. Kastine stated she is currently in Kentucky, however, she would be returning to Florida possibly on Monday, 02/22/21, to clean and paint her Florida home to place it on the market.

Kastine said she hired Matthew and Christina from the Next Door App. Kastine stated she originally hired Matt, however, when he arrived at her home he brought his girlfriend Christina. Kastine said she hired both of them to complete work to her home and pack items so she could move.

Kastine said Matthew and Christina worked on the home for about (3) months and during that time they all became friends. Kastine said there were times when Matt and Christina would argue and fight and Christina would spend time at her home away from Matt.

Kastine said there was a day when Matt sent her a text message and told her he had her debit card pin numbers and

REPORTING OFFICER NARRATIVE*Pasco Sheriff's Office*

OCA

21-007010

Victim

TUTTLE, KASTINE MARIE

Offense

FALSE VERIFICATION OF OWNERSHIP LT

Date / Time Reported

Wed 02/24/2021 10:39

her driver's license. Kastine said she keeps this information inside her purse and there was no way anyone could get that information with the exception of Christina. Kastine said Christina would have had access to her purse when she was staying in her home.

Kastine said she asked Matt how he came to have her information and he told her the information came from Christina.

Kastine said she did not give Christina permission to have the information for her debit card and she did not have permission to have her drivers license.

Kastine said she left to go to Kentucky for a short period of time and when she returned she noticed multiple items missing from her home to include the items reported in the related Burglary case.

Kastine said she made contact with Matt and told her items were missing and she told Matt she was going to call the police.

Kastine said a short time later Matt came to her home with (1) pair of antique opera glasses. Kastine said Matt told her he was "walking on egg shells" around Christina since he got out of jail and he did not know what to do.

Kastine said she told Matthew she wanted her property back and she was calling the police to make a report. Kastine said Matthew did not want to stay around and wait for the police and he left.

Kastine said she spoke to "Chrissy" and Chrissy told her that she had some of her items. These items included a weed eater, blower, mop bucket, battery charger and charger.

Kastine said there was no time that she gave Christine or Matt permission to take any items from her home at any time. Kastine said she paid Christina and Matthew after each job and she told them when she sold her home she would give them a "bonus." Kastine said at no time did she owe Christina any money and she did not give them items from her home as payment.

Kastine said Matt returned the mop bucket one pair of opera glasses and a blower. (The weed eater was not returned at this time.)

Kastine stated there were no jewelry items mentioned or returned to her at this time.

I asked Christina if there was any further items missing from within her home that she had noticed after the initial report.

On Friday, 02/19/21, at 1352 hours, I spoke with Matthew Davis via telephone. I provided information pertaining to my conversation with Kastine and I asked Matthew what he thought about the situation and all of the items missing from within Kastine's home. I asked Matthew if he had sold any of the jewelry items belonging to Kastine.

Matthew stated the following, not verbatim: Chrissy asked him to pawn items belonging to Kastine because she did not have an ID. Matthew said Chrissy told him Kastine gave her the items as payment for some of the jobs she was doing. Matthew said he took jewelry items that belonged to Kastine to sell them.

Matthew said when Kastine went to Kentucky he borrowed her weed wacker, lawn mower and blower. Matthew said he did not think Kastine would mind that he borrowed the items and he planned to get them back to the home prior to her return from Kentucky.

REPORTING OFFICER NARRATIVE*Pasco Sheriff's Office*OCA
21-007010

Victim

TUTTLE, KASTINE MARIE

Offense

FALSE VERIFICATION OF OWNERSHIP LT

Date / Time Reported

Wed 02/24/2021 10:39

I asked Matthew if he was paid by Kastine for the jobs that were completed. Matthew said he was paid when he did each job.

I asked Matthew if he thought it was odd that Kastine would give Christina jewelry as payment.

Matthew said it was odd. Matthew said he and Christina have not been getting along and they weren't really together.

I asked Matthew if he and Christina were living in the same home. Matthew said they were living in the same home.

Matthew said a couple of weeks ago Kastine sent him a text message and she wanted her things. Matthew said Kastine also expressed there were multiple items missing from her home and she suspected they had taken the items.

Matthew said he was "walking on egg shells" due to domestic issues and he was sleeping on the couch.

I asked Matthew if Christina was at home at this time. Matthew said yes.

I told Matthew I would like to speak with Christina concerning the stolen items and I wanted to speak with her concerning the location of the remaining items.

At 1407 hours, I made an attempt to contact Christina via the telephone number provided, 813-469-7899, with negative results. There was no option to provide a voice message.

On Tuesday, 02/23/21, at approximately 1330 hours, I made contact with the business of Crown Pawn via telephone. I spoke with the business owner and I provided information concerning the items that were sold by Matthew, (ladies 14KT gold ring band size 6 2.3 stone clear round shape, and ladies 10KT yellow gold ring band size 7 1.7 and also a 10KT yellow gold ring band size 7 1.4 w/red/pink marquise shape stone .01 clear round stone.)

The business owner stated the items were no longer in his store and they had been sold and/or sent to be melted.

At approximately 1345 hours, I responded to Pawn Max in reference to the transaction completed by Christina to include the knife gray bayonet knife w/frog. I also responded to the business in reference to the transaction completed by Matthew to include the 14KT 18" rope 6.9g necklace and 14KT 1.9 g Tweety Bird pendant.

I was provided the documentation concerning Christina Hills and I completed the pertinent forms associated with the related case, (PSO case #21-7011/False Verification of Ownership)

Upon arrival in the store I spoke with Allison Macho. I provided information to Allison concerning the 14KT necklace 5g 18" 6.9 gram necklace and the Tweety bird charm that was sold by Matthew Davis.

I asked Allison if she could provide the Florida Pawnbroker transaction forms concerning the transactions. I also asked Allison if she had photographs of the items.

Allison stated the following, not verbatim: The chain necklace item is at a separate store storage unit and she would have an employee go to the storage sight and bring the necklace and the paperwork to this location. The Tweety bird charm was sold the day following the transaction. Allison provided the photographs of the items at this time.

I made contact with Kastine via telephone. I provided information to Kastine concerning the gold chain necklace, Tweety bird charm and the bayonet. I provided photographs of the items to Kastine and I asked her if she recognized any of the items.

REPORTING OFFICER NARRATIVE*Pasco Sheriff's Office*

OCA

21-007010

Victim

TUTTLE, KASTINE MARIE

Offense

FALSE VERIFICATION OF OWNERSHIP LT

Date / Time Reported

Wed 02/24/2021 10:39

Kastine stated the items belong to her.

I provided information to Kastine regarding the procedure to obtain her property. Kastine had previously stated she would only be in Florida for a couple of days and she would be returning to Kentucky.

Kastine stated she would go to the Pawn Max and she would purchase her items from the business on tomorrow's date, Wednesday, 02/24/21.

I told Kastine I would be completing the necessary paperwork concerning the transactions of the jewelry items and I also told Kastine I would complete the arrest paperwork concerning Matthew and Christina for the offense of False Verification of Ownership. I told Kastine I would call her with any updated information regarding the cases and if/when arrests were made.

On Wednesday, 02/24/21, at approximately 1401 hours, I received a text message from Kastine. Kastine stated she was at Pawn Max at this time and she would like to buy her property from the business.

I called Pawn Max and I spoke with Allison. I provided an additional case number, (PSO case #21-7010/False Verification of Ownership), concerning the stolen 14KT gold chain. I told Allison that I would respond to the business and I would sign the second release for this item to be returned to the owner.

This case will remain active pending the receipt of the paperwork from Pawn Max concerning the transaction completed by Matthew Davis.

CASE SUPPLEMENTAL REPORT

Printed: 03/25/2021 09:18

*Pasco Sheriff's Office*OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *CLEARED BY ARREST* Case Mng Status: *CLEARED WITH ARREST* Occurred: *11/22/2020*
Offense: *FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS*

Investigator: *WRIGHT-LOVE, L. L. (3775)* Date / Time: *02/25/2021 08:48:46, Thursday*
Supervisor: *AREY, Z. A. (1000)* Supervisor Review Date / Time: *03/02/2021 10:32:42, Tuesday*
Contact: Reference: *Other*

RELATED CASE: 21-7011/False Verification of Ownership 21-4417/Burglary/Grand Theft

STAT DATA: Add as other person: Alicia VanBlargen employed at the Pawn Max 6948 Gall Boulevard Zephyrhills 813-395-8843

CASE STATUS: Active

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (1) Probable Cause Affidavit

ICR: 2 x \$26 = \$52

On Wednesday, 02/24/21, at 1700 hours, I responded to Pawn Max, which is located at 6948 Gall Boulevard, Zephyrhills. Upon arrival I spoke with Alicia VanBlargen.

Alicia provided Florida Pawnbroker Transaction form #14024594 concerning the transaction completed on 11/22/20, at 1436 hours, by Matthew Aaron Davis for the following items:

1. 6.9G necklace 14KYG 5F 18" rope Matthew received \$80.00 for the item
2. 1.9G pendant 14KYG 1.9G Tweety Bird

The initials on the bottom left corner of the form are AZM. This is Allison Macho. Allison was the associate who completed the transaction with Matthew concerning the items. Allison was not present at this time.

During my prior conversation with Alicia, she stated the Tweety Bird charm had been sold shortly after it was sold by Matthew and it was no longer available. The 18" rope chain was currently at the business location.

Earlier this date Kastine, victim, responded to the Pawn Max to identify her items and purchase the items from the business. During that time Kastine stated she did not want to purchase the necklace, she only wanted to have her Tweety Bird Charm and the bayonet from the related case, (PSO case #7011/False Verification of Ownership)

The 18" rope chain will be retained by the Pawn Max and placed for sale at this time.

I completed a request to the Forensics unit to compare the thumb print located on the bottom right corner of the Florida Pawnbroker Transaction form to be compared to the thumb print belonging to Matthew Davis, OBTS #5102147740.

Probable cause exists for the arrest of Matthew at this time.

CASE SUPPLEMENTAL REPORT

Printed: 03/25/2021 09:18

Pasco Sheriff's Office

OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *CLEARED BY ARREST*

Case Mng Status: *CLEARED WITH ARREST*

Occurred: *11/22/2020*

Offense: *FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS*

This case will remain active pending contact with Matthew Davis.

CASE SUPPLEMENTAL REPORT

Printed: 03/25/2021 09:18

*Pasco Sheriff's Office*OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *CLEARED BY ARREST* **Case Mng Status:** *CLEARED WITH ARREST* **Occurred:** *11/22/2020*
Offense: *FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS*

Investigator: *WRIGHT-LOVE, L. L. (3775)* **Date / Time:** *03/09/2021 12:39:46, Tuesday*
Supervisor: *AREY, Z. A. (1000)* **Supervisor Review Date / Time:** *03/15/2021 10:29:52, Monday*
Contact: **Reference:** *Other*

RELATED CASE: 21-4417/Burglary/Residence

STAT DATA: Change suspect Matthew Aaron Davis to arrested

CASE STATUS: Cleared with arrest

BWC ACTIVATED: N/A

SUPPORT DOCUMENTS: (1) Probable Cause Affidavit

ICR: 2 x \$26 = \$52

LIVE INVEST: Monday, 03/22/21 at 1330 hours.

On Tuesday, 03/09/21, at approximately 1100 hours, I responded to the address which is located at 6819 23rd Street, Zephyrhills. I responded to the address in an attempt to speak with Matthew Aaron Davis and Christine Renee Hills. I responded to the address with Detective Maximino Lebron.

Upon arrival at the home we walked to the south side entrance/exit to the mobile home. Upon walking up the wooden stairs to the home I heard (2) separate voices coming from within the home. I also heard (1) dog barking.

I knocked on the door and there was no answer. I knocked additional times and a brief time later a female's voice stated, "hold on."

A few moments later Christine opened the door to the home and she was talking to the dog as she was exiting the home and navigating on crutches.

I asked Christine if she was okay and she stated the following, not verbatim: She had been hit by a small truck (4) days ago. Christine stated it occurred at approximately 10:30 pm and she did not know who hit her and the person never stopped. Christine stated she called Matthew to come help her and pick her up at that time.

Christine said she was taken to the hospital in Tampa and they told her she had a fractured wrist, and broken tibia. Christine pulled on the leg of her pajamas to reveal multiple lacerations, road rash and swelling on her right leg.

Christine said they would not cast her broken bones and they told her they did not do that any longer. Christine said the hospital told her she would need to go to a doctor's office and they would cast her broken bones.

Christine stated she plans to go to a doctor in a couple of days to get it taken care of.

CASE SUPPLEMENTAL REPORT

Printed: 03/25/2021 09:18

*Pasco Sheriff's Office*OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *CLEARED BY ARREST***Case Mng Status:** *CLEARED WITH ARREST***Occurred:** *11/22/2020***Offense:** *FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS*

At this time I asked her if Matthew was in the home.

Christine stated he was in the back of the home.

I asked her if she had talked to him concerning my conversation with him approximately (2) weeks ago.

Christine said they talked about the call but did not talk about anything specific.

I asked Christine if she would go and get Matthew.

As Christine entered into the home Detective Lebron walked toward the north side of the mobile home to watch potential exits of the home.

A few moments later Christine exited the home alone.

I asked Christine where Matthew was at this time.

Christine stated Matthew was going to come outside.

A brief time later Matthew exited the home.

I introduced myself to him and I asked him if he remembered my conversation with him a couple of weeks ago.

Matthew said he did remember the conversation.

I provided information pertaining to this investigation and I told Matthew and Christine there were items identified by the victim that were sold by both of them. I told Matthew our previous conversation that we had discussed the fact that the jewelry he had pawned was also identified by the victim, Kastine Tuttle, to belong to her.

Matthew did not say anything at this time. Christine began to become nervous as I watched her hands as she was smoking a cigarette and she began to stutter when she spoke.

I also provided information to Christine that Matthew previously told me that he pawned/sold the jewelry items to the pawn shop because Christine told him she did not have identification.

Christine stated she did give the items to him because she did not have identification. Christine said she recently was able to get a new ID card.

I repeated myself and I told Christine that Kastine identified the jewelry items and also the bayonet to belong to her. I told Christine she had sold the bayonet to Pawn Max and recently.

I told Matthew per my conversation with him, he was in trouble.

Matthew stated, "so, I'm going to jail." Matthew turned to the side at this time and placed his hands to the rear of his back.

CASE SUPPLEMENTAL REPORT

Printed: 03/25/2021 09:18

Pasco Sheriff's Office

OCA: 21007010

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *CLEARED BY ARREST*

Case Mng Status: *CLEARED WITH ARREST*

Occurred: 11/22/2020

Offense: *FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS*

Christine asked for a business card at this time and stated she would like to be able to speak with me at a later time.

NOTE: Due to the fact that Christina had been hit by a car and she was on crutches and visibly injured, she was not arrested for case #21-4417/Burglary or case #21-4417/False Verification of Ownership.

Matthew was placed under arrest at this time and he was escorted to my unmarked agency vehicle. Matthew was cooperative during this time and he only stated, "she go me good."

I read Matthew Miranda by card and I asked him if he wanted to talk to me.

Matthew stated, "she really go me." Matthew said they had been arguing for some time and not getting along. Matthew said Christine's boyfriend lives down the road.

Matthew said he shares (3) children with Christine and they are currently staying at Christine's mother's home. Matthew said at one time Christine told him he was going to pay dearly.

Matthew said Christine knows that his sons are his world and she took them away from him.

Matthew did not add any pertinent information pertaining to this investigation or the related cases.

I provided the original Probable Cause Affidavit to the transport driver. The COVID questions/paperwork and the property paperwork was completed by me prior to Matthew's transport.

A State Attorney's Live Invest is scheduled, Monday, 03/22/21, at 1330 hours.

CASE SUPPLEMENTAL REPORT

Printed: 03/25/2021 09:18

*Pasco Sheriff's Office*OCA: **21007010**

THE INFORMATION BELOW IS CONFIDENTIAL - FOR USE BY AUTHORIZED PERSONNEL ONLY

Case Status: *CLEARED BY ARREST***Case Mng Status:** *CLEARED WITH ARREST***Occurred:** *11/22/2020***Offense:** *FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS***Investigator:** *VELEZ, J. (5954)* *(Wright)***Date / Time:** *03/16/2021 15:43:22, Tuesday***Supervisor:** *HAUGHT, H. (5472)***Supervisor Review Date / Time:** *03/23/2021 11:08:29, Tuesday***Contact:****Reference:** *Known To Known Identification Supplement***Date:** *03/16/21***Case #:** *21-07010***Comparison Request(s) By:** *L. Wright-Love***Examiner(s):** *J. Velez #5954***Verifier(s):** *M. Talamo #5383***Stat Data:** *N/A***Supplemented by:** *J. Velez #5954***ICR:** *1.5 hrs***Subject(s) Compared (IDENTIFIED) - Name, Sex, Race, DOB and Reference #'s if applicable:***Davis, Matthew Aaron, W/M, 01/05/88, OBTS: 5102147740, SID: 07661006***Submitted By:** *L. Wright-Love***Item Compared:** *Original of Florida Pawnbroker Transaction Form (6948 Gall Blvd, Zephyrhills, FL 33542) Date: 11/22/20, Control #: 14024594***Result:** *Identification***Friction Ridge Skin Area:** *Right Thumb (Finger #1)***Subject:** *Davis, Matthew***Note(s):** *N/A*

Sao Inwest 3/22/21

Pasco Sheriff's Office

SAO CASE REFERRAL COVER SHEET

Case Number: 21-4417

Arrest: X

Offense Type: Burg/Dwelling

Non-Arrest Referral: _____

Arrest/Referral Date: 3-9-21

Invest Date/Time: 1-22-21 1330

Document(s) Submitted:

- ☒ Report(s)
- ☒ Supplemental Report(s)
- ☒ P.C. Affidavit(s)
- ☐ Written Statement(s)
- ☐ Property Receipt(s)
- ☐ Vehicle Impound Sheet(s)
- ☐ LAP Form
- ☒ Other: ICR
- Ops Cad
- Power trans.

Document(s) Required:

- ☐ Report(s)
- ☐ Supplemental Report(s)
- ☐ P.C. Affidavit(s)
- ☐ Written Statement(s)
- ☐ Property Receipt(s)
- ☐ Vehicle Impound Sheet(s)
- ☐ LAP Form
- ☐ Other: _____
- _____
- _____

Comment(s): Davis - 21 CF 1143

RECEIVED

MAR 11 2021

State Attorney's Office
(26)

DEL-L LOVE
Requestor's Name (Print)

3775
CJIS#

[Signature]
Signature

3-9-21
Date Requested

Arcy
Reviewing Supervisor's Name (Print)

1000
CJIS#

[Signature]
Signature

03/10/21
Date Reviewed

CALCULATION SHEET

To: The Honorable Bernard J. McCabe, State Attorney Sixth Judicial Circuit

Attention: _____

From: Detective Linda Love CJIS #: 3775 Telephone: (352) 518-5022Defendant: Matthew Davis Court Case: _____PSO Report #: 21-4417 Date of Report: 03/09/2021

The following are the actual expenses incurred by the Pasco Sheriff's Office in conducting the investigation of the above captioned defendant. We request the court include these investigative costs and/or salaries in the judgement against the defendant, or as a condition of the defendant's probation or community control.

Name	CJIS #	Date(s) of Investigation	Number of Hours	X	Hourly Pay Rate	=	Cost
Detective Linda Love	3775	02/16/21	1	X	\$26	=	26.00
Detective Linda Love	3775	02/19/21	2	X	\$26	=	52.00
Detective Linda Love	3775	02/23/21	2	X	\$26	=	52.00
Detective Linda Love	3775	03/05/21	1	X	\$26	=	26.00
Detective Linda Love	3775	03/09/21	2	X	\$26	=	52.00
				X		=	0.00
				X		=	0.00
				X		=	0.00
				X		=	0.00
				X		=	0.00
				X		=	0.00
				X		=	0.00
				X		=	0.00
				X		=	0.00
				X		=	0.00
				X		=	0.00

TOTAL SALARIES THIS PAGE: 208.00Detective Linda Love

NAME

3775

CJIS #



SIGNATURE

3-9-21

DATE



NAME

10000

CJIS #



SIGNATURE

03/10/21

DATE

Same

IN THE DISTRICT COURT OF APPEAL OF FLORIDA SECOND DISTRICT

MATTHEW AARON DAVIS,
Appellant,

v.

STATE OF FLORIDA,
Appellee.

Case No. 2D2024-1649

PETITION FOR WRIT OF MANDAMUS

INTRODUCTION

COMES NOW, the Petitioner, MATTHEW AARON DAVIS, pro se, respectfully petitions this Honorable Court for a Writ of Mandamus compelling the Clerk of the Sixth Judicial Circuit Court of Pasco County, Florida, to file and process in a timely manner all indigent filings, notices of appeal, and motions in Case No. 512021CF001143CFAXES. In support of this Petition, the Appellant states as follows:

JURISDICTION

This Court has jurisdiction to issue writs of mandamus under Article V, Section 4(b)(3) of the Florida Constitution and Rule 9.030(b)(3) of the Florida Rules of Appellate Procedure.

STATEMENT OF FACTS

The Appellant is a defendant in the lower tribunal case, 512021CF001143CFAXES in the Sixth Judicial Circuit Court of Pasco County, Florida.

The Petitioner has consistently faced undue delays and refusals by the Clerk of the Circuit Court to timely file and process various indigent filings, Untimely notices of appeal

The Petitioner has submitted the following documents for filing, which have not been processed in a timely manner:

- a. Indigent Filings.

7/22/2024 8:54:14 AM

- b. Notice of Appeal.
- c. Multiple motions, including but not limited to motions for Rule 3.850 Post Conviction Relief and motion requesting council

Despite multiple attempts and requests to ensure these documents are filed, the Clerk of the Circuit Court has failed to act within a reasonable timeframe, causing significant prejudice to the Petitioner's case.

The Petitioner has a legal right to have his documents filed and processed timely, and the Clerk of the Sixth Judicial Circuit Court has a clear legal duty to perform this administrative function without unnecessary delay.

LEGAL STANDARD

A writ of mandamus is an appropriate remedy to compel the performance of a ministerial duty that an official is required to perform.

The Florida Constitution and statutory provisions ensure that indigent defendants are not denied access to the courts due to their inability to pay filing fees.

ARGUMENT

The Sixth Judicial Clerk of the Circuit Court has a nondiscretionary duty to file and process all submitted documents, including those from indigent defendants.

The untimely processing of filings and motions directly contravenes the Petitioner's constitutional right to due process and access to the courts.

The Petitioner's ability to appeal and seek appropriate legal remedies is severely hindered by the Clerk's failure to perform its statutory duties.

Immediate intervention by this Court is necessary to ensure that the Clerk of the Circuit Court fulfills its obligations, thereby safeguarding the Petitioner's legal rights.

RELIEF SOUGHT

WHEREFORE, the Petitioner respectfully requests that this Honorable Court issue a Writ of Mandamus directing the Clerk of the Circuit Court of Pasco County, Florida, to:

- a. Immediately file and process all pending indigent filings, notices of appeal, and motions submitted by the Petitioner

7/22/2024 8:54:14 AM

b. Ensure that all future filings and motions submitted by the Petitioner are processed in a timely manner consistent with the statutory and constitutional requirements.

Respectfully submitted,



Matthew Aaron Davis
Pro Se
4538 Charter St.
Zephyrhills, FL 33542
MaDavisFS20@gmail.com

Dated: July 19 2024

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Petition for Writ of Mandamus has been furnished by U.S. Mail/email or electronic filing to the Clerk of the Sixth Judicial Circuit Court of Pasco County, Florida, and the Office of the States Attorney, of the Sixth Judicial Circuit Court of Pasco County Florida on this 19 day of July, 2024.



Matthew Aaron Davis
Pro Se
4538 Charter St.
Zephyrhills, FL 33542
MaDavisFS20@gmail.com

7/22/2024 8:54:14 AM

Filing # 202782277 E-Filed 07/17/2024 11:52:47 PM

**IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA**

MATTHEW AARON DAVIS,
Appellant

vs.

STATE OF FLORIDA,
Appellee

Filed for Record
Pasco County, Florida
2024 JUL 18 AM 11:00
Nikki Alvarez-Davis
Clerk & Comptroller
Pasco County, Florida

CASE NO.: 512021CF001143CFAXES
County: Pasco

NOTICE OF APPEAL

NOTICE IS HEREBY GIVEN that the Defendant, Matthew Aaron Davis, hereby appeals to the District Court of Appeal of Florida, Second District, the judgment of conviction and sentence rendered against him by the Honorable Judge Gregory Groger in this case. This appeal is taken from the final judgment and sentence entered by the Sixth Circuit Court of Pasco County, Florida, on April 12, 2023. The nature of the judgment and sentence appealed from is as follows:

1. Conviction for the offense of burglary, fraud and dealing in stolen property
2. The imposition of a sentence of 285 days of incarceration and a fine of \$6000 time served.

The Appellant contends that the judgment of conviction and the sentence imposed are contrary to the law and the evidence, and the Appellant seeks review of the following:

3. Insufficient Counsel:

A. The Appellant was represented by 17 different court-appointed lawyers from four different offices over the course of three years. Such turnover and lack of consistent legal representation hindered the preparation of an adequate defense.

B. The Appellant's post-conviction lawyer, Ms. Michelle Bui, refused to file an appeal despite multiple written requests from the Appellant.

4. Coerced Plea Deal:

A. The Appellant was influenced by threats of indefinite incarceration because of negative media coverage due to his employment with Pasco County.

5. Malicious Prosecution:

A. The Appellant faced criminal charges without probable cause, and the prosecution pursued the case with malice, resulting in undue harm to the Appellant's personal and professional life.

6. Violation of Due Diligence and Brady Rule:

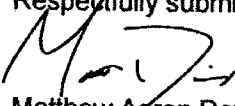
A. The Pasco County Sheriff's Department denied access to critical evidence, including police reports and video footage essential for the defense, in violation of the Brady rule, which mandates the disclosure of exculpatory evidence by the prosecution.

The Defendant requests that the appellate court reverse the conviction and sentence, or alternatively, remand for a new trial or such other relief as the appellate court deems just and proper.

Request to the Clerk:

The Appellant respectfully requests that the Clerk of the Circuit Court of the Sixth Judicial Circuit prepare and transmit a certified copy of this Notice of Appeal, along with the original record on appeal rule 3.850 and a certified copy of the full case log, to the Clerk of the Second District Court of Appeal.

Respectfully submitted this 18 day of July, 2024.


Matthew Aaron Davis
4538 Charter St
Zephyrhills, FL 33542
Phone: 656-212-3599
Email: MaDavisFS20@gmail.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Notice of Appeal has been furnished by U.S. Mail to the Clerk of the Circuit Court of Pasco County, Florida, and by electronic mail to the Office of the State Attorney, Sixth Judicial Circuit, on this 18 day of July, 2024.

A handwritten signature in black ink, appearing to read 'Matthew', with a long horizontal stroke extending to the right.

Matthew Aaron Davis

4538 Charter St

Zephyrhills, FL 33542

Phone: 656-212-3599

Email: MaDavisES20@gmail.com

**DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SECOND DISTRICT**

1700 N. Tampa Street, Suite 300, Tampa FL 33602

July 18, 2024

MATTHEW AARON DAVIS,
APPELLANT(S)

CASE NO.: 2D2024-1649
L.T. No.: 2021CF-001143

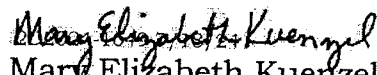
V.

STATE OF FLORIDA,
APPELLEE(S).

BY ORDER OF THE COURT:

Appellant filed the notice of appeal in this court. A copy is separately transmitted to the lower tribunal clerk to promptly certify and return it to this court as with any notice of appeal, accompanied by any order of indigency that may have been entered by the lower tribunal. The notice of appeal shall be returned for filing in this case number.

I HEREBY CERTIFY that the foregoing is a true copy of the original court order.


Mary Elizabeth Kuenzel, Clerk
2D2024-1649 7/18/24



LS

Served:
CRIM APP TAMPA ATTORNEY GENERAL
PASCO CLERK
MATTHEW AARON DAVIS

Filed For Record
Pasco County, Florida
2024 JUL 18 AM 11:00
Nikki Alvarez-Soriano
Clerk & Comptroller
Pasco County, Florida

**DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SECOND DISTRICT**

1700 N. Tampa Street, Suite 300, Tampa FL 33602

July 18, 2024

MATTHEW AARON DAVIS,
APPELLANT(S)

CASE NO.: 2D2024-1649

L.T. No.: 2021CF-001143

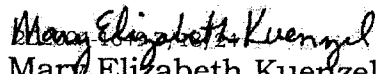
V.

STATE OF FLORIDA,
APPELLEE(S).

BY ORDER OF THE COURT:

Within fifteen days from the date of this order, Appellant shall show cause why this appeal should not be dismissed as untimely.

I HEREBY CERTIFY that the foregoing is a true copy of the original court order.


Mary Elizabeth Kuerzel, Clerk
2D2024-1649 7/18/24



LS

Served:
CRIM APP TAMPA ATTORNEY GENERAL
PASCO CLERK
MATTHEW AARON DAVIS

Filed For Record
Pasco County, Florida
2024 JUL 18 AM 11:01
Nikki Alvarez-Scalos
Clerk & Comptroller
Pasco County, Florida

**DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SECOND DISTRICT**

1700 N. Tampa Street, Suite 300, Tampa FL 33602

July 18, 2024

MATTHEW AARON DAVIS,
APPELLANT(S)

CASE NO.: 2D2024-1649
L.T. No.: 2021CF-001143

V.

STATE OF FLORIDA,
APPELLEE(S).

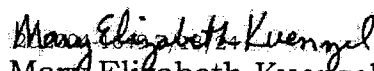
BY ORDER OF THE COURT:

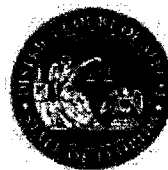
This appeal has been filed without a filing fee required by section 35.22(2)(a), Florida Statutes.

Appellant shall forward the required \$300.00 filing fee or, if applicable, an order from the lower tribunal finding Appellant insolvent pursuant to sections 57.081 and 924.17, Florida Statutes, or a clerk's certificate pursuant to section 27.52, Florida Statutes, within forty days from the date of this order.

If this court does not receive any of the above within the prescribed time, this appeal may be subject to dismissal without further notice.

I HEREBY CERTIFY that the foregoing is a true copy of the original court order.

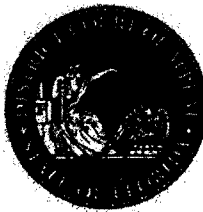

Mary Elizabeth Kuenzel, Clerk
2D2024-1649 7/18/24



Filed For Record
Pasco County, Florida
2024 JUL 18 AM 11:01
Nikki Alvarez-Solis
Clerk & Controller
Pasco County, Florida

LS

Served:
CRIM APP TAMPA ATTORNEY GENERAL
PASCO CLERK
MATTHEW AARON DAVIS



DISTRICT COURT OF APPEAL OF FLORIDA, SECOND DISTRICT

1700 N. Tampa Street, Suite 300
Tampa, FL 33602
(727) 610-3741

ACKNOWLEDGEMENT OF NEW CASE

July 18, 2024

MATTHEW AARON DAVIS,
APPELLANT(S)

CASE NUMBER:
2D2024-1649

V.

STATE OF FLORIDA,
APPELLEE(S).

The Second District Court of Appeal has received a case initiation document reflecting a filing date of July 17, 2024. The county of origin is Pasco County.

Filed For Record
Pasco County, Florida
2024 JUL 18 AM 11:00
Nikki Alvarez-Cortes
Clerk & Controller
Pasco County, Florida

The lower tribunal case number is 2021CF-001143.

The filing fee is: Fee Owed

Case Type: NOA Final - Circuit Criminal - Judgment and Sentence.

The Second District Court of Appeal's case number must be used on all pleadings filed in this case.

Please review and comply with any handouts enclosed with this acknowledgement letter.

LS

cc:
CRIM APP TAMPA ATTORNEY GENERAL

PASCO CLERK
MATTHEW AARON DAVIS

DISTRICT COURT OF APPEAL, SECOND DISTRICT
OF FLORIDA

NOTICE OF APPEAL TRANSMITTAL FORM

MATTHEW AARON DAVIS
Appellant(s)

PASCO
County/State Agency

v.

STATE OF FLORIDA
Appellee(s)

L.T. Case No.: 2021-CF-1143

- ☒ The accompanying notice of appeal was filed on 07/18/2024 and a certified electronic copy of the notice accompanies this form.
- ☐ The civil notice carried with it a copy of the order appealed, which is transmitted with the notice.
- ☐ The civil notice was not accompanied by a copy of the order appealed.
- ☐ The district court's filing fee has been received and will promptly be forwarded to the court by U.S. Mail.
- ☐ There is no filing fee in this type of proceeding (e.g., dependency/termination of parental rights; postconviction and habeas corpus appeals; delinquency appeals; administrative reemployment assistance appeals initiated by an employee).
- ☐ The appellant has been determined to be indigent. Included in the transmission of the notice of appeal is an order or certificate of insolvency.
- ☒ An appellate filing fee appears to be required but has not been paid.
- ☐ This is dependency/termination of parental rights case. A designation to the court reporter ☐ does or ☐ does not accompany the notice of appeal in the transmission to the district court.

CASE TYPE:

- ☐ Summary postconviction appeal. An electronic bookmarked record is being transmitted to the district court's FTP server contemporaneously with the notice of appeal.
- ☐ Summary postconviction appeal. The electronic record cannot be transmitted at this time but will follow within days.
- ☐ Nonsummary postconviction appeal. The lower tribunal clerk has has not treated the notice of appeal as a designation to the court reporter.
- ☒ Judgment and sentence appeal.

2024 JUL 18 PM 3:25
 Clerk of Court
 Pasco County, Florida

___ Juvenile delinquency appeal.

___ State criminal appeal.

___ Dependency/termination of parental rights appeal.

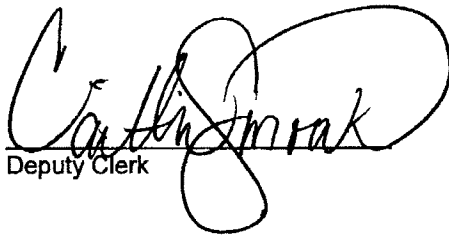
___ Other civil appeal, including probate/guardianship, Ryce, Baker Act, etc.

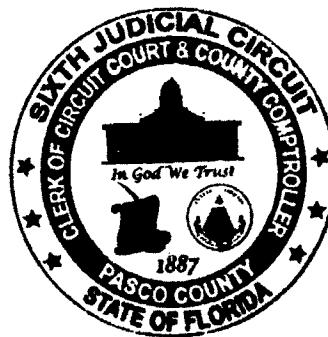
___ Administrative appeal.

___ Criminal appeal of unknown case classification. A copy of the order that seems to be appealed is included in this transmission, or it is impossible to determine what order the appellant is attempting to appeal.

Further comments that might be of value to the district court in determining case classification and jurisdiction are:

24-11049


Deputy Clerk



**IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA**

**MATTHEW AARON DAVIS,
Appellant**

vs.

**STATE OF FLORIDA,
Appellee**

**Filed For Record
Pasco County, Florida
2024 JUL 18 AM 11:00
Nilki Alvarez-Soriano
Clerk & Comptroller
Pasco County, Florida**

**CASE NO.: 512021CF001143CFAXES
County: Pasco**

NOTICE OF APPEAL

NOTICE IS HEREBY GIVEN that the Defendant, Matthew Aaron Davis, hereby appeals to the District Court of Appeal of Florida, Second District, the judgment of conviction and sentence rendered against him by the Honorable Judge Gregory Groger in this case. This appeal is taken from the final judgment and sentence entered by the Sixth Circuit Court of Pasco County, Florida, on April 12, 2023. The nature of the judgment and sentence appealed from is as follows:

- 1. Conviction for the offense of burglary, fraud and dealing in stolen property**
- 2. The imposition of a sentence of 285 days of incarceration and a fine of \$6000 time served.**

The Appellant contends that the judgment of conviction and the sentence imposed are contrary to the law and the evidence, and the Appellant seeks review of the following:

3. Insufficient Counsel:

A. The Appellant was represented by 17 different court-appointed lawyers from four different offices over the course of three years. Such turnover and lack of consistent legal representation hindered the preparation of an adequate defense.

B. The Appellant's post-conviction lawyer, Ms. Michelle Bui, refused to file an appeal despite multiple written requests from the Appellant.

4. Coerced Plea Deal:

A. The Appellant was influenced by threats of indefinite incarceration because of negative media coverage due to his employment with Pasco County.

5. Malicious Prosecution:

A. The Appellant faced criminal charges without probable cause, and the prosecution pursued the case with malice, resulting in undue harm to the Appellant's personal and professional life.

6. Violation of Due Diligence and Brady Rule:

A. The Pasco County Sheriff's Department denied access to critical evidence, including police reports and video footage essential for the defense, in violation of the Brady rule, which mandates the disclosure of exculpatory evidence by the prosecution.

The Defendant requests that the appellate court reverse the conviction and sentence, or alternatively, remand for a new trial or such other relief as the appellate court deems just and proper.

Request to the Clerk:

The Appellant respectfully requests that the Clerk of the Circuit Court of the Sixth Judicial Circuit prepare and transmit a certified copy of this Notice of Appeal, along with the original record on appeal rule 3.850 and a certified copy of the full case log, to the Clerk of the Second District Court of Appeal.

Respectfully submitted this 18 day of July, 2024.



Matthew Aaron Davis

4538 Charter St

Zephyrhills, FL 33542

Phone: 656-212-3599

Email: MaDavisFS20@gmail.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Notice of Appeal has been furnished by U.S. Mail to the Clerk of the Circuit Court of Pasco County, Florida, and by electronic mail to the Office of the State Attorney, Sixth Judicial Circuit, on this 18 day of July, 2024.



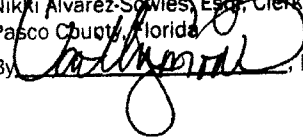
Matthew Aaron Davis
4538 Charter St
Zephyrhills, FL 33542
Phone: 656-212-3599
Email: MaDavisFS20@gmail.com

State Of Florida, County Of Pasco

This is to certify that the foregoing is a true and correct copy of the document on file or of public record in this office. Witness my hand and official seal this

18th day of July 2024

Nikki Alvarez-Sowles, Esq. Clerk & Comptroller
Pasco County, Florida

By  Deputy Clerk



2 ✓

**IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT OF
THE STATE OF FLORIDA, IN AND FOR PASCO COUNTY
CRIMINAL DIVISION**

STATE OF FLORIDA

Case Nos. 21-1143CFAES
22-3171CFAES

v.

Section: 2

MATTHEW DAVIS,
SPN: 626638, Defendant.

**ORDER DISMISSING DEFENDANT'S CORRESPONDENCE (TREATED AS A
MOTION TO WITHDRAW PLEA)**

THIS CAUSE came before this Court on the Defendant's *pro se* correspondence filed December 11, 2023. Based on the content and relief requested, the Court treats the correspondence as a Motion to Withdraw Plea, filed pursuant to Florida Rule of Criminal Procedure 3.170(l). Having considered the motion, the record, and law, this Court finds as follows:

On May 2, 2023, the Defendant pled guilty to one count of burglary, one count of dealing in stolen property and one count of false verification of ownership in case number 21-1143CFAES, and two counts of aggravated assault in case number 22-3171CFAES. The Court sentenced Defendant on that same date, to time served. The Defendant did not file a direct appeal. Defendant now seeks to withdraw that plea alleging "a comprehensive review of this case is crucial to justice and will prove my innocents [sic]." Defendant also contends that he wants a trial.

As Defendant filed his motion after being sentenced, the Court treats the motion as filed under Rule 3.170(l). See Fla. R. Crim. P. 3170(l) (providing for withdrawal of pleas *after* sentencing (emphasis added)). However, the motion is untimely under that rule because it was filed more than thirty days after Defendant was sentenced. See id. (stating that a "defendant ...may file a motion to withdraw the plea within thirty days after rendition of the sentence"). As such, the court is without jurisdiction to consider the merits of Defendant's claims. See James v. State, 12 So. 3d 1290, 1290 (Fla. 2d DCA 2009) (agreeing that the trial court lacked jurisdiction to entertain the defendant's rule 3.170(l) motion because he failed to file it within thirty days of rendition of

RECEIVED

JAN 11 2024

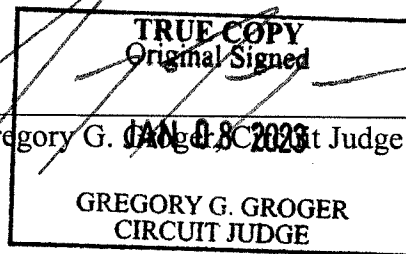
State Attorney's Office
(26)

his sentence).

Therefore, it is:

ORDERED AND ADJUDGED that the Defendant's motion is hereby **DISMISSED**.

DONE AND ORDERED in Chambers at Dade City, Pasco County, Florida, this
8 day of January, 2024. A true and correct copy of the foregoing has been furnished to
the parties below.



Copies to:

Office of the State Attorney

Matthew Davis
33404 Brisk Drive
Wesley Chapel, Florida 33543



OFFICE OF THE STATE ATTORNEY
SIXTH JUDICIAL CIRCUIT OF FLORIDA
PASCO AND PINELLAS COUNTIES

BRUCE BARTLETT
State Attorney

PAUL DECAILLY
7334 LITTLE RD STE 101 NEW PORT RICHEY, FL 34654

RE: ANSWER TO DISCOVERY
STATE OF FLORIDA v. MATTHEW AARON DAVIS
CASE #: 2021CF001143CFAXES

Dear PAUL DECAILLY:

Please be advised that we have received your Demand for Discovery on the above case.

Discovery was already sent to the office of the Public Defender.

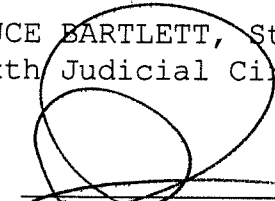
According to our interpretation of the Rules of Criminal Procedure, we are required to provide Discovery only once. Therefore, you should contact the office of the Public Defender to obtain the needed information.

Should you have any questions, please do not hesitate to call me.

Sincerely yours,

BRUCE BARTLETT, State Attorney
Sixth Judicial Circuit of Florida

By:


MICHELLE LEIGH LAVENDER
Assistant State Attorney
Bar No. 474606

MAR 16 2023

Date: _____

CC: Clerk of Court
[ANDD]

D2

IN THE CIRCUIT COURT OF THE STATE OF FLORIDA
IN AND FOR PASCO COUNTY

STATE OF FLORIDA

vs.

CASE NO. 51-2021-CF-001143

Matthew Aaron Davis
_____ /

**NOTICE OF APPEARANCE, WRITTEN PLEA OF NOT GUILTY,
DEMAND FOR DISCOVERY AND DESIGNATION OF EMAIL ADDRESS**

COMES NOW, Paul DeCailly, Office of Criminal Conflict and Civil Regional Counsel, and hereby enters an appearance on behalf of Matthew Aaron Davis.

WRITTEN PLEA OF NOT GUILTY. The Defendant enters a written plea of Not Guilty pursuant to Rules 3.160(a) and 3.170(a), Fla.R.Crim.P.

DEMAND FOR DISCOVERY. The Defendant demands discovery pursuant to Rule 3.220, Fla.R.Crim.P.

WAIVER OF APPEARANCE. Defense Counsel hereby waives the Defendant's appearance at arraignment and other non-mandatory court appearances.

E-SERVICE. The undersigned designates the following email addresses for service in accordance with Rule 2.516, Fla.R.Jud.Admin.:

Primary Email Address: npr@rc2fl.com
Secondary Email Address: pdecailly@rc2fl.com

I HEREBY CERTIFY that the original of the foregoing has been furnished to the parties listed below on 03/06/2023:

Office of the State Attorney

/s/ PAUL DECAILLY
Paul DeCailly,
FL Bar No. 796301
Office of Criminal Conflict & Civil Regional Counsel
7334 Little Road Ste 101
New Port Richey, FL 34654
(727) 842-2889
pdecailly@rc2fl.com

RECEIVED
MAR 6 2023
CLERK OF COURT
PASCO COUNTY
FLORIDA

3/6/2023 3:16:33 PM

RECEIVED
STATE ATTORNEY

2023 MAR -8 AM 9:08

(6) NEW PORT RICHEY

2023 MAR 13 PM 3:50

(3)

4-19
8:30
STATE COURT

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

STATE OF FLORIDA,
Plaintiff

vs.

MATTHEW AARON DAVIS,
DOB 1/05/88
Defendant

: (1)
: Case No:
:
: 51-2022 CF-003171
: 51-2021 CF-001143
:
:
:
:
:
:

NOTICE OF APPEARANCE AS COUNSEL FOR DEFENDANT

COMES NOW Attorney, Michelle Bui, and respectfully enters her appearance as Appointed Counsel of Record, appointment date 4/5/2023, for the above-captioned DEFENDANT, and requests copies of all motions, pleadings, orders, notices, demands, and similar papers filed herein.

WAIVER OF ARRAIGNMENT & PLEA OF NOT GUILTY

DEFENDANT in the above-styled cause, by and through the undersigned attorney, and pursuant to Fla.R.Crim.P., Rules 3.080, 3.160(a), and 3.170(a) and Rule 3.180(a), waives personal appearance at arraignment and upon receipt of a copy of a formal charging document herein, enters a plea of NOT GUILTY to the offense(s) alleged therein, waives the reading or statement as to the charge or charges therein, and demands jury trial.

Additionally, DEFENDANT, pursuant to Fla.R.Crim.P., Rule 3.050, 3.080, and 3.190(c), by and through the undersigned attorney, hereby reserves the right to file any and all appropriate pre-arraignment or arraignment motions attacking the sufficiency of the charging document, within fifteen (15) days of the date of filing and delivery of the formal charging document.

Additionally, DEFENDANT, pursuant to Fla.R.Crim.P., Rule 3.080, 3.180(a)(3) and 3.2200(p)(1) and Emmanuel v. State, 366 So.2d 513 (Fla. 2d DCA 1979), by and through the undersigned attorney, waives his/her right to be present at any pretrial conference that might be scheduled, set or held herein.

DISCOVERY DEMAND

Pursuant to Rule 3.220, Fla.R.Crim.P., the Defendant, by and through the undersigned counsel, demands all discovery rights contemplated thereunder, which include, but are not limited to the following:

1. The names and addresses of all persons known to the prosecutor to have information

4/6/2023 8:24:44 AM

- relevant to the offense charged, and to any defense with respect thereto.
2. The statement of any person listed in compliance with the preceding paragraph.
 3. Any written or recorded statements of the accused.
 4. The substance of any oral statements made by the accused.
 5. Any written or recorded statements of a co-defendant, principal, accomplice, or accessory.
 6. The substance of any oral statement of a co-defendant, principal, accomplice, or accessory.
 7. Those portions of recorded grand jury minutes that contain testimony of the accused, co-defendant, principal, accomplice, or accessory.
 8. Any tangible papers or objects which were obtained from or belong to the accused.
 9. Whether the State has any material or information which has been provided by confidential informant.
 - a. What the State intends to present to demonstrate said informant's reliability.
 - b. Name and address of the confidential informant.
 - c. Means by which the attendance of the confidential informant in Court may be secured.
 10. Whether there has been any electronic surveillance, including wire-tapping of the premises of the accused, or of conversations to which the accused was a party, and any documents relating thereto.
 11. Whether there has been any search or seizure and any documents relating thereto.
 12. Reports or statements of experts, including results of physical or mental examinations, and of scientific tests, experiments or comparisons.
 13. Any tangible papers or objects which the State intends to use in hearing or trial herein which were not obtained from or belonged to the accused.
 14. Any material information within the State's possession or control which tends to negate the guilt of the accused as to the offense charged.
 15. The FBI record, the NCIC record, the FCIC record and any other record of prior criminal convictions of the Defendant or witnesses expected to testify at hearing or trial in this cause.
 16. Any and all Dispatch Records from the arresting Agency.
 17. Any further discovery materials that justice requires.

CERTIFICATE OF SERVICE

I hereby certify that a copy of the aforesaid Notice was electronically filed via the Court's authorized electronic filing system which will send notification of this filing to the Assistant State Attorney, on the date same was e-filed.

Respectfully submitted,

/S/ Michelle Bui

Michelle Bui (120444)
Attorney for DEFENDANT

The Bui Law Office
401 East Jackson St., Ste. 2340
Tampa, FL 33602
Office: (813) 524-0609
Fax: (813) 524-0613
Email: builawoffice@gmail.com

4/6/2023 8:24:44 AM



9/27

OFFICE OF THE STATE ATTORNEY
SIXTH JUDICIAL CIRCUIT OF FLORIDA
PASCO AND PINELLAS COUNTIES

BRUCE BARTLETT

State Attorney

D KEITH HAMMOND
13815 US 98 BYPASS DADE CITY, FL 33525

RE: ANSWER TO DISCOVERY
STATE OF FLORIDA v. MATTHEW AARON DAVIS
CASE #: 2021CF001143CFAXES

Dear D KEITH HAMMOND:

Please be advised that we have received your Demand for Discovery on the above case.

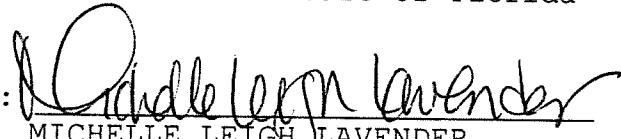
Discovery was already sent to the office of the Public Defender.

According to our interpretation of the Rules of Criminal Procedure, we are required to provide Discovery only once. Therefore, you should contact the office of the Public Defender to obtain the needed information.

Should you have any questions, please do not hesitate to call me.

Sincerely yours,

BRUCE BARTLETT, State Attorney
Sixth Judicial Circuit of Florida

By: 
MICHELLE LEIGH LAVENDER
Assistant State Attorney
Bar No. 474606

Date: July 29, 2022

CC: Clerk of Court
[ANDD]

IN THE CIRCUIT COURT OF THE STATE OF FLORIDA
IN AND FOR PASCO COUNTY

STATE OF FLORIDA

vs.

CASE NO. 2021CF001143CFAXES

Matthew Aaron Davis
SPN: 00626638/24667

**NOTICE OF APPEARANCE, WRITTEN PLEA OF NOT GUILTY,
DEMAND FOR DISCOVERY AND DESIGNATION OF EMAIL ADDRESS**

COMES NOW, D. Keith Hammond, Office of Criminal Conflict and Civil
Regional Counsel, and hereby enters an appearance on behalf of Matthew Aaron Davis.

WRITTEN PLEA OF NOT GUILTY. The Defendant enters a written plea of Not
Guilty pursuant to Rules 3.160(a) and 3.170(a), Fla.R.Crim.P.

DEMAND FOR DISCOVERY. The Defendant demands discovery pursuant to
Rule 3.220, Fla.R.Crim.P.

E-SERVICE. The undersigned designates the following email addresses for
service in accordance with Rule 2.516, Fla.R.Jud.Admin.:

Primary Email Address: dc@flrc2.org
Secondary Email Address: dhammond@flrc2.org

I HEREBY CERTIFY that the original of the foregoing has been furnished to the
parties listed below on 07/06/2022:

Office of the State Attorney

/s/ D. KEITH HAMMOND, ESQ.
D. Keith Hammond, FL Bar No. 0330582
Office of Criminal Conflict & Civil Regional Counsel
13815 US Hwy 98 Bypass
Dade City, FL 33525
(352) 521-1414
dhammond@flrc2.org

7/7/2022 9:04:01 AM

Rule 3.992(a) Criminal Punishment Code Scoresheet

The Criminal Punishment Code Scoresheet Preparation Manual is available at: http://www.dc.state.fl.us/pub/sen_cpcm/index.html

1. DATE OF SENTENCE	2. PREPARER'S NAME GACIA	3. COUNTY PASCO	4. SENTENCING JUDGE GROGER	
5. NAME (LAST, FIRST, M.I.) DAVIS, MATTHEW A.	6. DOB 1/5/1988	8. RACE WHITE	10. PRIMARY OFF. DATE 10/23/2020	12. PLEA ☐ TRIAL ☐
	7. DC #	9. GENDER MALE	11. PRIMARY DOCKET # 21CF1143	

I. PRIMARY OFFENSE: Qualifier:

FELONY DEGREE	F.S.#	DESCRIPTION	OFFENSE LEVEL	POINTS
2	810.02(3)(b)	BURGL UNOCC DWELLING	7	56

(Level - Points: 1=4, 2=10, 3=16, 4=22, 5=28, 6=36, 7=56, 8=74, 9=92, 10=116)

Prior capital felony doubles Primary Offense points ☐

I. 56.0000

II. ADDITIONAL OFFENSE(S): Supplemental page attached ☐

DOCKET #	FEL/MM DEGREE	F.S.#	OFFENSE LEVEL	QUALIFY: A/S/C/R	COUNTS	POINTS	TOTAL
21CF1143	2	812.019(1)	5		1	5.4	5.4
DESCRIPTION	TRAFFIC IN STOLEN PROPERTY						
21CF1143	2	539.001(8)(B) 8B	4		1	3.6	3.6
DESCRIPTION	FALS INF. TO PWNBRKR > \$300						
22CF3171	3	784.021(1)(A)	6		2	18	36
DESCRIPTION	AGG ASSLT-W/WPN NO INTENT TO K						

DESCRIPTION

(Level - Points: M=0.2, 1=0.7, 2=1.2, 3=2.4, 4=3.6, 5=5.4, 6=18, 7=28, 8=37, 9=46, 10=58)

Prior capital felony doubles Additional Offense points ☐

Supplemental page points

II. 45.0000

III. VICTIM INJURY:

	Number	Total		Number	Total
2 nd Degree Murder	240 X	=	Slight	4 X	=
Death	120 X	=	Sex Penetration	80 X	=
Severe	40 X	=	Sex Contact	40 X	=
Moderate	18 X	=			

III. _____

IV. PRIOR RECORD: Supplemental page attached ☐

FEL/MM DEGREE	F.S.#	OFFENSE LEVEL	QUALIFY: * A/S/C/R	DESCRIPTION	NUMBER	POINTS	TOTAL
					X	=	
					X	=	
					X	=	
					X	=	
					X	=	
					X	=	
					X	=	
					X	=	
					X	=	
					X	=	

(Level - Points: M=0.2, 1=0.5, 2=0.8, 3=1.6, 4=2.4, 5=3.6, 6=9, 7=14, 8=19, 9=23, 10=29)

Supplemental page points

IV. _____

Page 1 Subtotal: 101.0000

NAME (LAST, FIRST, MI. I.)
DAVIS, MR., MATTHEW A.

DOCKET #
21CF1143

Page 1 Subtotal: 101.0000

V. Legal Status Violation = 4 Points

- ☐ Escape ☐ Fleeing ☐ Failure to Appear ☐ Supersedeas bond ☐ Incarceration ☐ Pretrial intervention or diversion program
☐ Court imposed post prison release community supervision resulting in a conviction

V. _____

VI. Community Sanction Violation before the court for sentencing

- ☐ Probation ☐ Community Control ☐ Pretrial intervention or diversion
☐ 6 points for any violation other than new felony conviction X _____ each successive violation OR
☐ New felony conviction = 12 points X _____ each successive violation if new offense results in conviction before or at same time as sentence for violation of probation OR
☐ 12 points X _____ each successive violation for a violent felony offender of special concern when the violation is not based solely on failure to pay costs, fines, or restitution OR
☐ New felony conviction = 24 points X _____ each successive violation for a violent felony offender of special concern if new offense results in a conviction before or at the same time for violation of probation

VI. _____

VII. Firearm/Semi-Automatic or Machine Gun = 18 or 25 points

VII. _____

VIII. Prior Serious Felony = 30 points

VIII. _____

Subtotal Sentence Points 101.0000

IX. Enhancements (only if primary offense qualifies for enhancement)

Law Enf. Protect.	Drug Trafficker	Motor Vehicle Theft	Criminal Gang Offense	Domestic Violence in the Presence of Related Child (offenses committed on or after 03-12-07)	Adult-on-Minor Sex Offense (offenses committed on or after 10-1-14)
☐ x 1.5 ☐ x 2.0 ☐ x 2.5	☐ x 1.5	☐ x 1.5	☐ x 1.5	☐ x 1.5	☐ x 2.0

Enhanced Subtotal Sentence Points

IX. _____

TOTAL SENTENCE POINTS

101.0000

SENTENCE COMPUTATION

If total sentence points are less than or equal to 44, the lowest permissible sentence is any non-state prison sanction. If the total sentence points are 22 points or less, see Section 775.082(10), Florida Statutes, to determine if the court must sentence the offender to a non-state prison sanction.

If total sentence points are greater than 44:

$\frac{101.0000}{\text{total sentence points}} \text{ minus } 28 = \frac{73.0000}{\text{total sentence points}} \times .75 = \frac{54.750000}{\text{Lowest permissible prison sentence in months}}$

If total sentence points are 60 points or less than and court makes findings pursuant to both Florida Statutes 948.20 and 397.334(3), the court may place the defendant into a treatment-based drug court program.

The maximum sentence for each individual felony offense is the statutory maximum as provided in s. 775.082, F.S., unless the lowest permissible sentence listed above exceeds the statutory maximum for that offense. If the lowest permissible sentence exceeds the statutory maximum for an individual felony offense, the lowest permissible sentence replaces the statutory maximum and must be imposed for that offense. See *State v. Gabriel*, 314 So. 3d 1243 (Fla.2021). Sentences for multiple felony offenses may be imposed concurrently or consecutively. If total sentence points are greater than or equal to 363, a life sentence may be imposed.

Primary offense:

BURGL UNOCC DWELLING

15 years

Additional offense:

TRAFFIC IN STOLEN PROPERTY

Description
Maximum sentence in years

15 years

Additional offense:

FALS INF. TO PWNBRKR > \$300

Description
Maximum sentence in years

15 years

Additional offense:

AGG ASSLT-W/WPN NO INTENT TO K

Description
Maximum sentence in years

10 years

Total maximum sentence in years for all counts above if consecutive sentence imposed:

Maximum sentence in years

55 years

TOTAL SENTENCE IMPOSED

Years

Months

Days

- ☐ State Prison ☐ Life
☐ County Jail ☐ Time Served
☐ Community Control
☐ Probation ☐ Modified

Please check if sentenced as ☐ habitual offender, ☐ habitual violent offender, ☐ violent career offender, ☐ prison release reoffender, or a ☐ mandatory minimum applies.

☐ Mitigated Departure ☐ Plea Bargain ☐ Prison Diversion Program

Other Reason _____

JUDGE'S SIGNATURE	
--------------------------	--

Rule 3.992(b) Supplemental Criminal Punishment Code Scoresheet

NAME (LAST, FIRST, MI. I.) DAVIS, MR., MATTHEW A.	DOCKET # 21CF1143	DATE OF SENTENCE 9/26/2022
--	----------------------	-------------------------------

X. ADDITIONAL OFFENSE(S):

DOCKET #	FEL/MM DEGREE	F.S.#	OFFENSE LEVEL	QUALIFY: A/S/C/R	COUNTS	POINTS	TOTAL
DESCRIPTION							
DESCRIPTION							
DESCRIPTION							
DESCRIPTION							
DESCRIPTION							

(Level – Points: M=0.2, 1=0.7, 2=1.2, 3=2.4, 4=3.6, 5=5.4, 6=18, 7=28, 8=37, 9=46, 10=58)

II. _____

IV. PRIOR RECORD:

FEL/MM DEGREE	F.S.#	OFFENSE LEVEL	QUALIFY: A/S/C/R	DESCRIPTION	NUMBER	POINTS	TOTAL
					X	=	
					X	=	
					X	=	
					X	=	
					X	=	
					X	=	

(Level – Points: M=0.2, 1=0.5, 2=0.8, 3=1.6, 4=2.4, 5=3.6, 6=9, 7=14, 8=19, 9=23, 10=29)

IV. _____

Reasons for Departure – Mitigating Circumstances

(reasons may be checked here or written on the scoresheet)

- ☐ Legitimate, uncoerced plea bargain.
- ☐ The defendant was an accomplice to the offense and was a relatively minor participant in the criminal conduct.
- ☐ The capacity of the defendant to appreciate the criminal nature of the conduct or to conform that conduct to the requirements of law was substantially impaired.
- ☐ The defendant requires specialized treatment for a mental disorder that is unrelated to substance abuse or addiction, or for a physical disability, and the defendant is amenable to treatment.
- ☐ The need for payment of restitution to the victim outweighs the need for a prison sentence.
- ☐ The victim was an initiator, willing participant, aggressor, or provoker of the incident.
- ☐ The defendant acted under extreme duress or under the domination of another person.
- ☐ Before the identity of the defendant was determined, the victim was substantially compensated.
- ☐ The defendant cooperated with the State to resolve the current offense or any other offense.
- ☐ The offense was committed in an unsophisticated manner and was an isolated incident for which the defendant has shown remorse.
- ☐ At the time of the offense the defendant was too young to appreciate the consequences of the offense.
- ☐ The defendant is to be sentenced as a youthful offender.
- ☐ The defendant is amenable to the services of a post adjudicatory treatment-based drug court program and is otherwise qualified to participate in the program.
- ☐ The defendant was making a good faith effort to obtain or provide medical assistance for an individual experiencing a drug-related overdose.

Pursuant to 921.0026(3) the defendant's substance abuse or addiction does not justify a downward departure from the lowest permissible sentence, except for the provisions of s. 921.0026(2)(m).

THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY

2021CF001143CFAXES-SECTION 2

STATE OF FLORIDA

v.

MATTHEW AARON DAVIS

NOTICE OF TAKING DEPOSITION

To: MATTHEW AARON DAVIS, c/o D KEITH HAMMOND, Attorney for
Defendant

NAME	DATE AND TIME	PLACE
CHRISTINA HILLS	9/16/22 @ 9:00 AM	East Pasco Judicial Center 38053 Live Oak Ave, Rm. 204
THURLA ECKERD	9/16/22 @ 9:30 AM	Dade City, FL 33523

before an Associate or Deputy Court Reporter and Notary Public of the office of Sunset Reporting, Court Reporters, or before their duly designated representative, who is not of counsel to the parties or interested in the event of the cause. This deposition is being taken for the purpose of discovery, for use at Trial, or for such other purposes as are permitted under the Florida Rules of Civil Procedure.

I HEREBY CERTIFY that a copy of the above has been furnished to D KEITH HAMMOND, Attorney for Defendant, at 13815 US 98 BYPASS DADE CITY, FL 33525, by personal service or U.S. Mail this 22nd day of August, 2022.

BRUCE BARTLETT, State Attorney
Sixth Judicial Circuit of Florida

By: Michelle Leigh Lavender
for MICHELLE LEIGH LAVENDER
Assistant State Attorney
Bar No. 474606

REGIONAL COUNCIL, KEITH HAMMOND
State Attorney Contact: MICHELLE LAVENDER, (352) 521-4333

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA
CRIMINAL DIVISION

STATE OF FLORIDA

CASE NO: 2021-CF-1143 ES

v.

MATTHEW DAVIS

DEFENDANT'S WITNESS LIST

COMES NOW, the Defendant, MATTHEW DAVIS, in response to the State's Written Notice of Discovery and pursuant to Fla.R.Crim.P. 3.220(d), and in addition to all prior reciprocal discovery, furnishes the following information:

Pursuant to Fla.R.Crim.P. 3.220(d)(1)(a), all persons whom the Defendant expects to call as witnesses at the trial or hearing:

Christina Hills
11960 Chesterfield Road
Dade City, Florida 33525

Thurla Eckerd
11960 Chesterfield Road
Dade City, Florida 33525

352-897-2044

352-897-5783

Set State

Depos

Keth Hamman

ML
6/2/22

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a copy of the foregoing has been furnished by electronic filing to the Office of the State Attorney, Sixth Judicial Circuit, on this 16th day of May, 2022.

Jan. I will do the
Depos. Vacation 6/23
then July 6th
MPL
6/7/22

/s/ Maria C. Perinetti
MARIA C. PERINETTI
Florida Bar #0013837
Office of Criminal Conflict and Regional Counsel
7334 Little Road, Suite 101
New Port Richey, Florida 34654
(727)842-2889
mperinetti@flrc2.org

I'm on
vacation two
week of

avg 1

So don't set
that week.

4m 8/10 @ 2:10pm

9/1 1pm x 3pm 3:30pm

9/9 1pm ✓

9/16 9am ✓ w PCRB
127-847-3121

up per
per MG

1 hr per
MG

7/11
per

5/16/2022 12:07:23 PM

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY

21CF1143CFAXES-02

STATE OF FLORIDA :
VS. : BURGLARY, 2° F
DEALING IN STOLEN PROPERTY, 2° F
FALSE VERIFICATION, 3° F
MATTHEW DAVIS :
W/M DOB: 01/05/1988

ORDER TO COMPEL

This cause coming on to be heard upon the State's Motion to Compel fingerprints of Defendant, Matthew Davis, and the Court being fully advised in the premises, it is, therefore

ORDERED AND ADJUDGED that the State's Motion to Compel fingerprints is granted, and

IT IS FURTHER ORDERED that arrangements are made for said fingerprints to be taken at Pasco County Courthouse, 38053 Live Oak Avenue, Dade City, Florida 33523 on 1/18/2022 2022.

DONE AND ORDERED in Court, Pasco County, Florida, this 18 day of January, 2022.



G. GROGER, CIRCUIT JUDGE

True Copy

cc: CLERK OF COURT
MICHELLE LAVENDER, ASA
PUBLIC DEFENDER'S OFFICE

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY

21CF1143CFAXES-02

STATE OF FLORIDA

:

: BURGLARY, 2°F
DEALING IN STOLEN PROPERTY, 2°F
FALSE VERIFICATION, 3°F

VS.

MATTHEW DAVIS

:

W/M DOB: 01/05/1988

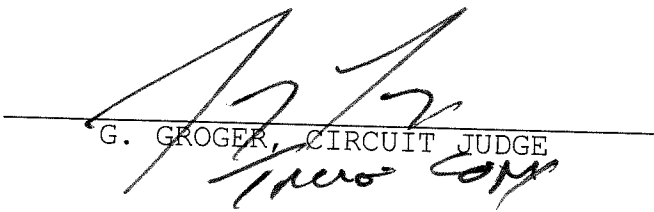
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IT IS FURTHER ORDERED that arrangements are made for said fingerprints to be taken at Pasco County Courthouse, 38053 Live Oak Avenue, Dade City, Florida 33523 on 1/18 2022.

DONE AND ORDERED in Court, Pasco County, Florida, this 18 day of January, 2022.


G. GROGER, CIRCUIT JUDGE

cc: CLERK OF COURT
MICHELLE LAVENDER, ASA
PUBLIC DEFENDER'S OFFICE

IN THE COURTS OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR PASCO COUNTY, FLORIDA

Copy

State of Florida
VS
MATTHEW AARON DAVIS

Division: SECTION 2
Case Number: 2021CF001143CFAXES

FINGERPRINTS OF DEFENDANT

1. Right Thumb	2. Right Index	3. Right Middle	4. Right Ring	5. Right Little
				
6. Left Thumb	7. Left Index	8. Left Middle	9. Left Ring	10. Left Little
				

Fingerprints taken by J. Trowell 3958 Bailiff.

I HEREBY CERTIFY that the above and foregoing fingerprints are the fingerprints of the defendant, MATTHEW AARON DAVIS, and that they were placed thereon by the defendant in my presence this the 18 day of January, 2022.

[OR]

I HEREBY CERTIFY that the digital fingerprint record associated with Transaction Control Number _____ contains the fingerprints of the defendant, MATTHEW AARON DAVIS, which were electronically captured from the defendant in my presence this the _____ day of _____, 20____.

Court Officer / Court Employee / Criminal Justice Employee

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY

2021CF001143CFAXES-SECTION 2

STATE OF FLORIDA

v.

MATTHEW AARON DAVIS

NOTICE OF HEARING

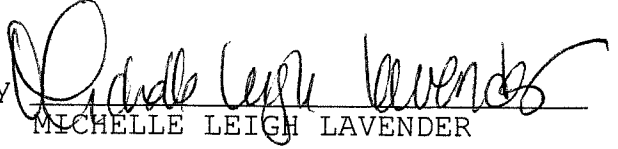
TO: MATTHEW AARON DAVIS, C/O REGIONAL COUNSEL OFFICE

PLEASE TAKE NOTICE that a **Motion TO COMPEL FINGERPRINTS** in the above-styled cause has been set before the HONORABLE KEMBA JOHNSON LEWIS, Judge of the above-styled Court, in the West Pasco Judicial Center, 7530 Little Road, New Port Richey, FL 34654 on TUESDAY, the 18TH day of JANUARY, 2022, at 11:00 A.M., or as soon thereafter as counsel may be heard.

I HEREBY CERTIFY that a copy of the above has been furnished to REGIONAL COUNSEL OFFICE, Attorney for the Defendant, at 13815 US HWY 98 BYPASS DADE CITY, FL 33525, by personal service or U.S. Mail this 4th day of January, 2023.

BRUCE BARTLETT, State Attorney
Sixth Judicial Circuit of Florida

By


MICHELLE LEIGH LAVENDER

Assistant State Attorney

Bar No. 474606

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact either the Pasco County Customer Service Center, 8731 Citizens Drive, New Port Richey, FL 34654, (727) 847-2411 (V) or the Pasco County Risk Management Office, 7536 State Street, New Port Richey, FL 34654, (727) 847-8028 (V) at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

PROPER DRESS IS REQUIRED, OR YOU MAY BE HELD IN CONTEMPT OR REFUSED ADMITTANCE. NO SHORTS, UNDERSHIRTS, TANK TOPS, ETC.

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY

21CF1143CFAXES-02

STATE OF FLORIDA

:

: BURGLARY, 2° F
DEALING IN STOLEN PROPERTY, 2° F
FALSE VERIFICATION, 3° F

VS.

MATTHEW DAVIS

:

W/M DOB: 01/05/1988

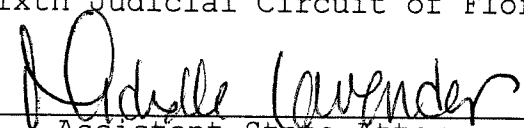
MOTION TO COMPEL

COMES NOW BRUCE BARTLETT, State Attorney for the Sixth Judicial Circuit of Florida, by and through the undersigned Assistant State Attorney, and moves to compel the Defendant in the above-styled cause to give fingerprints and as good cause and grounds therefore would show:

1. That Defendant, MATTHEW DAVIS, has been charged with Dealing in Stolen Property, False Verification, and Burglary.
2. That MATTHEW DAVIS' known fingerprints are needed to compare to the pawn transaction form to assure he is one in the same person.

WHEREFORE, the State of Florida moves this Honorable Court to enter its Order granting the State's Motion to Compel. I HEREBY CERTIFY that a copy of the above has been furnished to the Public Defender's Office by hand delivery, this 4th day of ~~December~~ January 202~~2~~.

BRUCE BARTLETT, State Attorney
Sixth Judicial Circuit of Florida


Assistant State Attorney

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PALM CO. COUNTY

2021CF001143CFAXES-2

STATE OF FLORIDA

v.

MATTHEW AARON DAVIS

ADDITIONAL WITNESS LIST AND
ACKNOWLEDGMENT OF ADDITIONAL TANGIBLE EVIDENCE

Pursuant to Rule 3.220, Fla. R. Crim. P., the following constitutes a list of additional tangible evidence and additional witnesses which may be relevant to the offense charged or to any defense of the person charged with respect thereto:

EVIDENCE:

1. PSO INCIDENT REPORT 21-004417

WITNESSES:

1. WILLIAM EDWARD HARILSON, JR., 8037 HOBART DR, ZEPHYRHILLS, FL 33540
2. ASHELI CHEEK, 20 JERRY HARDESTY RD, EKRON, KY 40117
3. DEP F VENDETTI, 36409 SR 52, DADE CITY, FL 33525
4. DET M LEBRON, 36409 SR 52, DADE CITY, FL 33525

I HEREBY CERTIFY that a copy of the above has been furnished to KIRBY ZOE KREIDER, Assistant Public Defender, Attorney for the Defendant, at 38053 LIVE OAK AVENUE DADE CITY, FL 33523, by U.S. Mail or personal service, this 14th day of may, 2021.

BRUCE BARTLETT, State Attorney
Sixth Judicial Circuit of Florida

By


MANUEL GARCIA III

Assistant State Attorney
Bar No. 845620

MG/vct

VT (2)
MS
LF
17/5/21
6/10/21

IN THE CIRCUIT COURT FOR PASCO COUNTY, FLORIDA
2021CF001143CFAXES
SECTION 2

STATE OF FLORIDA

v.

MATTHEW AARON DAVIS

EX PARTE MOTION TO WITHDRAW DUE TO CONFLICT

Petitioner, Sara Mollo, Public Defender, Sixth Judicial Circuit, State of Florida, by and through the undersigned assistant, respectfully requests this Honorable Court to enter an Order allowing Petitioner to withdraw as counsel of record in the above-styled cause and as grounds therefor:

1. The Public Defender was appointed to represent the above Defendant in the above cause on March 15, 2021.
2. That counsel currently represents Christina Hills in case 2021CF001328CFAES, who is the Co-Defendant in 2021CF001143CFAXES.
3. That the interests of these clients are adverse.
4. That during the aforementioned representation, counsel has ascertained that an ethical conflict exists, which prevents the continued representation of the Defendant in the above cause.

In support of this motion, I have requested the Defendant to waive the ethical conflict if appropriate and the client has declined, or waiver of the conflict is not appropriate; a determination has been made that there is no viable alternative that would remedy the conflict of interest; and the filing of this instant motion has been approved in writing as required by §27.5303(1)(e)2. FLA STAT.

I do certify that a copy hereof has been furnished by email/delivery to the State Attorney, West Pasco Judicial Center, New Port Richey, Florida, on June 9, 2021.


KIRBY ZOE KREIDER, Attorney at Law
eastpascoefiling@co.pinellas.fl.us
Fla. Bar Number: 125856, For
PUBLIC DEFENDER, SIXTH JUDICIAL CIRCUIT
West Pasco Judicial Center
7530 Little Road
New Port Richey, FL 34654 (727) 847-8155

KZK/LL

6/10/2021 1:58:08 PM

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STATE ATTORNEY

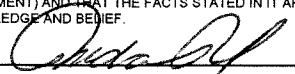
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(1)

PASCO COUNTY COMPLAINT A DAVIT

☒ PSO FLO 510000
☐ DC PD FLO 510100☐ PD FLO 510200
☐ FLO 510300☐ PR PD FLQ 510400
☐ FHP FLO 279000

ADMINISTRATIVE	OBS NUMBER 510175076		FELONY MISD.		CO. ORD. CIVIL INF.	SHIFT CID	SECTOR N4	SEC.	TWP.	RNG.	AGENCY REPORT NUMBER 21-007010																	
	☒ ARREST CHECK ALL THAT APPLY ☐ 1. FELONY ☐ 2. TRAFFIC FELONY ☐ 3. MISD. ☐ 4. MISD. TRAFFIC ☐ 5. ORDINANCE ☐ 6. OTHER ☐ 7. V.O.P. ☐ 8. PROBABLE CAUSE ☐ 9. CIVIL INF.		☒ ADULT ☐ JUVENILE		AGENCY ARREST NUMBER																							
	NOTICE TO APPEAR ☐ CHECK ONLY ONE ☐ MANDATORY APPEARANCE ☐ NON-MANDATORY APPEARANCE ☐ JUVENILE ☐ NON / ARREST REF		REQUEST FOR ☐ CHECK ONLY ONE ☐ WARRANT ☐ SUMMONS ☐ JUV. PICK-UP		REVIEWED BY ASSISTANT STATE ATTORNEY DATE																							
DEFENDANT	LOCATION OF ARREST (INCLUDE NAME OF BUSINESS) 6819 23RD STREET ZEPHYRHILLS										LOCATION OF OFFENSE (BUSINESS NAME, ADDRESS) 6948 GALL BOULEVARD, ZEPHYRHILLS, FL 33542																	
	DATE OF ARREST 03/09/2021	TIME OF ARREST 11:30	BOOKING DATE 3/9/21	BOOKING TIME 1835	JAIL DATE	JAIL TIME	WEAPON SEIZED ☐ YES ☒ NO		WEAPON TYPE NOT APPLICABLE		F.P.S.S. Notified ☐ Juv. ☐ Elderly ☐ Handicap																	
	JAIL NUMBER 247667	SPN NUMBER 00626638	FDLE NUMBER		DOC NUMBER		FBI NUMBER		Domestic Related ☐ Y ☒ N																			
CO-DEF	NAME (LAST, FIRST, MIDDLE) DAVIS, MATTHEW AARON										ALIAS		Convicted Sexual Predator / Offender ☐ Y ☒ N															
	BAGE W - WHITE B - BLACK	H - HISPANIC I - AMERICAN INDIAN O - ORIENTAL / ASIAN	CODE W	SEX M	DATE OF BIRTH 01/05/1988	AGE 33	HEIGHT 5'07"	WEIGHT 150	EYE COLOR BROWN	HAIR COLOR BROWN	COMPLEXION MED	BUILD																
	SCARS, MARKS, TATTOOS, ETC.																											
JUVENILE	PHYSICAL ADDRESS (STREET & APT #) 6819 23RD STREET, ZEPHYRHILLS, FL 33542										(CITY)		(STATE)		ZIP	PHONE (813) 895-6318	RESIDENCE TYPE 1. CITY 2. COUNTY 3. FLORIDA 4. OUT OF STATE	CODE										
	MAILING ADDRESS (STREET & APT #)										(CITY)		(STATE)		ZIP	PHONE	ADDRESS SOURCE											
	BUSINESS ADDRESS (NAME & STREET)										(CITY)		(STATE)		ZIP	PHONE	OCCUPATION UNEMPLOYED											
CHARGE	DRIVER'S LICENSE STATE / NUMBER FL										SOCIAL SECURITY NUMBER		INS NUMBER		PLACE OF BIRTH US		CITIZENSHIP US											
	CO-DEFENDANT NAME (LAST, FIRST, MIDDLE)										RACE		SEX		DATE OF BIRTH		AGE		1. ARRESTED 2. AT LARGE 3. FELONY 4. MISDEMEANOR 5. JUVENILE		CODE							
	CO-DEFENDANT NAME (LAST, FIRST, MIDDLE)										RACE		SEX		DATE OF BIRTH		AGE		1. ARRESTED 2. AT LARGE 3. FELONY 4. MISDEMEANOR 5. JUVENILE		CODE							
CHARGE	☐ PARENT ☐ OTHER NAME OF PARENT OR CUSTODIAN (LAST, FIRST, MIDDLE)										RESIDENTIAL PHONE																	
	☐ LEGAL CUSTODIAN										BUSINESS PHONE																	
	ADDRESS (STREET, APT NUMBER)																											
CHARGE	NOTIFIED BY (NAME)										DATE		TIME		JUVENILE DISPOSITION 1. HANDLED / PROCESSED WITHIN DEPT. AND RELEASED 2. TURNED OVER TO HRS / CYF 3. INCARCERATED (COUNTY JAIL)		CODE											
	RELEASED TO (NAME)										RELATIONSHIP		DATE		TIME													
	CHARGE DESCRIPTION FALSE VERIFICATION OF OWNERSHIP LT 300 DOLS										☒ F.S. ☐ CIVIL INF. ☐ ORD.		STATUTE VIOLATION NUMBER 539.001.8B8A		NCIC # 2699		COURT CASE # 2021CF001144AGS.1		CODE N									
CHARGE	ACTIVITY S. SELL N. N/A P. POSSESS										R. SMUGGLE D. DELIVER E. USE		K. DISPENSE / DISTRIBUTE		M. MANUFACTURE PRODUCE / CULTIVATE		Z. OTHER		CODE N									
	CHARGE DESCRIPTION										☐ F.S. ☐ CIVIL INF. ☐ ORD.		STATUTE VIOLATION NUMBER		NCIC #		COURT CASE #		CODE									
	ACTIVITY S. SELL N. N/A P. POSSESS										R. SMUGGLE D. DELIVER E. USE		K. DISPENSE / DISTRIBUTE		M. MANUFACTURE PRODUCE / CULTIVATE		Z. OTHER		CODE									
COST RECOVERY	REQUEST FOR INVESTIGATIVE COSTS RECOVERY FSS 938.27(1)										THE UNDERSIGNED CERTIFIED AND SWEARS THAT HE / SHE HAS JUST AND REASONABLE GROUNDS TO BELIEVE AND DOES BELIEVE THAT THE ABOVE-NAMED DEFENDANT COMMITTED THE FOLLOWING VIOLATION OF LAW:																	
	CJIS # 3775										ON THE 22 DAY OF November , 20 20 AT 2:36 ☐ A.M. ☒ P.M.																	
	# of Investigative hrs. 4 x \$26 = \$104										(SPECIFICALLY INCLUDE FACTS CONSTITUTING CAUSE FOR ARREST.)																	
PROBABLE CAUSE STATEMENT	The victim called the Pasco Sheriff's Office to report items were stolen from her home. The Defendant sold the victim's stolen items to the business known as Pawn Max which is located at 6948 Gall Boulevard, Zephyrhills. The Defendant sold the victim's 14KYG 18" rope chain to the business and he received \$80.00 for the item. The Defendant sold the victim's Tweety Bird 14KYG 1.9G pendant and the Defendant received \$30.00 for the item. The Defendant used his Florida drivers license for identification purposes and he placed his right thumb print on the bottom right corner of the Florida pawnbroker transaction form pledging he is the rightful owner of the property and the property has not liens or encumbrances and they are not stolen. The victim										*** Continued ***																	
	P.C. EXISTS FOR CHARGE(S)										JUDGE'S SIGNATURE										DATE							
	I AGREE TO APPEAR AT THE TIME AND PLACE DESIGNATED WHEN I AM NOTIFIED TO ANSWER THE OFFENSE CHARGED OR TO PAY THE FINE SUBSCRIBED. I UNDERSTAND THAT SHOULD I WILLFULLY FAIL TO APPEAR BEFORE THE COURT AS REQUIRED ONCE I AM NOTIFIED, THAT I MAY BE HELD IN CONTEMPT OF COURT AND A WARRANT FOR MY ARREST SHALL BE ISSUED. IF CITED FOR A CIVIL INFRACTION, I AGREE TO APPEAR BEFORE THE COUNTY COURT OR COMPLY WITH THE REQUIREMENTS FOR PAYING THE FINE AND MEETING ANY OTHER SPECIFIED CONDITIONS AS INDICATED ON THE BACK SIDE OF THIS AFFIDAVIT.										SIGNATURE OF DEFENDANT / JUVENILE AND PARENT OR CUSTODIAN										DATE 3/10/21 SK/KC							
ADMINISTRATIVE	☐ MIRANDA WARNING NAME										HOLD FOR OTHER AGENCY										VERIFIED BY							
	☐ ADULT ONLY ☐ HOLD FOR FIRST APPEARANCE ☐ DO NOT BOND OUT - REASON:										RIGHT THUMB Pdar										DATE							
	UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING DOCUMENT AND THAT THE FACTS STATED IN IT ARE TRUE. TO THE BEST OF MY KNOWLEDGE AND BELIEF										BOND TYPE 1. ROR 2. CASH										3. SURETY 4. BAIL / BOND		5. CERT. 6. OTHER		BOND CHARGE # 5,000		BOND CHARGE #	
ADMINISTRATIVE	WRIGHT-LOVE, L. L.										3775										CJIS #		RETURNABLE COURT DATE		RETURNABLE COURT TIME		☐ A.M. ☐ P.M.	
	NAME (PRINTED)										CJIS #										RELEASE DATE		RELEASE TIME		☐ A.M. ☐ P.M.			
	RELEASING OFFICER										PAGE 1 OF 2																	

DEFENDANT DAVIS, MATTHEW AARON						AGENCY REPORT NO. 21-007010							
CHARGE DESCRIPTION						☐ F.S. ☐ ORD.	☐ CIVIL ☐ INF.	STATUTE VIOLATION NUMBER		NCIC #	COURT CASE #		
ACTIVITY N. N/A P. POSSESS	S. SELL B. BUY T. TRAFFIC	R. SMUGGLE D. DELIVER E. USE	K. DISPENSE/ DISTRIBUTE	M. MANUFACTURE PRODUCE / CULTIVATE	Z. OTHER	CODE	AMOUNT	TYPE N. N/A A. AMPHETAMINE	B. BARBITURATE C. COCAINE E. HEROIN	H. HALLUCINOGEN M. MARIJUANA O. OPIUM / DERIV	P. PARAPHERNALIA / EQUIPMENT S. SYNTHETIC	U. UNKNOWN Z. OTHER	CODE
CHARGE DESCRIPTION						☐ F.S. ☐ ORD.	☐ CIVIL ☐ INF.	STATUTE VIOLATION NUMBER		NCIC #	COURT CASE #		
ACTIVITY N. N/A P. POSSESS	S. SELL B. BUY T. TRAFFIC	R. SMUGGLE D. DELIVER E. USE	K. DISPENSE/ DISTRIBUTE	M. MANUFACTURE PRODUCE / CULTIVATE	Z. OTHER	CODE	AMOUNT	TYPE N. N/A A. AMPHETAMINE	B. BARBITURATE C. COCAINE E. HEROIN	H. HALLUCINOGEN M. MARIJUANA O. OPIUM / DERIV	P. PARAPHERNALIA / EQUIPMENT S. SYNTHETIC	U. UNKNOWN Z. OTHER	CODE
stated she did not give the Defendant permission to take her property and she did not give the Defendant permission to sell the items. The victim responded to the business and identified the property to belong to her. Post Miranda the Defendant stated his girlfriend gave him the jewelry to sell because she did not have identification.													
* * * End * * *													
ADMINISTRATIVE	UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING (DOCUMENT) AND THAT THE FACTS STATED IN IT ARE TRUE, TO THE BEST OF MY KNOWLEDGE AND BELIEF.												
	X  WRIGHT-LOVE, L. L. 3775 NAME (PRINTED) CJIS #												

STATE ATTORNEY

VICTIM INFORMATION

21-007010

PSO OFFENSE #

1. VICTIM'S NAME: TUTTLE, KASTINE MARIE RACE: W SEX: F DOB: 09/01/1957
LAST FIRST MIDDLE

ADDRESS: 7512 CHENKIN RD, ZEPHYRHILLS, FL 33540
NUMBER STREET CITY STATE ZIP

TELEPHONE NUMBERS: (219) 545-2522 (813) 395-8413
HOME BUSINESS

COMMENT OR BUSINESS NAME: _____ SPN # _____

2. VICTIM'S NAME: _____ RACE: _____ SEX: _____ DOB: _____
LAST FIRST MIDDLE

ADDRESS: _____
NUMBER STREET CITY STATE ZIP

TELEPHONE NUMBERS: _____
HOME BUSINESS

COMMENT OR BUSINESS NAME: _____ SPN # _____

3. VICTIM'S NAME: _____ RACE: _____ SEX: _____ DOB: _____
LAST FIRST MIDDLE

ADDRESS: _____
NUMBER STREET CITY STATE ZIP

TELEPHONE NUMBERS: _____
HOME BUSINESS

COMMENT OR BUSINESS NAME: _____ SPN # _____

4. VICTIM'S NAME: _____ RACE: _____ SEX: _____ DOB: _____
LAST FIRST MIDDLE

ADDRESS: _____
NUMBER STREET CITY STATE ZIP

TELEPHONE NUMBERS: _____
HOME BUSINESS

COMMENT OR BUSINESS NAME: _____ SPN # _____

STATE ATTORNEY

RECEIVED
STATE ATTORNEY

2021 MAR 15 PM 2:20

(1)

2021CF001143CFAXES

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IN THE CIRCUIT COURT FOR PASCO COUNTY

STATE OF FLORIDA CASE NO. 2021CF001143CFAXES-SECTION 2
VS

MATTHEW AARON DAVIS

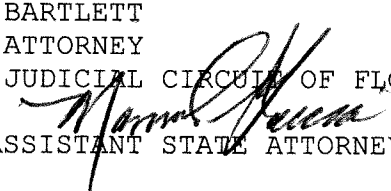
LIST OF WITNESSES : ANSWER TO DEMAND FOR DISCOVERY

Name	Type	Address
KASTINE TUTTLE	Victim	7512 CHENKIN RD ZEPHYRHILLS, FL 33540
ALICIA VANBLARGEN	Witness	PAWN MAX 6948 GALL BLVD ZEPHYRHILLS, FL 33541
DETECTIVE LINDA WRIGHT-LOVE	Primary Officer	PCSO 3775 36409 SR 52 DADE CITY, FL 33525

I DO HEREBY CERTIFY THAT COPY (COPIES) HEREOF HAVE BEEN FURNISHED TO ATTORNEY FOR
DEFENDANT, **KIRBY ZOE KREIDER**, by personal service or U.S. Mail this 15th day of

April, 2021.

ALL WITNESSES ARE
CATEGORY 'A' WITNESSES
UNLESS OTHERWISE NOTED

BRUCE BARTLETT
STATE ATTORNEY
SIXTH JUDICIAL CIRCUIT OF FLORIDA
BY 
ASSISTANT STATE ATTORNEY

IN THE CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
OF THE STATE OF FLORIDA IN AND FOR PASCO COUNTY

2021CF001143CFAXES-2

STATE OF FLORIDA

v.

MATTHEW AARON DAVIS

DEMAND FOR NOTICE OF INTENTION TO CLAIM ALIBI

TO: MATTHEW AARON DAVIS, C/O KIRBY ZOE KREIDER, ASSISTANT PUBLIC
DEFENDER

As particularly as is known to me, the place, date and time
of the commission of the crime charged in the above-numbered
Information are as follows:

Between the hours of 12:00 A.M. and 11:59 P.M., on OCTOBER
23, 2020 THROUGH FEBRUARY 2, 2021, in the vicinity of 7512
CHENKIN RD ZEPHYRHILLS, FL 33540.

This Demand for Notice of Intention to Claim Alibi may be
considered as a Statement of Particulars in the event a Motion
for Statement of Particulars is filed.

Under Rule 3.200, Fla. R. Crim. P., if you intend to offer
evidence of an alibi in your defense, you are hereby required to
serve upon the Office of the State Attorney of and for the Sixth
Judicial Circuit of the State of Florida, not less than ten (10)
days before the trial, or such other time as the Court may
direct, a notice in writing of your intention to claim alibi.
The notice shall contain specific information as to the place at
which you claim to have been at the time of the alleged offense,
and as particularly as is known to you or to your attorney, the
names and addresses of the witnesses by whom you propose to
establish your alibi. You are under a continuing duty to

disclose promptly to the State Attorney's Office the names and addresses of any additional witnesses which may come to your attention subsequent to the filing of your witness list.

If you fail in any particular manner to comply with the provisions of Rule 3.200, a motion will be made to exclude any and all evidence, except your own testimony, offered by you for the purpose of proving an alibi.

I HEREBY CERTIFY that a copy of the above has been furnished to KIRBY ZOE KREIDER, Assistant Public Defender, Attorney for the Defendant, at 38053 LIVE OAK AVENUE DADE CITY, FL 33523, by U.S. Mail or personal service, this 15th day of April, 2021.

BRUCE BARTLETT, State Attorney
Sixth Judicial Circuit of Florida

By


MANUEL GARCIA III
Assistant State Attorney
Bar No. 845620

IN THE CIRCUIT COURT FOR PASCO COUNTY, FLORIDA

MATTHEW AARON DAVIS

2021CF001143CFAXES
SECTION 2

ANSWER TO DEMAND
FOR DISCOVERY

The State of Florida, through the State Attorney of the Sixth Judicial Circuit, pursuant to the defendant's Notice of Discovery and Rule 3.220, Fla. R. Crim. P., submits the following information:

1. The names and address of all persons known to the prosecutor to have information which may be relevant to the offense charged, and to any defense thereto or to any similar fact evidence to be presented at trial, are set forth in the witness list.
2. The witness list is not all-inclusive as there may be further names and address contained in witness statements and police report supplied in this answer.
3. The following items as indicated are in the State's possession or control and are available for your inspection at the State Attorney's Office upon timely and reasonable notice. If you desire to copy and/or photograph same, copies will be provided upon signed receipt. The name(s) of confidential informant(s) will not be supplied unless the State intends to use same as witness(es) at the trial or unless ordered by the court.

- | | Yes | No |
|--|-------------------------------------|-------------------------------------|
| a. Statements given by persons listed in paragraph 1 above. | ☒ | ☐ |
| b. Written, recorded, and/or oral statements of the accused. | ☒ | ☐ |
| c. Written, recorded, and/or oral statements of co-defendants. | ☒ | ☐ |
| d. Material or information provided by a confidential informer. | ☒ | ☐ |
| e. Tangible papers not obtained from or belonging to accused which the State intends to use at hearing or trial. | ☐ | ☒ |
| f. Tangible papers obtained from or belonging to accused. | ☐ | ☒ |
| g. Electronic surveillance of premises of accused or of conversations to which accused was party. | ☐ | ☒ |
| h. Documents relating to search or seizure. | ☐ | ☒ |
| i. Reports or statements of experts. | ☐ | ☒ |

4. All tangible objects as provided by Fla. R. Crim. P. 3.220, unless otherwise indicated below, may be inspected, photographed, or tested during regular and ordinary business hours at:

a. P60

b. Sao

This document will serve as authorization for the attorney for the defendant, KIRBY ZOE KREIDER, or designated representative, to conduct discovery of tangible objects, in this case, with reference to law enforcement case numbers as follows:

a. SE21004417

b. 21-1143

5. By this Answer to Demand for Discovery, the State expects the defendant to submit a corresponding witness list and exhibit list within fifteen days and comply with all requirements of Fla. R. Crim. P. 3.220.
6. At this time, the State is aware of the following evidence which falls within the purview of Fla. R. Crim. P.3.220, if any:

For Pasco Sheriff's Office cases: Items kept or maintained by the Pasco Sheriff's Office, including body worn camera recordings, photographs, reports, surveillance video, witness statements, etc., may be obtained by submitting a request at <https://rebrand.ly/PascoGovQA>. To avoid delay in processing, please ensure you provide the correct Pasco Sheriff's Office report number, the Answer to Demand, and your notice of appearance.

ASA:
DATE DEMAND DUE: 3/30/2021

CIRCUIT COURT
ACKNOWLEDGMENT OF DISCOVERY

I HEREBY ACKNOWLEDGE THAT I HAVE RECEIVED DISCOVERY FROM THE OFFICE OF
BRUCE BARTLETT, STATE ATTORNEY, IN THE FOLLOWING CASE:

STATE OF FLORIDA V.	CASE NUMBER	DIVISION
MATTHEW AARON DAVIS	2021CF001143CFAXES	SECTION 2

DISCOVERY IN THE ABOVE-STYLED CASE INCLUDES ITEMS CHECKED BELOW:

FCIC / NCIC	☒	WAIVER OF ATTORNEY	☐
PROSECUTION COVER SHEET	☒	DEFENDANT'S STATEMENT (INCLUDING STATEMENTS CONTAINED IN POLICE REPORT)	☒
ANSWER TO DEMAND	☒	WITNESS STATEMENT (S)	☒
DEMAND ALIBI	☒		
WITNESS LIST	☒		

REPORT OF EXPERTS:

MEDICAL _____
CHEMICAL _____
FINGERPRINT _____
OTHER: _____

CONSENT TO SEARCH _____
POLICE REPORT(S) ☒ _____
OTHER: _____

DATE OF ACKNOWLEDGMENT

ATTORNEY FOR DEFENDANT OR
DULY AUTHORIZED REPRESENTATIVE

PLEASE SIGN AND RETURN TO:
ROBERT D. SUMNER JUDICIAL CENTER
38053 LIVE OAK AVENUE
DADE CITY, FL 33523

PROSECUTION COVER SHEET

STATE OF FLORIDA

vs.

Sex/Age

DATE/ARREST:

3/9/21

CHARGE:

Burglary of a
Dwelling L3B
False Perspective I
D&P

Matthew Davis W/m 1/5/88
Christina Hill W/F 2/5/88

OFFENSE

DATE: 12/23/20 - 2/2/21

TIME: 9:30

LOCATION: 7512 Cherokee Rd. 7-466, FL 33540

DATE, TIME, LOCATION OF ARREST: 3/9/21

WARRANT: YES ☐ NO ☒ OFFICER(S):

CONFIDENTIAL INFORMANT: YES ☐ NO ☒ CI PRESENT DURING OFFENSE: YES ☐ NO ☒

ELECTRONIC SURVEILLANCE: YES ☐ NO ☒

BODY BUG: YES ☐ NO ☒ TAPE: YES ☐ NO ☒

SEARCH OR SEIZURE: YES ☐ NO ☒ SEARCH WARRANT: ☐

JUDGE: ☐ WAIVER OF SEARCH ☐ ORAL ☐ WRITTEN ☐

STATEMENT BY DEFT: NONE ☒ ORAL ☐ WRITTEN ☐ INCULPATORY ☐ EXCULPATORY ☐

INTERROGATOR: Det Linda Lane P&D

DETAILS OF MIRANDA WARNING: Card

SHORT SUMMARY OF STATEMENT: Refused

EVIDENCE AND DESCRIPTION

LOCATION

1. PHOTOGRAPHS: ☐

2. STATEMENTS: ☐

3. WAIVER OF ATTORNEY: ☒

4. FINGERPRINTS: ☒

7/20

5. OTHER (Include value where pertinent and method of computing same; show continuity of all).

1. See Report for stolen Property 3. Pawn Tickets
2. BWC 4. Chamber Trust \$3,000.00 - \$4,000.00

**IN THE CIRCUIT COURT FOR THE SIXTH JUDICIAL CIRCUIT
OF FLORIDA IN AND FOR PASCO COUNTY**

STATE OF FLORIDA

VS.

2021CF001143CFAXES-02
2021CF001144CFAXES-02 (ENCOMPASSED)
FELONY INFORMATION

MATTHEW DAVIS

W/M; DOB: 01/05/88

1. BURGLARY, 2° F
2. DEALING IN STOLEN PROPERTY,
2° F
3. FALSE VERIFICATION OF
OWNERSHIP, 2° F

IN THE NAME AND BY THE AUTHORITY FOR THE STATE OF FLORIDA:

BRUCE BARTLETT, State Attorney for the Sixth Judicial Circuit of Florida, in and for Pasco County, prosecuting for the State of Florida, in the said County, under oath, Information makes that

MATTHEW DAVIS

in the County of Pasco and State of Florida, on or between the 23rd day of October, in the year of our Lord, two thousand twenty, and the 2nd day of February, in the year of our Lord, two thousand twenty-one, unlawfully and without invitation or license did enter the dwelling of Kastine Marie Tuttle, located at 7512 Chenkin Road, in the City of Zephyrhills, Pasco County, Florida, the property of Kastine Marie Tuttle with the intent to commit an offense therein, the said dwelling at the time not open to the public; contrary to Chapter 810.02(3)(b)/777.011, Florida Statutes, and against the peace and dignity of the State of Florida. [C3B]/7

COUNT TWO

And the State Attorney aforesaid, under oath as aforesaid, further information makes that MATTHEW DAVIS, in the County of Pasco, State of Florida, on or between the 23rd day of October, in the year of our Lord, two thousand twenty, and the 2nd day of February, in the year of our Lord, two thousand twenty-one, did unlawfully traffic in, or endeavor to traffic in, property, to-wit: personal property, that he knew or should have known were stolen; contrary to Chapter 812.019(1)/777.011, Florida Statutes, and against the peace and dignity of the State of Florida. [I9]/5

COUNT THREE

And the State Attorney aforesaid, under oath as aforesaid, further information makes that MATTHEW DAVIS, in the County of Pasco, State of Florida, on or between the 23rd day of October, in the year of our Lord, two thousand twenty, and the 2nd day of February, in the year of our Lord, two thousand twenty-one, did knowingly give false verification of ownership and received money from a pawn broker for goods sold, or pledged, the value of the money received being \$300.00 or more; contrary to Chapter 539.001(8)(b)8.b./777.011, Florida Statutes, and against the peace and dignity of the State of Florida. [042]/4

STATE OF FLORIDA
PASCO COUNTY

Personally appeared before me, BRUCE BARTLETT, State Attorney for the Sixth Judicial Circuit of Florida, in and for Pasco County, or his duly designated Assistant State Attorney, who being first duly sworn, says that the allegations as set forth in the foregoing information are based upon facts that have been sworn to as true, and which if true, would constitute the offense therein charged; hence this information is filed in good faith in instituting this prosecution, and that he has received testimony under oath from the material witness or witnesses for the offense.

The foregoing instrument was acknowledged before me
by means of ☒ physical presence or ☐ online
notarization this June 1, 2021
by Manuel Garcia, who
is personally known to me and who did take an oath.

Deborah M. Staffan
NOTARY PUBLIC

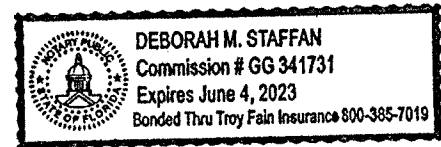
Manuel Garcia
Assistant State Attorney for the Sixth
Judicial Circuit of the State of Florida,
Prosecuting for said State

SE21004417 SE21007010 MG/0323AA9

This information encompasses the transaction
and all charges listed on Docket Number

2021CF001144CFAXES-02 CT. 3

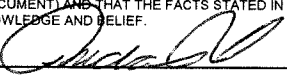
Manuel Garcia
Assistant State Attorney



PASCO COUNTY COMPLAINT A DAVIT

☒ PSO FLO 510000
☐ DC PD FLO 510100☐ PD FLO 510200
☐ FLO 510300☐ PR PD FLO 510400
☐ FHP FLO 279000

ADMINISTRATIVE	CBTS NUMBER 5161175076		FELONY MISD. ☐ CIVIL INF. ☐		CO. ORD. ☐	SHIFT CID	SECTOR N5	SEC. ☐	TWP. ☐	RNG. ☐	AGENCY/REPORT NUMBER 21-004417															
	ARREST ☒ CHECK ALL THAT APPLY ☐ 1. FELONY ☐ 3. MISD. ☐ 5. ORDINANCE ☐ 7. V.O.P. ☐ 9. CIVIL INF. ☐ ☐ 2. TRAFFIC FELONY ☐ 4. MISD. TRAFFIC ☐ 6. OTHER ☐ 8. PROBABLE CAUSE ☐		ADULT ☒ JUVENILE ☐		AGENCY ARREST NUMBER																					
	NOTICE TO APPEAR ☐ CHECK ONLY ONE ☐ 1. MANDATORY APPEARANCE ☐ JUVENILE ☐ REQUEST FOR ☐ CHECK ONLY ONE ☐ WARRANT ☐ SUMMONS ☐ JUV. PICK-UP ☒		REVIEWED BY ASSISTANT STATE ATTORNEY		DATE																					
DEFENDANT	LOCATION OF ARREST (INCLUDE NAME OF BUSINESS) 6819 23RD STREET ZEPHYRHILLS FLORIDA										LOCATION OF OFFENSE (BUSINESS NAME, ADDRESS) 7512 CHENKIN RD, ZEPHYRHILLS, FL 33540															
	DATE OF ARREST 03/09/2021		TIME OF ARREST 11:15		BOOKING DATE 3/9/21		BOOKING TIME 1835		JAIL DATE		JAIL TIME		WEAPON SEIZED ☐ YES ☒ NO NOT APPLICABLE		F.P.S.S. Notified ☐ Y ☒ N ☐ Juv. ☐ Elderly ☐ Handicap											
	JAIL NUMBER 247667		SPN NUMBER 0062638		FDLE NUMBER		DOC NUMBER		FBI NUMBER		Domestic Related ☐ Y ☒ N		Convicted Sexual Predator / Offender ☐ Y ☒ N													
	NAME (LAST, FIRST, MIDDLE) DAVIS, MATTHEW AARON										ALIAS															
	RACE W - WHITE B - BLACK		H - HISPANIC I - AMERICAN INDIAN O - ORIENTAL / ASIAN		CODE W		SEX M		DATE OF BIRTH 01/05/1988		AGE 33		HEIGHT 5'07"		WEIGHT 150		EYE COLOR BROWN		HAIR COLOR BROWN		COMPLEXION MED		BUILD			
	SCARS, MARKS, TATTOOS, ETC.										INDICATION OF: ALCOHOL INFLUENCE ☐ Y ☒ N ☐ UNK DRUG INFLUENCE ☐ Y ☒ N ☐ UNK															
	PHYSICAL ADDRESS (STREET & APT #) 6819 23RD STREET, ZEPHYRHILLS, FL 33540										(CITY)		(STATE)		ZIP		PHONE		RESIDENCE TYPE 1. CITY 3. FLORIDA 2. COUNTY 4. OUT OF STATE		CODE					
	MAILING ADDRESS (STREET & APT #)										(CITY)		(STATE)		ZIP		PHONE		ADDRESS SOURCE							
	BUSINESS ADDRESS (NAME & STREET)										(CITY)		(STATE)		ZIP		PHONE		OCCUPATION UNEMPLOYED							
	DRIVER'S LICENSE STATE / NUMBER FL										SOCIAL SECURITY NUMBER		INS NUMBER		PLACE OF BIRTH US		CITIZENSHIP US									
CO-DEF	CO-DEFENDANT NAME (LAST, FIRST, MIDDLE) HILLS, CHRISTINA RENEE										RACE W		SEX F		DATE OF BIRTH 02/05/1988		AGE 33		1. ARRESTED 2. AT LARGE		3. FELONY 4. MISDEMEANOR 5. JUVENILE		CODE			
	CO-DEFENDANT NAME (LAST, FIRST, MIDDLE)										RACE		SEX		DATE OF BIRTH		AGE		1. ARRESTED 2. AT LARGE		3. FELONY 4. MISDEMEANOR 5. JUVENILE		CODE			
JUVENILE	☐ PARENT ☐ OTHER NAME OF PARENT OR CUSTODIAN (LAST, FIRST, MIDDLE)										RESIDENTIAL PHONE															
	☐ LEGAL CUSTODIAN										BUSINESS PHONE															
	ADDRESS (STREET, APT NUMBER)																									
CHARGE	CHARGE DESCRIPTION BURGLARY DWELLING, UNOCCUPIED, UNARMED, NO										☒ F.S. ☐ CIVIL INF. ☐ ORD.		STATUTE VIOLATION NUMBER 810.02.3B NO FORCED		NCIC # 2299		COURT CASE # 2021CF001142 ADD.1									
	ACTIVITY N. N/A P. POSSESS S. SELL B. BUY T. TRAFFIC R. SMUGGLE D. DELIVER E. USE K. DISPENSE/ D. DISTRIBUTE M. MANUFACTURE Z. OTHER PRODUCE / CULTIVATE										CODE N		AMOUNT		TYPE N. N/A A. AMPHETAMINE B. BARBITURATE C. COCAINE E. HEROIN H. HALLUCINOGEN M. MARIJUANA O. OPIUM / DERIV P. PARAPHERNALIA S. SYNTHETIC U. UNKNOWN Z. OTHER		CODE N									
COST RECOVERY	CHARGE DESCRIPTION REQUEST FOR INVESTIGATIVE COSTS RECOVERY FSS 938.27(1)										☐ F.S. ☐ CIVIL INF. ☐ ORD.		STATUTE VIOLATION NUMBER		NCIC #		COURT CASE #									
	ACTIVITY N. N/A P. POSSESS S. SELL B. BUY T. TRAFFIC R. SMUGGLE D. DELIVER E. USE K. DISPENSE/ D. DISTRIBUTE M. MANUFACTURE Z. OTHER PRODUCE / CULTIVATE										CODE		AMOUNT		TYPE N. N/A A. AMPHETAMINE B. BARBITURATE C. COCAINE E. HEROIN H. HALLUCINOGEN M. MARIJUANA O. OPIUM / DERIV P. PARAPHERNALIA S. SYNTHETIC U. UNKNOWN Z. OTHER		CODE									
PROBABLE CAUSE STATEMENT	REQUEST FOR INVESTIGATIVE COSTS RECOVERY FSS 938.27(1) CJIS # 3775 # of Investigative hrs. 4 x \$26 = \$104										THE UNDERSIGNED CERTIFIED AND SWEARS THAT HE / SHE HAS JUST AND REASONABLE GROUNDS TO BELIEVE AND DOES BELIEVE THAT THE ABOVE-NAMED DEFENDANT COMMITTED THE FOLLOWING VIOLATION OF LAW: ON THE 22 DAY OF November , 20 20 AT 12:00 ☒ A.M. ☐ P.M. (SPECIFICALLY INCLUDE FACTS CONSTITUTING CAUSE FOR ARREST.) The Defendant/Matthew David and the Co-Defendant/Christina Hills, entered into the victim's home and removed multiple items without the victim's knowledge or consent. The Defendant and the Co-Defendant sold stolen items to the business known as Pawn Max which is located at 6948 Gall Boulevard, Zephyrhills, (PSO case #21-7011/False Verification of Ownership and PSO case #7010/False Verification of Ownership.) The victim identified the sold items to belong to her. The victim hired the Defendant and Co-Defendant to complete work at her home to make it ready to sell when she was present in the home. During the time when the victim left the Florida home and went to Kentucky the Defendant and Co-Defendant entered the home and removed the victim's *** Continued ***															
	I AGREE TO APPEAR AT THE TIME AND PLACE DESIGNATED WHEN I AM NOTIFIED TO ANSWER THE OFFENSE CHARGED OR TO PAY THE FINE SUBSCRIBED. I UNDERSTAND THAT SHOULD I WILLFULLY FAIL TO APPEAR BEFORE THE COURT AS REQUIRED ONCE I AM NOTIFIED, THAT I MAY BE HELD IN CONTEMPT OF COURT AND A WARRANT FOR MY ARREST SHALL BE ISSUED. IF CITED FOR A CIVIL INFRACTION, I AGREE TO APPEAR BEFORE THE COUNTY COURT OR COMPLY WITH THE REQUIREMENTS FOR PAYING THE FINE AND MEETING ANY OTHER SPECIFIED CONDITIONS AS INDICATED ON THE BACK SIDE OF THIS AFFIDAVIT.										P.C. EXISTS FOR CHARGE(S) JUDGE'S SIGNATURE DATE 3/10/21 SK/KC															
ADMINISTRATIVE	☐ MIRANDA WARNING ☐ HOLD FOR OTHER AGENCY ☐ VERIFIED BY ADULT ONLY ☐ HOLD FOR FIRST APPEARANCE ☐ DO NOT BOND OUT - REASON: X WRIGHT-LOVE, L. L. 3775 NAME (PRINTED) CJIS #										RIGHT THUMB flap NCWU		DATE		VICTIM NOTIFIED YES ☐ NO ☐		BOND CHARGE # 10,000		BOND CHARGE #		TYPE		RETURNABLE COURT DATE		RETURNABLE COURT TIME ☐ A.M. ☐ P.M.	
	UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING DOCUMENT AND THAT THE FACTS STATED IN IT ARE TRUE, TO THE BEST OF MY KNOWLEDGE AND BELIEF. X										BOND TYPE 1. ROR 2. CASH 3. SURETY 4. BAIL / BOND 5. CERT. 6. OTHER		TYPE		RELEASE DATE		RELEASE TIME ☐ A.M. ☐ P.M.		RELEASING OFFICER		PAGE 1 OF 2					

DEFENDANT DAVIS, MATTHEW AARON						AGENCY REPORT NO. 21-004417					
CHARGE DESCRIPTION				☐ F.S. ☐ CIVIL ☐ ORD. INF.		STATUTE VIOLATION NUMBER		NCIC #		COURT CASE #	
ACTIVITY N. N/A P. POSSESS S. SELL B. BUY T. TRAFFIC R. SMUGGLE D. DELIVER E. USE K. DISPENSE/ DISTRIBUTE M. MANUFACTURE PRODUCE / CULTIVATE Z. OTHER				CODE		AMOUNT		TYPE N. N/A A. AMPHETAMINE B. BARBITURATE C. COCAINE E. HEROIN H. HALLUCINOGEN M. MARIJUANA O. OPIUM / DERIV P. PARAPHERNALIA / EQUIPMENT S. SYNTHETIC U. UNKNOWN Z. OTHER		CODE	
CHARGE DESCRIPTION				☐ F.S. ☐ CIVIL ☐ ORD. INF.		STATUTE VIOLATION NUMBER		NCIC #		COURT CASE #	
ACTIVITY N. N/A P. POSSESS S. SELL B. BUY T. TRAFFIC R. SMUGGLE D. DELIVER E. USE K. DISPENSE/ DISTRIBUTE M. MANUFACTURE PRODUCE / CULTIVATE Z. OTHER				CODE		AMOUNT		TYPE N. N/A A. AMPHETAMINE B. BARBITURATE C. COCAINE E. HEROIN H. HALLUCINOGEN M. MARIJUANA O. OPIUM / DERIV P. PARAPHERNALIA / EQUIPMENT S. SYNTHETIC U. UNKNOWN Z. OTHER		CODE	
Painting supplies, valued at \$40.00, Soldering iron valued at \$40.00, Portland leaf blower valued at \$100.00, Black and Decker drill, valued at \$20.00, Hallmark salt and pepper shakers, valued at \$350.00, opera glasses valued at \$300.00, a 14KT gold ring valued at \$100.00, (20) silver dollars, silver necklace w/sun pendant valued at \$250.00, 14KT gold necklace w/Tweety Bird charm valued at \$250.00, leather tools valued at \$1,000.00, a mop bucket with no value, Black and Decker weed eater, valued at \$165.00, a Cannon Camera valued at \$400.00, (3) sewing machines with a total value of \$1,200.00 and a Craftsman router valued at \$100.00 for a total value of \$4,635.00. The Defendant had a conversation with the victim and he stated he would try to get some of the items returned. A short time later the Defendant returned with the mop bucket, Black and Decker weed eater, opera glasses and Portland Blower. The victim stated the Defendant and Co-Defendant did not have permission to enter her home and take the items and they did not have permission to sell any of her property. Post Miranda the Defendant did not make any statements concerning this incident.											
* * * End * * *											
ADMINISTRATIVE UNDER PENALTIES OF PERJURY, I DECLARE THAT I HAVE READ THE FOREGOING (DOCUMENT) AND THAT THE FACTS STATED IN IT ARE TRUE, TO THE BEST OF MY KNOWLEDGE AND BELIEF. X  WRIGHT-LOVE, L. L. 3775 NAME (PRINTED) CJIS #											

STATE ATTORNEY

VICTIM INFORMATION

UB

21-004417

PSO OFFENSE #

1. VICTIM'S NAME: TUTTLE, KASTINE MARIE RACE: W SEX: F DOB: 09/01/1957
LAST FIRST MIDDLE

ADDRESS: 7512 CHENKIN RD, ZEPHYRHILLS, FL 33540
NUMBER STREET CITY STATE ZIP

TELEPHONE NUMBERS: (219) 545-2522 (813) 395-8413
HOME BUSINESS

COMMENT OR BUSINESS NAME: _____ SPN # _____

2. VICTIM'S NAME: _____ RACE: _____ SEX: _____ DOB: _____
LAST FIRST MIDDLE

ADDRESS: _____
NUMBER STREET CITY STATE ZIP

TELEPHONE NUMBERS: _____
HOME BUSINESS

COMMENT OR BUSINESS NAME: _____ SPN # _____

3. VICTIM'S NAME: _____ RACE: _____ SEX: _____ DOB: _____
LAST FIRST MIDDLE

ADDRESS: _____
NUMBER STREET CITY STATE ZIP

TELEPHONE NUMBERS: _____
HOME BUSINESS

COMMENT OR BUSINESS NAME: _____ SPN # _____

4. VICTIM'S NAME: _____ RACE: _____ SEX: _____ DOB: _____
LAST FIRST MIDDLE

ADDRESS: _____
NUMBER STREET CITY STATE ZIP

TELEPHONE NUMBERS: _____
HOME BUSINESS

COMMENT OR BUSINESS NAME: _____ SPN # _____

STATE ATTORNEY

CIRCUIT COURT, PASCO COUNTY, FLORIDA

STATE OF FLORIDA
VS.

SUBPOENA TO APPEAR FOR DEPOSITION

MATTHEW DAVIS

CASE NO. 2021CF001143CFAXES

OFFENSE NO. SE21004417

THE STATE OF FLORIDA, TO ALL AND SINGULAR THE SHERIFFS, STATE ATTORNEY INVESTIGATORS, AND AGENTS OF THE FLORIDA DEPARTMENT OF CRIMINAL LAW ENFORCEMENT.

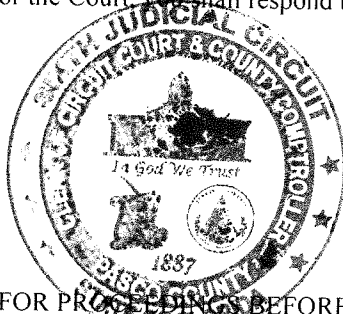
YOU ARE HEREBY COMMANDED TO SUBPOENA:

CHRISTINA HILLS
11960 CHESTERFIELD ROAD
DADE CITY, FL 33525

To be and appear before the State Attorney, on Friday, September 16, at 9:00 A.M., 38053 Live Oak Avenue, Rm 204, DADE CITY, FL 33523. To testify in the above-styled cause. APPROPRIATE ATTIRE REQUIRED.

**UPON RECEIPT OF THIS SUBPOENA, YOU ARE REQUIRED TO CALL THE
OFFICE OF THE STATE ATTORNEY AT (352) 521-4341 (M-F 8:00 a.m. - 4:30 p.m.)**

NOTE: You are subpoenaed to appear by BRUCE BARTLETT, STATE ATTORNEY, and unless excused from this subpoena by this attorney or the Court, you shall respond to this subpoena as directed. If you fail to appear, you may be held in contempt of Court.



WITNESS, NIKKI ALVAREZ-SOWLES, ESQ., as Clerk and Comptroller and the seal of said Court, at the Courthouse, at Dade City, Pasco County, Florida.

MG/jb 08/22/22

NIKKI ALVAREZ-SOWLES, ESQ

Clerk and Comptroller

By: _____

Deputy Clerk

FOR PROCEEDINGS BEFORE THE COURTS OF PASCO COUNTY

If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact either the Pasco County Customer Service Center, 8731 Citizens Drive, New Port Richey, FL 34654, (727) 847-2411 (V) or the Pasco County Risk Management Office, 7536 State Street, New Port Richey, FL 34654, (727) 847-8028 (V) at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

ORIGINAL RETURN

Received this Subpoena on _____, and served the same by delivering a True Copy thereof to each of the within named witnesses, as shown below, to wit:

ON _____ BY _____
ON _____ BY _____

NOT FOUND AFTER DILIGENT SEARCH:

ON _____ BY _____
ON _____ BY _____

Sheriff

CIRCUIT COURT, PASCO COUNTY, FLORIDA

STATE OF FLORIDA
VS.

SUBPOENA TO APPEAR FOR DEPOSITION

MATTHEW DAVIS

CASE NO. 2021CF001143CFAXES

OFFENSE NO. SE21004417

THE STATE OF FLORIDA, TO ALL AND SINGULAR THE SHERIFFS, STATE ATTORNEY INVESTIGATORS, AND AGENTS OF THE FLORIDA DEPARTMENT OF CRIMINAL LAW ENFORCEMENT.

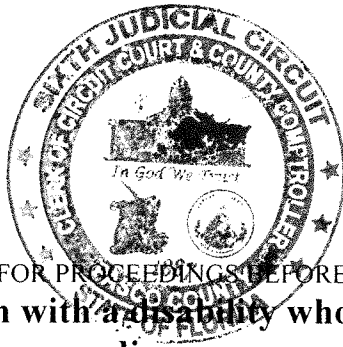
YOU ARE HEREBY COMMANDED TO SUBPOENA:

THURLA ECKERD
11960 CHESTERFIELD ROAD
DADE CITY, FL 33525

To be and appear before the State Attorney, on Friday, September 16, at 9:30 A.M., 38053 Live Oak Avenue, Rm 204, DADE CITY, FL 33523. To testify in the above-styled cause. APPROPRIATE ATTIRE REQUIRED.

**UPON RECEIPT OF THIS SUBPOENA, YOU ARE REQUIRED TO CALL THE
OFFICE OF THE STATE ATTORNEY AT (352) 521-4341 (M-F 8:00 a.m. - 4:30 p.m.)**

NOTE: You are subpoenaed to appear by BRUCE BARTLETT, STATE ATTORNEY, and unless excused from this subpoena by this attorney or the Court, you shall respond to this subpoena as directed. If you fail to appear, you may be held in contempt of Court.



WITNESS, NIKKI ALVAREZ-SOWLES, ESQ., as Clerk and Comptroller and the seal of said Court, at the Courthouse, at Dade City, Pasco County, Florida.

MG/jb 08/22/22

NIKKI ALVAREZ-SOWLES, ESQ

Clerk and Comptroller

By: _____

Deputy Clerk

FOR PROCEEDINGS BEFORE THE COURTS OF PASCO COUNTY

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ORIGINAL RETURN

Received this Subpoena on _____, and served the same by delivering a True Copy thereof to each of the within named witnesses, as shown below, to wit:

ON _____ BY _____

ON _____ BY _____

NOT FOUND AFTER DILIGENT SEARCH:

ON _____ BY _____

ON _____ BY _____

Sheriff

Garcia, Manuel

From: Maria Perinetti <mperinetti@flrc2.org>
Sent: Tuesday, June 07, 2022 11:39 AM
To: Garcia, Manuel
Subject: Matthew Davis 21-CF-1143

This email message came from outside our network. Please exercise caution when opening attachments, clicking on hyperlinks or replying.

Hi Manny,

I conveyed your offer of adjudication, 5 months DOP, and \$2000 to my client and he does not wish to accept the offer. He especially does not want to be a convicted felon, and he maintains that he is innocent.

Thanks,

Maria

CONFIDENTIALITY NOTICE: This transmission is protected by the Electronic Communications Privacy Act, 18 U.S.C. Sections 2510-2521 and is intended to be delivered only to the named addressee(s) and may contain information that is confidential and proprietary or subject to the attorney client privilege. If this information is received by anyone other than the named addressee(s), the recipient should immediately notify the sender and obtain instructions as to the disposal of the transmitted material. In no event shall this material be read, used, copied, reproduced, stored or retained by anyone other than the named addressee(s), except with the express consent of the sender or the named addressee(s).

PRE-TRIAL CONFERENCE FORM

STATE VS

Matthew Davis

CASE #

SE 21-4417
21-1143

DEFENDANT'S PRIOR RECORD / JUV / OUT OF STATE

Felonies

Misdemeanors

CASE FACTS

Defendant and Co-Defendant Burglarized and Pannned
Numerous Items.

POTENTIAL ISSUES:

None

SENTENCE RECOMMENDATION: ☐ MIN. MANDATORY

☐ MAND. ADJUDICATION

☐ \$151 Rape Crisis	☐ \$151 UAV	☐ \$3 Teen Court	☐ PRR	☐ Sex Off Cond	☐ JLA
☐ \$201 DV	☐ \$100 Lab Fee	☐ Forfeit Weapon	☐ 10/20/Life	☐ Sex Pred Order	☐ DL Revoke

INVEST COSTS \$ 104.00 / PSO
AGENCY

SAO COST: ☐ \$100 felony and ☐ \$50 misd/crim traffic (per case)

☒ Need DNA ☐ DNA on file

RESTITUTION / CRIMES COMP / MEDICAL REIMBURSE-PCSO / COST OF EXTRADITION

VICTIM NAME	AMOUNT	VICTIM ADDRESS
<u>Kastine Tuttle</u>	\$ <u>8 \$4000 per group sheet</u>	<u>vic SD will lower to \$2000.00</u>
	\$	
	\$	
TOTAL	\$	

WORTHLESS CHECK INFO

CHECK AMOUNT	+	SERVICE CHARGE	= \$	AND	\$	SAO PROCESSING FEE
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PLEA OFFER

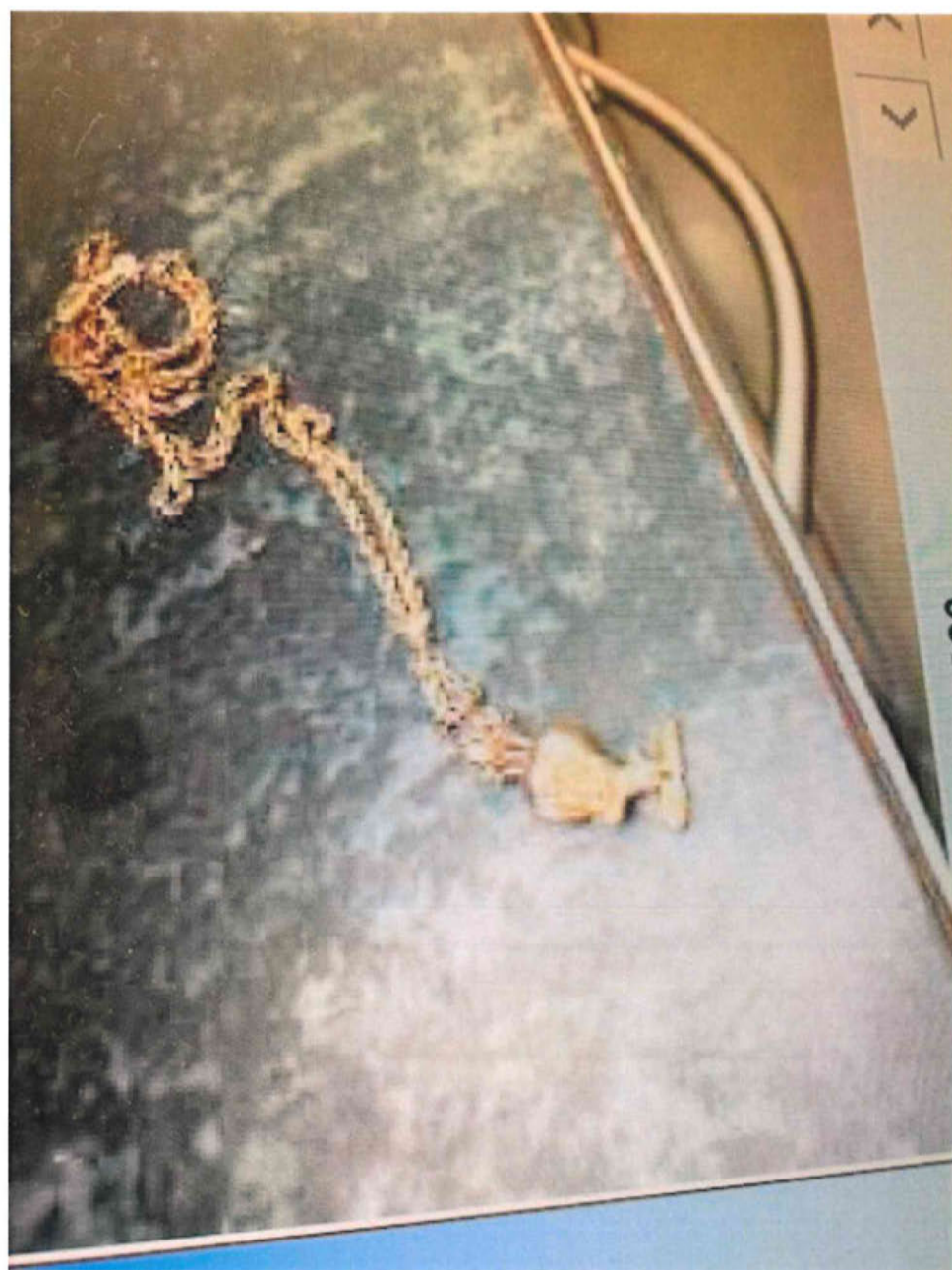
Subs 27.75 hrs DOC

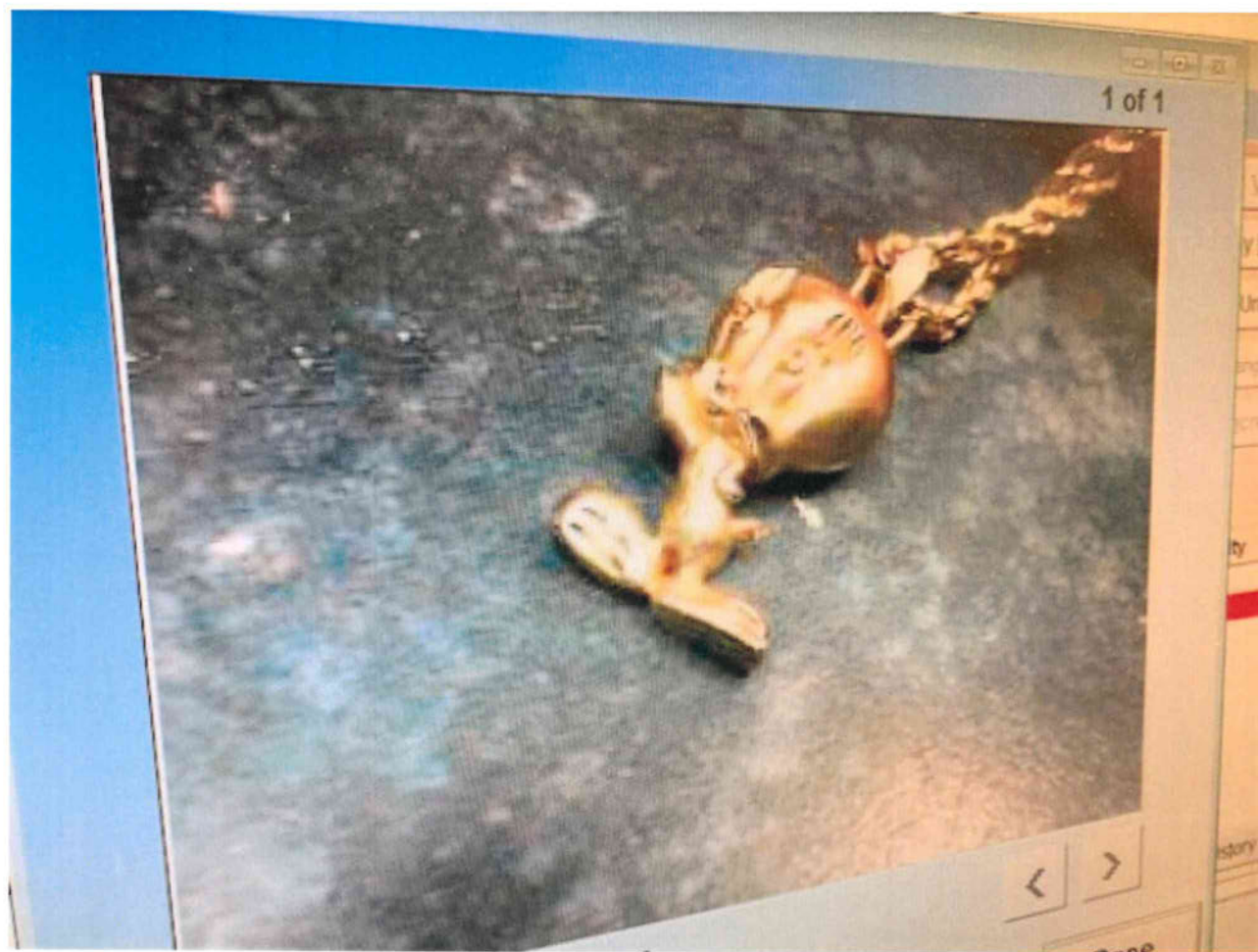
1/18/22 Motion to compel granted - need print
taken next ct date because D not present
Dep Travett surrender

4/11/22 OK - arriving now

8/12/22 D arrested 2 agg assault 7/30/22 motion to revoke
use wip is a victim invest 8/15 22 of 31 71 rest

4/24/23 MG OK Tls on all + reduce 3F if all pd UP front
82000





RECOMMENDATION

Case # 21CF1143

Reviewed by MG

DEFENDANT in Jail 21 Date _____

30 Date _____

DEFENDANT on BOND / ROR

10-20-LIFE

Yes ☐

No ☐

DRUG COURT

Yes ☐

No ☐

- ☐ File Charge
- ☐ File No Information
- ☐ Certify to:
- ☐ Do NOT send victim letter(s)

MG

SYNOPSIS

INVEST: 03/22 DICTATED: 03/22 TRANS'D: 3/26/21

ATT/DIV: M. GARCIA
IPO: Amy Alicea

WORK TYPE: 2
CASE #: 211143
JOB #: 18613

AMENDED

DEFENDANT'S NAME: MATTHEW DAVIS
W/M; DOB: 01/05/88
SE21-4417

DEFENDANT'S NAME: CHRISTINA HILLS
W/F; DOB: 02/05/88
2021CF001328

PHYSICAL EVIDENCE: LATENT FINGERPRINTS, BWC, PAWN TICKETS,
THUMBPRINT

OFFENSE: BURG OF A DWELLING; FALSE VERIFICATION TO A PAWN
BROKER; DSP

DOO: BETWEEN 10/23/2020 AND 02/02/2021

ARREST DATE:

WITNESSES APPEARING AND SWORN IN BY PHONE:

Det. Linda Wright

WITNESSES NOT APPEARING:

William Harrelson
Ashley Cheek

WIV, Kastine Marie Tuttle, last known addr: 7512 Chenkin
Rd. Zephyrhills 33540

RECOMMENDATION:

File 1 ct. Burglary of a dwelling - C3B
1- Kastine Marie Tuttle
2- 7512 Chenkin Rd. Zephyrhills 33540
3- Zephyrhills
4- Marie Tuttle
add 777.011

File 1 ct. DSP - I9
1- personal prop
2- he
3- were
add principal statute

File 1 ct. False info to a pawn broker - F16B 2°F, Level 4
1- false verification of ownership

PROOF:

This offense occurred between the above listed dates and times the DEFENDANT and CO-DEFENDANT were working at the victim's residence making repairs. Between the above listed dates and times, they entered the house without permission and removed various items of personal property. They then pawned them at Max Pawn and also provided false verification to the pawn broker.

Taking the initial report in the case was Deputy _____ on 1143. Then assigned to Det. Love. Det. Love had occasion to speak to the victim in this case who advised the DEFENDANT and CO-DEFENDANT were working on her house making repairs, while she left to go to Kentucky in October of 2020.

On 02/02/2021 they entered the house without her permission or consent and removed numerous items that belonged to her and subsequently pawned them. She is out between \$3,000 and \$4,000.

ID:

SUMMARY:

Det. Love appearing by phone who indicated she had occasion to become involved in the invest of the burglary and the false verification and DSP. She did in fact talk with the victim in this case and several witnesses. She also interviewed the DEFENDANT post-Miranda; however, he refused to answer any questions. Encompass everything under 211443 so the false verification which was under 1144 should be under this info.

RESTITUTION:

INVEST COSTS: \$182 on 1144

VICTIM CONTACT:

POST-MIRANDA:

RELATIONSHIP:

MG/0322AA44

Roy, Carolyn

DT

From: Carmen Vera <Carmen.Vera@myfloridalegal.com>
Sent: Tuesday, July 23, 2024 2:51 PM
To: Roy, Carolyn
Subject: Notice of Appeal filed with 2DCA

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July 23, 2024

The Honorable Bruce Bartlett
State Attorney
P.O. Box 17500
Clearwater, Florida 33762-0500

RE: **Matthew Aaron Davis** v. State of Florida
2d DCA No. **2D24-1649**
Pasco County Circuit Court No. **21-001143CF**

Dear Mr. Bartlett:

A notice of appeal has been lodged in the appellate court by the above-named defendant, who was convicted in your jurisdiction.

If you or your staff have a particular interest in participating in the appeal, including suggesting or advancing legal or factual propositions, or have any legal memoranda on a given topic, please let us know.

Although the appellate issues will not be identified until the appellant's initial brief has been filed, it is always helpful to have the trial lawyer's impressions and views as early as possible in an appeal since the appellate rules are very time sensitive. You will, however, be receiving additional correspondence from our office advising you of the issues raised in the initial brief by an assistant attorney general assigned to the case.

It is also imperative that this office receive copies of all notices, pleadings, transcripts, and appellate records filed in connection with this appeal. In the event that you are served with such documents, please forward them to this office so that we can timely process the appeal.

From time to time, this office will also request special assistance in identifying cases dealing with a discrete issue before the trial courts. I want to thank you in advance for all the help that you and your staff have provided and

will provide this office. Naturally, we all have the same goal, to ensure that valid judgments and sentences imposed by the trial courts are upheld in the appellate courts of this State.

Sincerely,



Carmen Vera

Legal Assistant II
Tampa - Criminal Appeals
Office of the Attorney General
Office: (813) 287-7900
Email: carmen.vera@myfloridalegal.com

Lavender, Michelle

From: Lavender, Michelle
Sent: Monday, April 24, 2023 10:23 AM
To: Michelle Bui
Subject: RE: Matthew Davis 21 CF 1143 & 22 CF 3171

Hi,
I spoke to the victim in the Burglary. I am ok to reduce to a 3F Burglary and he can plea as charged to the rest. The restitution to Ms. Tuttle is \$2000. If that is paid up front, he can have time served but I cannot agree to a WH.

Michelle Lavender, ASA
Office of Bruce Bartlett, State Attorney
P.O. Box 17500
Clearwater, FL 33762
(352) 521-4333

From: Michelle Bui <builawoffice@gmail.com>
Sent: Wednesday, April 19, 2023 2:50 PM
To: Lavender, Michelle <MichelleLavender@flsa6.gov>
Subject: Re: Matthew Davis 21 CF 1143 & 22 CF 3171

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Hello! I have spoken with my client and his mother. The mother resides in New York and is willing to pay \$4000 in restitution on her credit card. Will this resolve all of the cases and will you do time served? In addition, since the client has no record outside of these two cases, and previously had a job with the county, his mother is worried about his ability to obtain employment with these felonies on his record. Would you consider amending, or dropping anything, or at least offering a withhold of adjudication if restitution is paid in full?

On Tue, Apr 18, 2023 at 10:38 AM Michelle Bui <builawoffice@gmail.com> wrote:

Can u send me the amount you are seeking please?
When I looked through the report, some of the things seemed a little bit high... If the victim comes up with a specific amount, lump sum upfront, that she's OK with, that would be helpful as well

Get [Outlook for iOS](#)

From: Lavender, Michelle <MichelleLavender@flsa6.gov>
Sent: Tuesday, April 18, 2023 10:37:37 AM
To: Michelle Bui <builawoffice@gmail.com>

Subject: Re: Matthew Davis 21 CF 1143 & 22 CF 3171

Not unless restitution is paid

Michelle Lavender, Assistant State Attorney

From: Michelle Bui <builawoffice@gmail.com>
Sent: Tuesday, April 18, 2023 8:38:15 AM
To: Lavender, Michelle <MichelleLavender@flsa6.gov>
Subject: Re: Matthew Davis 21 CF 1143 & 22 CF 3171

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So if the victim is on board with time served, are you OK with doing that?

On Tue, Apr 18, 2023 at 7:33 AM Lavender, Michelle <MichelleLavender@flsa6.gov> wrote:

Next Tuesday is a trial week. So, it would have to be the next week.

Michelle Lavender, Assistant State Attorney

From: Michelle Bui <builawoffice@gmail.com>
Sent: Tuesday, April 18, 2023 7:14:09 AM
To: Lavender, Michelle <MichelleLavender@flsa6.gov>
Subject: Re: Matthew Davis 21 CF 1143 & 22 CF 3171

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Thank you for the response! Can we reset this for tomorrow morning by chance? I will be there for a juvenile hearing. If that's too soon, next Tuesday works for me.

Also, with your permission, maybe I could set up a video visit with the mother on IC solutions?

On Mon, Apr 17, 2023 at 3:22 PM Lavender, Michelle <MichelleLavender@flsa6.gov> wrote:

I'm not sure I can do T/S. Does he have any money to pay restitution? The mom of his child is also on probation and she should be in our custody this week. I would need to speak to all victims before agreeing to a departure.

Michelle Lavender, Assistant State Attorney

From: Michelle Bui <builawoffice@gmail.com>
Sent: Monday, April 17, 2023 2:37:29 PM
To: Lavender, Michelle <MichelleLavender@flsa6.gov>

Subject: Re: Matthew Davis 21 CF 1143 & 22 CF 3171

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That would be amazing!! If he can get out tomorrow, i am sure he will plead out to be done with it all.

On Mon, Apr 17, 2023 at 2:36 PM Lavender, Michelle <MichelleLavender@flsa6.gov> wrote:

I have invest all afternoon. So, I am not sure I can have this resolved before 8:30 tomorrow. I think we may be able to figure something out.

Michelle Lavender, ASA

Office of Bruce Bartlett, State Attorney

P.O. Box 17500

Clearwater, FL 33762

(352) 521-4333

From: Michelle Bui <builawoffice@gmail.com>
Sent: Monday, April 17, 2023 2:25 PM
To: Lavender, Michelle <MichelleLavender@flsa6.gov>
Subject: Re: Matthew Davis 21 CF 1143 & 22 CF 3171

This email message came from outside our network. Please exercise caution when opening attachments, clicking on hyperlinks or replying.

Sorry I only had the first scoresheet but now I have the 2nd one that shows his prison score. He seems to believe that there will be no cooperation on his 2nd case from his children's mother.

However, would you consider a global resolution and guilty plea as charged in exchange for time served or release on probation? Or do you want DOC time?

On Mon, Apr 17, 2023 at 1:43 PM Lavender, Michelle <MichelleLavender@flsa6.gov> wrote:

Hi,

He scores 54.75 months DOC. Did you have a scoresheet that reflects less?

Michelle Lavender, ASA

Office of Bruce Bartlett, State Attorney

P.O. Box 17500

Clearwater, FL 33762

(352) 521-4333

From: Michelle Bui <builawoffice@gmail.com>

Sent: Friday, April 14, 2023 2:29 PM

To: Lavender, Michelle <MichelleLavender@flsa6.gov>

Subject: Matthew Davis 21 CF 1143 & 22 CF 3171

This email message came from outside our network. Please exercise caution when opening attachments, clicking on hyperlinks or replying.

Hello!

Do you object to continuing the Davis pretrial? It's set for Tuesday. I can do Wednesday the 19th or a diff day. Also, are you ok with time served or probation since his score is so low?

thank you!

--

Bui Law Office

401 E. Jackson St., Ste. 2340

Tampa, FL 33602

Office: 813-524-0609

Fax: 813-524-0613

Mobile: 813-314-7505

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10/19/21 Spoke to Brewer - told him
maybe would call vic for 3F
& probation if I gave items
back on pd ~~abstract~~ restriction.

6/6/22 Spoke to vic. vic sd ok
H/W pled. \$2000.00 lowered rest

4/24/23 called victim & she is OK
w/ T/S 1/2 \$2000 pd up front

6/7/22 offered Kimette Asst G, 5 yrs DOPO, 550.00 CC
104.00 P.S.O., \$2,000.00 Rest. E.T. @ 2 1/2 yrs
Def turned it down. mkt. 6/7/22